

AUTHORS AND THEIR PUBLIC IN ANCIENT TIMES

A SKETCH OF LITERARY CONDITIONS AND OF
THE RELATIONS WITH THE PUBLIC OF
LITERARY PRODUCERS, FROM THE
EARLIEST TIMES TO THE FALL
OF THE ROMAN EMPIRE

BY

GEO. HAVEN PUTNAM, M.A.

AUTHOR OF "THE QUESTION OF COPYRIGHT," ETC.

THIRD EDITION, REVISED

G. P. PUTNAM'S SONS

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Transcriber's note

Variable spelling and hyphenation have been retained. Minor punctuation inconsistencies have been silently repaired. A list of the changes made can be found [at the end of the book](#).

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PREFACE TO THE THIRD EDITION.

IN printing the second and third impressions of my essay, I have been able to take advantage of certain corrections and suggestions submitted by friendly critics, among whom I wish to make special acknowledgments to Mr. Charlton T. Lewis and to Mr. Otis S. Hill, whose aid in the verification of the quotations has been particularly valuable. I may mention that in the printing of the first edition, I had been obliged, in connection with the increasing limitations of my eyesight, to confide the verification and the proof-reading of the quotations to an assistant, whose services proved, unfortunately, incompetent and untrustworthy. As a result, a number of errors which had been repeated from the German editions, or which had crept into the work of the transcriber, of the typewriter, or of the compositor, found place with annoying persistency, in the volume as printed. While I may not hope that the text as now printed is correct (and a book free from typographical errors is an almost impossible production), I can feel assured that the more serious misprints at least have been duly cared for.

Attention has also been given to the correction of certain errors of statement or of interpretation, but in some of the instances in which my critics have not been in accord with the authorities upon which my own statements have been based, I have ventured to abide by the conclusions of the latter. My little essay made, of course, no pretensions to establish any conclusions or to maintain any individual theories on questions of classical literature concerning which there might be differences among the scholars. My purpose was simply to trace, as far as might be practicable, from the scattered references in the literature of the period, an outline record of the continuity of literary activity, the methods of the production and distribution

of literature, and the nature of the relations between the authors and their readers. For the citations utilised for this study, I was, as stated in my bibliography, chiefly indebted to such scholars as Wilhelm Schmitz, Joh. Müller, Paul Clement, Theodor Birt, Louis Haenny, H. Géraud, and A. Meineke. The citations given from the Greek or Latin authors were in the main based upon or corrected by the versions of these German or French writers, and were specifically so credited.

The majority of my reviewers were ready to understand the actual purpose of my book and to recognise that my part in the undertaking was limited to certain general inferences or conclusions as to literary methods or conditions. In one or two cases, however, the critics, ignoring the specified purpose and the necessary limitations of the essay, saw fit to treat it as a treatise on classical literature and devoted their reviews almost exclusively to textual criticisms and corrections. In these, of course (irrespective of certain obvious errors above referred to), they found ample opportunity for differences of opinion with the authorities whose versions I had utilised, and ignoring the fact that my renderings were specifically credited to the German or French editions, they criticised or corrected these as if they had been presented by myself. It seems to me worth while, therefore, again to point out that with these issues between the scholarly or critical authorities I am not at all concerned, and that in their controversies I assumed to take no part. My sketches of literary methods, and the suggestions submitted by me as to the relations of authors and their readers, are affected very little by these scholastic controversies, and whatever interest or value they may possess will be entirely independent, for instance, of such a question as the correctness of the account given by Aulus Gellius (cited by me from Schmitz and Blass) of the correspondence between Aristotle and Alexander.

A similar word may be given in regard to the forms utilised for certain terms or names which have become familiarised with our English speech. My most captious critic stated, for instance, very flatly that my spelling of "Piræus" was "neither Latin, Greek, nor English." I can only explain that the name is so spelled in the latest edition of Lippincott's *Gazetteer*, and for such casual references as I had occasion to make, I had considered this work a sufficiently trustworthy authority for the spelling of a name which has found place in English narrative.

The same critic saw fit to assume that, because I had used a German editor's paraphrase in Latin of some saying of Suidas, I had imagined that this author had written in Latin; oblivious of the fact that, a few pages farther on, I had made specific references to the various writings of Suidas in Greek.

I refer to these details not because they are in themselves of any continued importance, but simply as examples of what struck me as disproportioned textual or verbal criticism of a volume which made no claims to textual authority. The text ought of course to have been correct, and it was certainly the case that some inexcusable errors had crept into it. Regrettable as these errors were, however, they did not as a fact affect the main theme of the essay or sketch. It is assuredly in order for a reviewer to call attention to any such oversights, but the reviewer who devotes the substance of the space at his command to a list of typographical errors or oversights, and who has hardly a word to say concerning the purpose of a book, or the extent to which such purpose has been carried out, loses sight, I think, of the real function of reviewing. He may make a good show of infallibility, or of authoritative knowledge, for himself or for his journal, but he certainly fails to give what the reader is entitled to expect, a just and well proportioned impression of the work under consideration.

Since the publication of the first edition, the larger work, as an introduction to which this essay was planned, *Books and Their Makers in the Middle Ages*, has been brought before the public, and has been received with a very satisfactory measure of appreciation. The readers of this last have occasionally raised question concerning a lack of harmony of design or of uniformity of method between the two books. It is in order therefore again to explain that they were never intended to serve as two sections of a continuous narrative. The record of the making and distribution of books during the centuries after 476, I have attempted to present with a certain degree of comprehensiveness; but for classic times, there are no materials available for any complete or comprehensive record. The sketch presented by me is, as stated, based upon a few references to literary methods which are scattered through the writings of classic authors. A much more comprehensive study of the conditions of literary production among the ancients could very easily, however, be prepared by a student who possessed the requisite familiarity with the literature of the time, and who

was sufficiently free from limitations as to eyesight to be able to trace and to verify his quotations for himself, and I trust that some competent scholar may yet interest himself in producing such a treatise.

NEW YORK, June 15, 1896.



PREFACE.

THE following pages, as originally written, were planned to form a preliminary chapter, or general introduction, to a history of the origin and development of property in literature, a subject in which I have for some time interested myself. The progress of the history has, however, been so seriously hampered by engrossing business cares, and also by an increasing necessity for economizing eyesight, that the date of its completion remains very uncertain. I do not relinquish the hope of being able to place before the public (or at least of that small portion of the public which may be interested in the subject) at some future date, the work as first planned, which shall present a sketch of the development of property in literature from the invention of printing to the present day, but I have decided to publish in a separate volume this preliminary study of the literary conditions which obtained in ancient times.

In the stricter and more modern sense of the term, literary property stands for an ownership in a specific literary form given to certain ideas, for the right to control such particular form of expression of these ideas, and for the right to multiply and to dispose of copies of such form of expression. In this immaterial signification, the term literary property is practically synonymous with la *propriété intellectuelle*, or *das geistige Eigenthum*.

It is proper to say at the outset that in this sense of the term, no such thing as literary property can be said to have come into existence in ancient times, or in fact until some considerable period had elapsed after the invention of printing. The books first produced, after 1450, from the presses of Gutenberg and Fust and by their immediate successors, were the Latin versions of the Bible, editions of certain of the writings of Cicero and of other Latin authors, and a few other works which, if not all dating back to

Classic periods, were, with hardly an exception, the works of writers who had been dead for many generations.

The editions printed of these books constituted for their owners, the printers, a property, which, as distinguished from their buildings and from their presses and type, might fairly enough be described as a “literary property.” It was, however, not until the publishers began to make arrangements to give compensation to contemporary writers for the preparation of original works, or for original editorial work associated with classic texts, and not until, in connection with such arrangements, the publishers succeeded in securing from the State authorities, in the shape of “privileges,” a formal recognition of their right to control the literary work thus produced, that literary property in the sense of intellectual property (*geistiges Eigenthum*), came into an assured and recognized, though still restricted existence.

Property of this kind, namely, in the form of a right, duly recognized by the State, to the control of an intellectual production, assuredly did not exist in Athens, in Alexandria, or in classic Rome. There is evidence, however, although often of a very fragmentary and inconclusive character, that in these cities and in other literary centres of the later classic world, there gradually came into existence a system or a practice under which authors secured some compensation for their labors.

Such compensation, doubtless at best but inconsiderable as it did not depend upon any legal right on the part of either author or publishers, must have varied very greatly according to the personality of the writer, the nature of the work, and the time and place of its production. The evidences or indications of payments being made to authors are mainly to be traced in scattered references in their own works. Such references are in the writings of the Greek authors, but infrequent, and in not a few instances the passages have been variously interpreted, so that it is difficult to base upon them any trustworthy conclusions.

It is only when we reach the Augustan age of Roman literature that we find, in the works of such authors as Cicero, Martial, Horace, Catullus, and a few others, a sufficient number of references upon which to base some theory at least as to the nature of the relations of the authors with their

publishers, and also as to the publishing and bookselling methods of the time.

I have attempted, in this volume, to present a sketch of these “beginnings of literary property”—that is, to outline the gradual evolution of the idea that the producer of a literary work, the poet, ποιητής, the maker, is entitled to secure from the community not only such laurel-crown of fame as may be adjudged to his work, but also some material compensation proportioned as nearly as may be practicable to the extent of the service rendered by him.

I have prefixed to the study of literary and publishing undertakings in Athens, Alexandria, and Rome, in which cities definite relations between authors and their public can first be traced, some preliminary sketches concerning the beginnings of literature in Chaldea, Egypt, India, Persia, China, and Japan. I admit at once that descriptions of legendary, prehistoric, or semi-historic periods, are not directly pertinent to my main subject. I have decided to include them, however, at the risk of criticism on the ground both of (necessarily) superficial treatment and of lack of relevance, because it seemed to me that the character of the earliest literary ideals and of the legendary literary productions of a people formed an important factor in helping to develop its later literary conditions, and was not without influence upon the relations of authors with their public, when such relations finally began to take shape.

It is, for instance, a matter of very decided interest, in tracing the literary history of a nation, to ascertain whether the source and initiative of its earliest literature was the temple, the court, or the popular circles outside of temple or court; whether the first compositions were produced by the priests, or by annalists or poets working under the immediate incentive of the favor of the monarch, or whether, like the epics of Greece and the folk-songs of China, they came from authors among the people, and were addressed directly to popular sympathies and to popular ideals.

It will be noted that I take pains to speak of “authors” and “public,” rather than of “writers” and “readers,” because it is evident that there were literary productions in advance, and probably very far in advance, of the discovery or evolution of written characters, and also that long after the use of script by authors, the greater portion of the public in all ancient lands received

their literature, not through their eyes, but through their ears,—not by reading the text, but by listening to reciters, story-tellers, and “rhapsodists.”

In the preparation of this brief record, which makes no claim to scholarly completeness, or to be anything more considerable than a sketch, I have found myself hampered by lack of adequate classical knowledge and by the lack of familiarity with the works of even the more important of the Greek and Roman writers. It is doubtless the case, therefore, that I have failed to discover or to utilize not a few passages and references that would have a bearing upon the subject; and I shall be under obligations to any scholarly reader who will take the trouble to call my attention to such omissions.

I have given, in a brief bibliography, the titles of the more important of the books upon the authority of which my sketch has been based. I desire, however, to express my special indebtedness to the following works, the full titles of which will be found in the bibliography: Clement’s *La Propriété Littéraire chez les Grecs et chez les Romains*, Schmitz’s *Schriftsteller in Athen*, Géraud’s *Les Livres dans l’Antiquité*, Birt’s *Das Antike Buchwesen*, Haenny’s *Schriftsteller und Buchhändler im alten Rom*, and Simcox’s *History of Latin Literature*.

As is indicated by the titles in the list of authorities cited, the writers who have given attention to the relations of authors of antiquity with their readers, have been almost exclusively German or French. I shall be well pleased if this brief study of mine may serve as a suggestion to some competent American or English scholar for the preparation in English of a comprehensive and final work on the subject.

G. H. P.

NEW YORK, November, 1893.



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PRINCIPAL WORKS REFERRED TO AS AUTHORITIES.

BARTHELÉMI, J. *The Travels of Anacharsis the Younger*. London, 1832.

BECKER, W. A. *Charicles, or Illustrations of the Private Life of the Ancient Greeks*. Trans. by F. METCALFE. 7th Edition. London, 1886.

—— *Gallus, or Roman Scenes of the Time of Augustus*. Trans. by F. METCALFE. 8th Edition. London, 1886.

BERGK, T. *Griechische Literatur Geschichte*. Leipzig, 1852.

BIRT, THEODOR. *Das Antike Buchwesen*. Berlin, 1882.

BREULIER, ADOLPHE. *Du Droit de Perpétuité de la Propriété Intellectuelle*. Paris, 1851.

BRUNS, C. G. *Die Testamente der Griechischen Philosophie*. 2 vols. Leipzig, 1872.

BUCHSENSCHUTZ. *Besitz und Erwerb im Griechischen Alterthum*. Leipzig, 1879.

BURSIAN, C. *Die Geographie Griechenlands*. München, 1882.

BURY, J. B. *A History of the Later Roman Empire*. 2 vols. London, 1889.

CAILLEMER. *La Propriété littéraire à Athènes*.

CASSIODORUS. *The Letters of*. Translated, with an introduction, by THOMAS HODGKIN. London, 1886.

CATULLUS. Edited by RIESE. Leipzig, 1884.

—— Edited by ELLIS. Oxford, 1867.

CICERO. *Letters*. Edited by WATSON. London, 1852.

CLEMENT, PAUL. *Étude sur le Droit des Auteurs, Précédée d'une Dissertation sur la Propriété Littéraire chez les Grecs et chez les Romains*. Grenoble, 1867.

CRUTTWELL, C. T. C. *History of Roman Literature*. New York, 1887.

DAVIDSON, J. L. S. *The Life of Cicero*. New York and London, 1894. (From advance sheets.)

DONALDSON, J. W. *The Theatre of the Greeks*. 8th Edition. London, 1876.

Encyclopædia Britannica. 9th Edition. Edinburgh and New York, 1884-1892.

FREEMAN, E. A. *History of Federal Government*. 2d Edition. London, 1892.

FROMMANN, E. *Aufsätze zur Geschichte des Buchhandels im 16ten Jahrhundert*. Jena, 1876.

FRONTO. Edited by NABER. Leipzig, 1867.

GELLIUS, AULUS. *Noctes Atticæ*. Edited by HERTZ. 2 vols. Leipzig, 1865.

GÉRAUD, H. *Les Livres dans l'Antiquité*. Paris, 1840.

GIBBON, E. *The Decline and Fall of the Roman Empire*. American Edition. 6 vols. New York, 1889.

HAENNY, LOUIS. *Schriftsteller und Buchhändler im Alten Rom*. Leipzig, 1885.

HERODOTUS. *Histories of*. Trans. by RAWLINSON. 4 vols. New York, 1886.

HODGKIN, THOMAS. *Theodoric the Goth*. New York and London, 1890.

HORACE. Edited by MÜLLER. 2 vols. Leipzig, 1874.

—— *Odes and Epodes*. Edited by WICKHAM. London, 1874.

JEVONS, F. B. *History of Greek Literature*. New York, 1886.

JOHNSON, A. J. *The Universal Encyclopædia*. 8 vols. New York, 1884.

JUVENAL. Trans. by GIFFORD. London, 1852.

—— Edited by WEIDNER. Leipzig, 1873.

- KAPP, FRIEDRICH. *Geschichte des Deutschen Buchhandels bis in das 17te Jahrhundert*. Leipzig, 1886.
- KARPELES, GUSTAV. *Allgemeine Geschichte der Litteratur*. 12 parts. Berlin, 1890.
- KLOSTERMANN, R. *Das Urheberrecht und das Verlagsrecht*. Berlin, 1871.
- LAËRTIUS, DIOGENES. *De Vitis, Dogmatibus et Apothegen. Clar. Philos.*
Edited by HÜBNER. 4 vols. Leipzig, 1831.
- LAYARD, Sir A. H. *Nineveh and Babylon*. American Edition. New York, 1852.
- LECKY, W. E. H. *A History of European Morals*. American Edition. 2 vols. New York.
- LOUISY, M. P. *Le Livre, et les Arts qui s'y Rattachent*. Paris, 1886.
- MAHAFFY, J. P. *Social Life in Greece from Homer to Menander*. 6th Edition. London, 1891.
- *Greek Life and Thought, from the Age of Alexander to the Roman Conquest*. London, 1892.
- *The Greek World under Roman Sway*. London, 1893.
- MARTIAL. Edited by PALEY. London, 1875.
- Edited by FRIEDLÄNDER. 2 vols. Leipzig, 1886.
- MEINEKE, A. *Historia Comædiæ Græcæ* (in the *Comicorum Græc. Fragmenta*). Berlin, 1857.
- MÜLLER, J. *Die Lustspiele des Aristophanes*. Leipzig, 1868.
- MÜLLER, MAX. *History of Ancient Sanskrit Literature*. London, 1860.
- OMAN, C. W. C. *The Story of the Byzantine Empire*. New York and London, 1892.
- PLATO. *Works*. Trans. by JOWETT. 6 vols. Oxford, 1889.
- PLAUTUS. Edited by FLECKEISEN. 2 vols. Leipzig, 1890.
- PLINY. *Works*. Trans. by MELMOTH. 5 vols. London, 1878.
- PLUTARCH'S *Lives*. Trans. by CLOUGH. 5 vols. Boston, 1878.

- RAGOZIN, ZENAÏDE. *The Story of Chaldea*. New York, 1886.
- *The Story of Assyria*. New York, 1887.
- RAWLINSON, GEORGE. *History of Ancient Egypt*. 2 vols. New York, 1890.
- RAWNSLEY, H. D. *Notes for the Nile, together with a Metrical Rendering of the Hymns of Ancient Egypt and of the Precepts of Ptah-Hotep*. London and New York, 1892.
- Records of the Past*. Edited by S. BIRCH. 12 vols. London, 1882.
- RENOUARD, AUGUSTIN CHARLES. *Traité des Droits d'Auteurs*. 2 vols. Paris, 1838.
- RITTER, H. *History of Ancient Philosophy* (translation). 4 vols. Oxford, 1849.
- ROMBERG, EDOUARD. *Études sur la Propriété Artistique et Littéraire*. Bruxelles, 1892.
- ROZOIR, A. *Dictionnaire de la Conversation*, etc. Paris, 1838.
- SCHAEFER, A. *Demosthenes und Seine Zeit*. 3 vols. Leipzig, 1858.
- SCHÖLL, A. *Aufsätze zur Klass. Liter.* Berlin, 1884.
- *Hist. Lit. Græc.* 3 vols. Berlin, 1886.
- SCHMITZ, WM. *Schriftsteller und Buchhändler in Athen und im übrigen Griechenland*. Heidelberg, 1876.
- SIMCOX, G. A. *History of Latin Literature*. 2 vols. London, 1883.
- SMITH, GEORGE. *The Chaldean Account of Genesis*. London, 1880.
- STATIUS. Edited by MÜLLER. Leipzig, 1871.
- STRABO. *Works*. Edited by MEINEKE. 3 vols. Leipzig, 1866.
- SUETONIUS. *Lives of the Twelve Cæsars*. Trans. by THOMSON. London, 1855.
- SUIDAS. *Lexicon*. Edited by BRAUN. (Cited by Schmitz.) Leipzig, 1832.
- WEHLE, J. H. *Das Buch, Technik der Schriftstellerei*. Leipzig, 1879.
- WILLIAMS, S. WELLS. *The Middle Kingdom: A Survey of the Geography, Government, Arts, Literature, etc., of the Chinese Empire*. Revised

Edition. 2 vols., 8vo. New York, 1883.

XENOPHON. *Works*. Trans. by J. S. WATSON. 3 vols. London, 1862.

ZELLER, E. *Die Philosophie der Griechen*. 2 vols. Leipzig, 1872.





AUTHORS AND THEIR PUBLIC IN ANCIENT TIMES.

CHAPTER I.

The Beginnings of Literature.

WHEN Faust was puzzling his brain concerning the everlasting problem of the nature and origin of things, we find him questioning the utterance of the Hebrew seer: "In the beginning was the Word." "No," he says, "this must be wrong. We cannot place the word first in the scale of causation. The writer should have said 'In the beginning was the Thought.'" On further reflection, this statement also seemed to him inadequate. Is it the Thought that creates and directs all things? Shall we not rather say "In the beginning was the Power?" Even this interpretation, however, fails to stand the test, and, after further wrestling, Faust presents as his solution of the problem the statement, "In the beginning was the '*Deed*.'"

I shall not undertake to consider in this monograph any questions concerning the line of evolution of the universe, and Faust's questionings are recalled to me only because his final answer is in accord with the experience of man in what he knows of the development of himself, considered either as an individual or as a race.

Assuredly the first thing of which man was conscious was not the word, written or spoken, nor the thought behind the word, nor the power back of the thought, but the deed, which could be seen and felt and estimated. Conscious thought came much later, and the word spoken and the word written, later still. A mental conception, realized as such, and finally taking form as a production of the mind, is a development of a comparatively advanced stage of human existence, the youth of the individual or of the race, while for any definition of the nature of a mental production, and of its just relation to the individual by whom and to the community for which it was produced, we must look still further forward.

Literature—that is, mental conceptions in literary form—had been known for many centuries before the literary idea, and any individual ownership in the form in which such idea was expressed, had been thought out and defined. Literary property—that is, an ownership, on the part of the

producer, in a definite expression of literary ideas—dates, nevertheless, from a comparatively early period, and, in one sense, may be said to have existed from the time in which the first “poet” (maker or creator) received his first compensation from a grateful public or an appreciative patron. In the more precise interpretation of the term, it is doubtless more correct, however, to say that literary property dates from the time when authors first received compensation, not from the state or from individual patrons, but from individual readers throughout the community, who were ready to make payment in return for the benefit received. The labor, however, of placing the literary production in the hands of the reader and of collecting from these the compensation for the authors, required an intermediary,—some one to create the machinery for distribution and collection, and usually also to assume the risk and investment required. Literary property could, therefore, come into an assured existence only after, or simultaneously with, the evolution of the publisher. This, then, is the chain of causation at which we have arrived: The deed, the thought awakened by the deed, the consciousness of the thought, the power, first of oral and then of written expression of the thought (usually the description of the deed), which marks the appearance of the poet, the “maker” or author; the consecration of this expression or literary production to a definite purpose, usually the glorification of an individual in the commemoration of his deed; the habit of receiving from such individual a tangible recognition; the widening of the purpose of the production and its dedication to the community as a whole; the giving, by the community in return, of a reward or *honorarium*; the evolution of the publisher who develops the system under which the amount of the *honorarium* secured for the author is proportioned (though somewhat roughly) to the number of persons benefited by his productions.

It is when the higher stage of civilization has been reached which is marked by the appearance of the publisher, that we have a true beginning of property in literature.

Centuries must, however, still elapse before we find record of any noteworthy attempts to arrive at precise definitions of the nature and origin of literary property, or to analyze the proper relations of the literary producer as well to the generation for which he originally worked, as to such later generations as derived benefit from his creations.

Chaldea.—The earliest literature of which the archæologists have thus far found trustworthy evidence appears to be that of the Chaldeans. Their “books,” consisting of baked clay tablets, on which the cuneiform characters had been imprinted with a stylus, were well fitted to withstand the ravages of time, being practically imperishable by either fire or water. The important discovery of specimens of the earlier literature of Chaldea was due to Sir Henry Layard. In 1845 he was fortunate enough, while investigating the mounds at Koyunjik (ancient Nineveh) now identified with the ruins of the palaces of Sennacherib and Asshurbanipal (B.C. 650), to stumble into the chambers which had contained the royal library. Although he was not himself able to decipher the early cuneiform characters with which were covered the masses of clay tablets and fragments of tablets brought to light by his excavations, he readily recognized the importance of the discovery, and took pains to forward to the British Museum a large number of those in the best state of preservation. There they lay until 1870, when George Smith undertook the task of arranging and deciphering them. Smith had been originally employed in the Museum as an engraver, but in the course of his work in engraving cuneiform texts, he had become interested in their study, and by dint of persistent application he soon came to be one of the few acknowledged authorities on the subject.

Months of patient labor were given to the piecing together of the thousands of scattered fragments contained in Layard’s shipment. Then, owing to the enterprise of the London *Daily Telegraph* (which in 1876 made a novel precedent in journalism by printing from week to week, in juxtaposition with the news of the day, decipherings of the Chaldean writings of five thousand years back), Smith was enabled to go to Mesopotamia, and in three successive journeys very largely to increase the collections of tablets, which finally comprised over 10,000 specimens.

Smith’s untimely death by fever during his third sojourn in the East put a check for a time upon both the collecting and the deciphering, but the latter was later continued by workers who became equally skilled, and of a large number of the tablets translations have been put into print. During the past ten years, a great development has been given to the collecting and deciphering of the tablets by the labors of such scholars as Dieulafoy, Fritz Hommel, John P. Peters, and others.

Smith had found specimens of Chaldean literature in such departments as agriculture, irrigation, astrology, the science of government, the art of war, prayers and invocations to the gods, and above all and most frequent, records of campaigns. There were also a few tablets which appeared to be examples of children's primers and children's scribbling. As far as it was practicable to judge from those fragments that have been preserved of the literature of the nation, the several works had for the most part been prepared under the instructions and often apparently for the special use of successive monarchs or of the rulers of provinces. These books existed, therefore, in strictly "limited editions," comprising either single copies or but two or three copies for the royal residences. The writers were apparently for the most part officials in the public service and often members of the royal household. On the campaigns, the king, or the commander who took the place of the king, appears to have been accompanied by scribes, who were expected to keep note of the number of cities taken, the enemies slain, and the prisoners captured, and of the amount of the spoils appropriated, and the records of campaign triumphs form by far the largest portion of the literature discovered. These campaign narratives finally came to take the shape of annual records, often beginning with the formula "and when the springtime came, the time when kings go out to war."

The next largest division of the Chaldean literature is made up of invocations to the gods, narratives of the doings of the gods, and prayers and psalms. Many of these last bear a very close family resemblance to the war psalms of the Hebrews, the composition of which took place ten or twelve hundred years later. This religious literature was the work of the priests whose annual stipends came from the royal treasury, augmented probably by the offerings of the faithful. Remains of these priestly libraries were discovered by Layard and Smith in the ruins of Agadê, Sippar, and Cutha.

In the records that have come down to us, there is absolutely no trace of compensation being paid for the different classes of literary undertakings except in the shape of annual stipends to the writers, whose work included other services besides their literary labors, although it is, of course, probable that special gifts may have been given from time to time for exceptionally eloquent and satisfactory accounts of successful campaigns. Whatever property existed in these productions must, therefore, have been

vested in the king, but this hardly constituted a distinctive feature of literary property, as the kings claimed and exercised a complete control over all the property and all the lives within their realms.

The earliest specimen of Chaldean literature which has as yet been discovered, and which is probably the oldest example of writing at present known, is given on a tablet of baked clay now in the British Museum. This tablet was made up by George Smith out of a mass of scattered fragments which had been brought from the Assyrian mounds. In going over the collection of inscribed tiles, Smith came across a small fragment the inscription on which evidently referred to the Flood, and in the course of his own three sojourns in Mesopotamia he was fortunate enough, after many months of patient labor, to find a large portion of the fragments required to complete the tablet and to give the main portion of the narrative. Such success could hardly have been possible if the royal library of Nineveh had not contained several copies of the Flood tablet, as was evinced by the finding of duplicates or triplicates of certain of the portions. The tablet, as now put together, comprises eighteen pieces, and presents, notwithstanding a number of gaps, a fairly complete account of the Flood. The incidents are so far paralleled by those given in the Genesis narrative, that it is evident either that the two scribes derived their information from the same sources, or that the Hebrew story has been based upon the Chaldean record. According to Lenormant, Smith, and Hommel, the former was inscribed about 4000 B.C., in that case ante-dating by more than two thousand years the actual writing of the Book of Genesis. Ragozin speaks of “the ancestors of the Hebrews, during their long sojourn in the land of Shinar, having become familiar with the legends and stories contained in the collection of the Assyrian priests, and after working these over after their own superior religious lights, having shaped from them the narrative which was written down many centuries later as part of the Book of Genesis.”^[1]

Egypt.—The literature of Egypt probably ranks next to that of Chaldea in point of antiquity. In fact, not a few of the archæologists have contended that the civilization of Egypt was of still earlier development than that of the countries of Mesopotamia or of any other portion of the world.

The earliest Egyptian writings were, with few exceptions, theological in their character and appear to have originated in the temples. First among the

authors of Egypt stands, according to tradition, Thoth-Hermes, the ibis-headed god of wisdom and of literature, the “Lord of the Hall of Books.” His companion is the beautiful Ma, goddess of truth and justice, a very proper associate for the founder of a nation’s literature.

By later generations, Thoth-Hermes came to be known as Hermes Trismegistus, the god of threefold greatness or majesty. The forty-two works, the authorship of which is ascribed to Thoth or Trismegistus, formed, according to Karpeles, a kind of national encyclopædia, presenting the canon of the faith and the knowledge of ancient Egypt.

Of these so-called Hermetic books, only portions appear to have remained in existence with the beginnings of the historic period, but of these portions certain fragments have been preserved for the inspection of scholars of to-day. In the examination in 1892 of some newly discovered tombs, papyri were found which proved to contain religious writings based upon the Hermetic books, and which were themselves the work of scribes writing during the 4th dynasty, 3733-3566 B.C.

The founder of the 4th dynasty was Khufa, better known as Cheops, the builder of the Great Pyramid, who is also ranked as an author, and to whose reign belongs the first record of the famous *Book of the Dead*. This *Book of the Dead* consisted of invocations to the deities, psalms, prayers, and the descriptions of the experiences that awaited the spirit of the departed in the world to come, experiences that included an exhaustive analysis of his past life and his final judgment for the life hereafter. The Egyptian title of the book was, according to Karpeles, *The Manifestation to the Light*, that is, the book revealing the light. Rawlinson specifies for it another name, *To Go Forth from Day*. Portions of the book of the dead are said to have been written by Thoth, and other portions are spoken of as “the composition of a great god.” These belonged to what might be called the permanent part of the text or Ritual. Other divisions or pages containing special references to the deceased would, of course, be distinctive in each case. The copies prepared for any particular funeral were more or less comprehensive in their matter and more or less elaborate and costly in their form according to the wealth and importance of the departed, and according also to the probable buying capacities of the mourners. The material written upon was always papyrus, while for the covers, tinted or stained sheepskin was used. One copy of the book was always placed in the tomb, as a safe-conduct for the

pilgrim soul on its journey through *Amenti* (Hades), and for its guidance in the world to come. This practice has secured the preservation in the tombs of a great number of copies of the *Book of the Dead*, more than one half of the existing papyri being transcripts of different portions of its text. The *Book of the Dead* enjoys the distinction of being the first literature of the regular sale of which there is any evidence. The undertaker, acting probably under the instructions of the priests, made a business of disposing of copies of the “book” among the mourners and friends of the deceased, for whom it served as a memorial of the departed. The Egyptian undertaker, distributing in this manner from a period three thousand years or more before the Christian era, authorized or authenticated copies of the sacred scriptures, accompanied in some cases by memorial pages concerning the deceased, must take rank as the first bookseller known to history. I speak of authenticated copies, for it is probable that the authorized text of the scriptures was kept in the temples or in the colleges of the priests, and that the copies were prepared by the priests themselves or by scribes working under their supervision and direction. In this case the proceeds of the sales were doubtless divided between the priests and the undertakers, and the priests’ portion may to some extent have found its way into the treasury of the temple. The scribes employed were sometimes assistants or students attached to the temple, but not infrequently slaves, although later the work of scribes came to be regarded as honorable and as semi-professional in its character, and some among them held high stations. The control exercised by the priests over the authorized texts of their sacred scriptures, including certain writings in addition to those belonging to the ritual of the dead, must have given to them a practical copyright of the material. The most complete copy of the *Book of the Dead*, ranking as one of the oldest works of literature in the world, is now in the British Museum. A small edition has been printed under the editorship of Mr. Budge, in precise fac-simile.

Apart from the *Book of the Dead*, the oldest book of which there is record in the literature of Egypt, and one of the oldest in the known literature of the world, is a collection of *Precepts*, bearing the name of Ptah-Hotep. Their author was a viceroy or governor of Egypt, and was a younger son of Assa, the seventh king of the 5th dynasty, whose reign began 3366 B.C. The Prisse papyrus, discovered at Thebes in 1856, and now in the Bibliothèque Nationale in Paris, is said by its discoverer, Chabas, to be the oldest papyrus in existence, and to have been written about 2500 B.C.^[2] This papyrus

contains a copy of these *Precepts* of Ptah-Hotep, which have apparently retained their interest for Egyptian readers for nearly nine centuries, and which now, more than five thousand years after their first publication, have been issued, for the benefit of modern readers, in French and English versions.

The *Precepts* are characterized by simplicity, directness, high-mindedness, great refinement of nature, and a keen sense of humor, and they give to the reader a very pleasant impression of their noble author. The great importance laid by Ptah-Hotep upon courtesy of manner and of action recall to mind Lord Chesterfield, but the courtly Egyptian had a heart and convictions. English and American readers are under obligations to the Rev. H. D. Rawnsley not only for placing before them this antique and distinctively interesting production, but also for his excellent metrical versions of some of the representative hymns of Ancient Egypt.^[3] The original translation from the papyrus of the *Precepts* was made by P. Virey for *Records of the Past*. It is Virey's impression that the *Precepts* were in part original with the Viceroy, and in part collected by him from older sources. In reading these pithy words of wise counsel of the shrewd and kindly old Egyptian, one naturally recalls the proverbs ascribed to King Solomon, the sayings of Confucius, and certain of the utterances of Socrates. I do not mean that Ptah-Hotep, on the strength of the fragmentary utterances that have come down to us, is to be ranked with these great teachers, but that it is interesting to note how early in literature favor was found for the form of expressing opinions, or of giving counsel in the form of maxims or proverbs. The proverbs of Solomon are said to have been written about 1000 B.C. The conversations of Confucius were held about 500 years later, and the utterances of Socrates were closed with his death, 399 B.C.

Rawnsley gives, among other renderings, metrical versions of the following specimens of early Egyptian poetry: "A Festal Dirge of King Antef," 2533-2466 B.C.; "The Song of the Harper," about 1700; "Hymn to Pharaoh," about 1400; "Dirge of Meneptah," about 1333; "Hymn to Amen Ra," about 1300; "Hymn to the Nile," about 1300; "Lamentations of Isis and Nepathys," about 320; "The Poem of Penta-ur on the Exploits of Rameses II.," written in 1326 B.C. The last-mentioned is interesting as being almost the sole example of an Egyptian epic. It is not clear whether Penta-

ur won his position as court poet-laureate by the production of this poem, or whether, being already laureate, the epic was written as one of his official compositions. Under the instructions of the king, however, whose exploits it commemorated, the poem was made a national epic, and copies of it appear to have been officially distributed throughout the kingdom. The reign of Rameses, which covered the years 1350-1300 B.C., marked, according to Rawlinson and Karpeles, the culmination of a period which was important not only for success in war, but for literary production. Under Rameses, literary activity, no longer confined to the temple, was in part at least transferred to the court. He collected about him scholars and philosophers, and gave great rewards for successful literary efforts. The approval given by royalty to Penta-ur's poem doubtless secured for the author much better results than would have come to him through the royalty enjoyed under the modern literary system.

The king took pride in the great library which had been brought together under his instructions. Over the entrance to the great hall of the library was engraved the inscription, "A place of healing for the soul."

By some historians, Rameses II., this king of a long reign and of great exploits, the patron of literature, whose massive and well-preserved figure has only recently been disentombed, has been identified with the Pharaoh of the Exodus. I believe, however, that the better authorities have decided that the Exodus took place under the Pharaoh who was the son of the great Rameses.

Rawlinson speaks of the Egyptians as possessing at a very early date an "extensive literature, comprising books on religion, morals, law, rhetoric, arithmetic, mensuration, geometry, medicine, books of travel, and above all, novels!" He says further, however, that, as far as can be judged from the specimens which have been preserved, "the merit of the works is slight. The novels are vapid, the medical treatises interlarded with charms and exorcisms, the travels devoid of interest, the general style of all the books forced and stilted."

Rawlinson adds that, while "intellectually the Egyptians must take rank among the foremost nations of remote antiquity, they cannot compare with the great European races whose rise was later, the Greeks and Romans.... Egypt may in some particulars have stimulated Greek thought, directing it

in new lines, and giving it a basis to work upon; but otherwise it cannot be said that the world owes much of its intellectual progress to this people, about whose literary productions there is always something that is weak and childish.”^[4]

On the other hand, the long list of distinguished Greeks who sought learning in Egypt shows the respect in which Egyptian culture was held. In the list of the subjects considered in Egyptian literature, Rawlinson appears also to have overlooked astronomy, in which the investigations of Egyptian scholars were certainly of the first importance. Notwithstanding the production of a very considerable body of literature, there appears to be no evidence of any compensation being secured by the authors, or of literary productions taking shape as property. The scribes, who did the copying, must of course have been paid, for the Egyptians were probably not able, as were later the Romans, to secure the labor of skilled and educated slaves. These scribes were for the most part natives and freemen, and they came to form a very important class, in which class the most important were those engaged in what might be called the civil service of the government. Of payment to the authors, however, there is no trace, and they must have written solely for their own satisfaction or for hopes of favor. There is also nothing to inform us of the manner in which the copies of the books which had been “manifolded” were distributed amongst the readers, and we can only conjecture the existence of collections or libraries from which the books could be borrowed, or a practice on the part of the wealthy writers (a practice not unknown in modern times) of a wide distribution of presentation copies to friends whose appreciation was hoped for.

The royal library of Rameses contained, says Karpeles, works under such headings as annals, sacred poetry, royal poetry (*i. e.*, poetry addressed to the king), travels, works on agriculture, irrigation, and astronomy, correspondence and fiction.

Rawlinson speaks of some characteristic tales which were preserved from generation to generation, such as the *Tale of the Two Brothers* (charmingly narrated by the late Amelia B. Edwards), *The Doomed Prince*, *The Possessed Princesses*, etc. He also refers to collections of correspondence apparently preserved to serve as models or patterns, after the fashion of the “complete letter-writers” of to-day.

Karpeles points out that the early Egyptian literature was particularly rich in folk-tales, or *Märchen*. It is possible that in Egypt, as in Greece and Persia, the folk-tales as well as the folk-songs, and such an occasional epic as the Poem of Penta-on, were recited to the people by peripatetic reciters or rhapsodists. There are references to such recitations taking place at court and at the banquets of the rich.

It would have been interesting if it had occurred to some Hebrew scribe, endowed with a sense of humor, to send for the royal library in Thebes, as a remembrance of the guests who had gone out of Egypt, an Egyptian rendering of the Book of Exodus, or even of the Song of Miriam.

China.—The dates of the beginnings of literature in China are uncertain. If we could accept as authentic the claims of the Chinese historians, the origins of their civilization must be traced back to a period antedating by thousands of years the accepted records of Chaldea and Egypt. It is, however, I understand, the present conclusion of the archaeologists that the beginnings of the development of the civilization of the Chinese, as also of that of the East Indian peoples, are to be placed at a time considerably later than the date of the earliest records of the peoples of Mesopotamia. According to certain authorities, written characters existed in China as early as 5000 B.C. According to others, they first took shape more than a thousand years later. The Emperor Fu-hi, reigning about 3500 years before Christ, is credited with the invention of the Chinese alphabet. As the Emperor was walking near his palace, possibly musing on the inconveniences of ruling a country without an alphabet, his attention was attracted by the beautiful markings of a very large toad that he encountered. He took the beast home with him, and (under the guidance of the proper deity) evolved from the designs on the toad's back the figures of the original Chinese characters. He very probably said to himself (paraphrasing the old nursery saying), "It looks like an alphabet, and it hops like an alphabet, why not call it an alphabet?" One can imagine a scholar in later years, puzzling over the lengthy series of Chinese characters, wishing that his Imperial Highness had happened to meet a smaller or a less variegated toad.

About the year 3000 B.C., the Emperor Hoang-ti is said to have invented the decimal system and the measurement of time, and also to have completed the organization of the Empire. If this date is to be relied upon,

the organization of the Chinese State was taking shape about eight centuries after the time of the great Sargon of Agadê, who brought to its highest power the earlier Chaldean empire. The national ballads or folk-songs, later collected under the title of the *Book of Odes*, are believed by Legge to antedate the Empire—that is, to have come into circulation while the territory was still separated into a number of independent states or principalities. These folk-songs were collected by the minstrels and historiographers working under the direction of the feudatory princes, and the complete collection, when reshaped by Confucius, is said to have comprised as many as three thousand songs. The writer of the article on China in the *Encyclopædia Britannica* (9th edition) speaks of the collection as probably antedating any other known work of literature. The folk-songs themselves certainly existed from a very early date, but, according to Karpeles, the collection did not take the form of a book until after 1000 B.C. Karpeles believes that the earliest known work in Chinese literature is the *Y-king*, the *Book of the Metamorphoses*, or of *Developments*, which dates from 1150 B.C., about two centuries earlier than the generally accepted date of the Homeric poems. The author, Wang-wang, having been put into prison for some political offence, employed his enforced leisure in working out a philosophical system based upon the maxims of the Emperor Fu-hi. ^[5]

The *Book of the Developments* continued in high honor for many centuries, and early in the fifth century B.C. was reissued by Confucius, with an elaborate analysis and commentary, serving to make its teachings available for later generations. He also issued a “final edition” of the *Book of Songs*, which comprised, out of the three thousand of the old collection, the three hundred which were best worth preservation. Confucius takes rank in China as practically the founder of its literature, of its system of morals, and of its religious ideal or standard. The name Confucius is the Latinized form of Kung Fu-tsze—Kung, the teacher or master. He was free, says one of his disciples, from four things: foregone conclusions, arbitrary determinations, obstinacy, and egoism. A good American of the present time may express the regret that Confucius, or some disciples like him, had not been spared to occupy seats in the Senate Chamber at Washington.

What is known as the religion of Confucius, comprises in substance the old-time national or popular faith freshly interpreted into the thought and language of the later generation, and shaped into a practical system of

morals as a guide for the action of the state and for the daily life of the individual citizen.

It is interesting to compare the different forms taken by the earliest literary traditions of the different peoples of antiquity. The Greek brings to us as the corner-stone of his literature and of his beliefs, the typical epics, the *Iliads* and the *Odyssey*; poems of action and prowess, commemorating the great deeds of the ancestors, and describing the days when men were heroes, and heroes were fit companions and worthy antagonists for the gods themselves.

The imagination of the East Indian has evolved a series of gorgeous and grotesque dreams, in which all conditions of time and space appear to be obliterated, and in which the universe is pictured as it might appear in the visions of the smoker of haschisch. It is difficult to gather from these wild fancies of the earlier Indian poets (and the earlier writers were essentially poets) any trustworthy data concerning the history of the past, or any practical instruction by which to guide the life of the present. The present is but a tiny point, between the immeasurable æons of the past and the *nirvana* of the future, and seems to have been thought hardly worthy the attention of thinking beings.

The Egyptian literary idea has apparently been thought out in the temple, and it is from the priests that the people receive the record of the doings of its gods and of the immeasurable dynasties of monarchs selected by the gods to express their will, while it is also to the priests that the people must look for instruction concerning the duty of the present.

The Assyrian records read, on the other hand, as if they were the work of royal scribes, writing under the direct supervision of the kings themselves. The gods are described, and their varied relations to the world below are duly set forth. But the emphasis of the narrative appears to be given to the glory and the achievements of such great monarchs as Sargon and Assurbanipal, as if a long line of scribes, writing directly for the king's approval, had continued the chronicles from reign to reign.

The early literary and religious ideals of China took a very different form. We find here no priestly autocracy, controlling all intellectual activities and giving a revelation as to the nature of the universe, the requirements of the gods, and the obligations of men, obligations which have never failed to include the strictest obedience to the behests of the priests, the

representatives of the gods. There are no court chronicles, dictated under royal supervision, and devoted not to the needs of the people, but to the glorious achievements of the monarchs. Nor is there any great epic, commemorating the deeds of heroes and demi-gods. In place of these we find what may be called a practical system of applied ethics. Confucius was evidently neither a visionary dreamer nor a poet, nor did he undertake to establish any priestly or theological authority for his teaching. He gives the impression of having been an exceptionally clear-headed and capable thinker, who devoted himself, somewhat as Socrates did a century later, to studying out the problems affecting the life of the state and of the individual. With Socrates, however, the chief thing appears to have been the intellectual interest of the problem, while with Confucius, the controlling purpose was evidently the welfare of his fellow-men. It was his aim, as he himself expressed it, through a rewriting of the wise teachings left us by our ancestors, so as to adapt them to the understanding of the present generation, to guide men to wise and wholesome lives, and to prepare them for a better future. ^[6]

The work of Confucius stands as the foundation-stone of the literature, the morals, and the state-craft of China. It was continued by such writers as Mencius, 350 B.C., and Tsengtze, 320 B.C.

The works of the earlier authors secured, we are told, an immediate circulation, but we have no knowledge as to the methods employed for their distribution. It seems probable that in the earlier as in the later centuries, the authors whose works found approval with the authorities received directly from the state compensation for their literary and philosophic labors.

The material used for the earliest known writings was made from bamboo fibre, and was prepared in the shape of tablets. Early in the third century B.C. (curiously enough, during the reign of Hwang-ti, the destroyer of literature), brushes were invented, with which characters could be traced upon silk. The bamboo was either scratched upon with a sharp stylus, or the characters were painted upon it with a dark varnish. Sometimes also the characters were burned into the bamboo, with a heated metal stylus. India ink was first used in the seventh century. The invention of paper took place about 100 B.C., the first material utilized for the manufacture being bark, fishing-nets, and rags. Printing from solid blocks was done as early as the first century A.D. The invention of the art of printing from movable type is

credited to a blacksmith named Pi-Shing. The blacksmith's first books were turned out towards the close of the tenth century A.D., or early in the eleventh century, more than three centuries before the presses of Gutenberg began their work in Mayence.

The movable type used by Pi-Shing were made of plastic clay. At the same time, or shortly thereafter, porcelain type were utilized. The printing from movable type never seems to have developed to such extent as to supersede block printing. The Emperor Kang-He had engraved about two hundred and fifty thousand copper type, which were used for printing the publications of the government. These type were afterwards melted for use as *cash*, but were replaced by his grandson with type made from lead.^[7]

There is record of books being printed in Corea (at that time a province of the Empire) from movable clay type, as early as 1317 A.D.^[8]

Literature has always been an honored profession in China, and seems even in the earliest times to have attracted a larger proportion of workers than, during the same period, were engaged in literary pursuits in any other countries in the world. The mass of literature was very much added to after the introduction of Buddhism into the country, which took place during the first century of the Christian era. Karpeles states that a selection of the early Chinese classics, with commentaries, undertaken under the direction of one of the emperors in the eighteenth century, would, it was calculated, comprise when completed, 163,000 volumes. By the year 1818, there had been published of the series, 78,731 volumes.^[9] From this enormous mass of material a few books only stand out as possessing distinctive importance by reason of their influence on the thought and the life of many generations.

There are the five *King* and the four *Schu*, or “books.” The term “king” means literally a web, a thing woven, or fabricated. Its use in this connection recalls the ῥαπτός of the Greek rhapsodists, a term which, originally meaning a thing spun or a yarn, came also to stand for a literary production of a certain class, a “yarn” that could be recited. The five *King* were the “webs” or productions of wise and holy writers, but the names of these writers have not been preserved, even as a tradition. The first in order is the *Y-king*, already mentioned, the *Book of the Developments*, which is much the oldest in the series. The second is the *Schu-king* or *Book of Chronicles*, which begins its narrative with the time of Noah, and gives the

record of the dynasties from 2400 to 721 B.C. In addition to the historical chronicles, the *Schu-king* contains, in the form of dialogues between the emperors and the councillors, the instruction in the principles of state-craft, in philosophy, in the science of war, in music, in astronomy, and in general culture. The headings of some of the chapters recall the matters treated in *The Prince* of Machiavelli. The following “royal maxims” do not, however, sound Machiavellian: “Virtue,” says the great councillor Yih, speaking to the emperor, “is the foundation of your realm”; “The ruler must lead his people in the paths of virtue”; “Guard yourself from false shame, and if you have committed an error, hasten to make frank acknowledgment of the same. Otherwise you will mislead your subjects.”^[10]

The third of the canonical books is the *Schi-king* or *Book of Songs*, already referred to. This presents the selection made by Confucius of the hymns, ballads, and folk-songs collected from the earliest generations. The fourth is the *Tschun-tshien*, or *Spring and Autumn Year-Book*, which is ascribed to Confucius. It is a brief chronicle of events covering a space of 240 years. The fifth is the *Li-ki*, or *Book of Ritual*, or of *Conduct*. This gives detailed instructions concerning the proper ceremonials for all events of life, from the cradle to the grave.

With these classics should be grouped certain books prepared by the followers of Confucius, the most important of which, the *Lün-yü*, or *Conversations*, is a record of the instruction given by Confucius to his pupils in the form of talks. In these conversations we find questions shaped in a method quite Socratic. With this should be grouped the *Mengtsze*, the record of the work of the philosopher Mencius. His instruction seems, like that of his great forerunner, to have been very practical in its character. Associated with the earlier teachings of Confucius, the instruction of Mencius was accepted as the basis of the moral and the educational system of the nation.

The enormous respect which the Chinese have given to the works produced during their classical period is believed by authorities like Williams and Wade to have exercised an influence on the whole detrimental to the development and to the originality of their later literature.

The first active literary period preceded Confucius, 500 B.C. From this period have been preserved the classics already referred to. The next

important epoch is that of the “interpreters,” the counsellors and the lawgivers, extending from Confucius to Mencius, 350 B.C. They were followed by a long line of annalists and commentators, whose work came to an abrupt close with the reign of the Emperor Che Hwang-ti, 221-226 B.C. Hwang-ti was evidently a man with opinions of his own. He objected to what seemed to him an exaggerated and mischievous reverence for the “good old times,” and he proposed to discourage the *laudator temporis acti*. He issued an edict directing all books to be burned excepting those treating of medicine, divination, and husbandry. This *index expurgatorius* (possibly the earliest in history) included all the writings of Confucius and Mencius, comprising both their original work and their compilations and editions of the earlier classics. It was further ordered that any one who dared to mention the *Book of History* or the *Book of Odes* should be put to death. Any one possessing, thirty days after the issue of the edict, a copy of the books ordered destroyed, was to be branded and put to labor for four years upon the great wall. This is probably the most drastic and comprehensive policy for the suppression of a literature that the world has ever seen. Fortunately, like similar attempts in later centuries, it was only partially successful. While the destruction of books was enormous, and while, of long lists of works, it is probable that all existing copies actually did disappear, the texts of the most important, including the specially obnoxious *Book of History* and *Book of Songs*, were preserved. According to one tradition, a large number of the songs were saved only by having been retained in the memory of public reciters and their hearers. After the death of the Emperor Che, the text of these was taken down and again committed to writing. This instance is, one recalls, fully in line with the methods by which in Greece, before the general use of writing, the earlier classics were preserved in the memories of the rhapsodists and their hearers.

It is the opinion of Dr. Williams that the command of the Emperor Che for the destruction of all books was so thoroughly executed that “of many classical works not a single copy escaped destruction. The books were, however, recovered in great part by rewriting them from the memories of old scholars.... If the same literary tragedy should be enacted to-day, thousands of persons might easily be found in China who could rewrite from memory the text and the commentary of their nine classical works.”

Williams is also my authority for the statement that not only were the books destroyed as far as copies could be found, but that nearly five hundred *literati* were burned alive, in order that no one might remain to reproach in his writings the emperor for the commission of so barbarous an act. [\[11\]](#)

One of the most celebrated female writers in China was Pan Whui-pan, also known as Pan Chao, the sister of the historian Pan Ku, who wrote the history of the Han dynasty. She was appointed historiographer after the death of her brother, and completed, about A.D. 80, his unfinished annals. A little later she wrote the first work in any language on female education, which was called *Nü Kiai* or *Female Precepts*, and which has formed the basis of many succeeding books on female education. In the writings of this and of other Chinese authoresses, instructions in morals and in the various branches of domestic economy are insisted upon as the first essentials in the education of women, and as more important than a knowledge of the classics or of the annals. [\[12\]](#)

1050 A.D. Wang Pih-ho, of the Sung dynasty, compiled for his private school a horn-book or manual of education, entitled the *San-tsz' King*. The manual is interesting not merely as giving a general study of the nature of man and the existence of modes of education, but because it includes a list of books recommended for the student, a list which gives an impression of the extent of the education and literature of that date. [\[13\]](#)

The golden age of Chinese literary production is fixed by Sir Thomas Wade at the period of the Tang dynasty, 620-907 A.D. In 922 A.D. an edition of the classical writers was printed and published under the instructions of the Emperor. The tendency of writers since the tenth century has been to devote their energies to commentaries on the ancient works, and to analyses and interpretations of these rather than to original production. The writing of historical annals has, however, gone on with great regularity, and the series of *Chronicles of the Kingdom* is very comprehensive in its completeness.

The rewards of authors are given in the shape of official appointments and preferments, and of honors and honorariums bestowed directly by the state. It seems probable that in modern as in ancient times the writers of China could look for no direct returns from the circulation of their productions. It

is nevertheless the case that from the time of Confucius to the present day, that is for a period of two thousand four hundred years, the direct influence of scholars, thinkers, and writers has been greater in China than in any other part of the world. The state as a whole and the individual citizen, from the Emperor down, have, as a rule, been ready to recognize and accept the authority and the guidance of literary ideals and of intellectual standards. The case would be paralleled if the French Academy had existed from the time of Charlemagne to the present day, if the counsellors and rulers of the state had always been appointed from the forty, and if the remaining officials of all grades had been selected by competitive examinations, instituted and supervised by the forty. The parallel would not be complete, however, unless the Academy of to-day were still basing its examinations on a codex of Charlemagne.

The imperial government of China and the Chinese community as a whole have for many centuries, apparently ever since the time of the book-burning Hwang-ti, rendered a larger measure of honor (and also of direct reward as far as this could be given by official station) to students and scholars, than has been given by any state in the history of the world. The literary ideal and the literary productions, the study of which has thus been honored, have, however, been in the main those of a thousand years or more back. The fact, says Legge, that the earlier literary period was so fruitful, and that the works produced in it have been held by later generations in so great honor, is one cause why original or creative literary productiveness has been discouraged, and why the later literary activities continue in so large proportion to take the shape of commentaries. It has also, he thinks, been an important influence in keeping the language in an inflexible and undeveloped condition. It was the language of the fathers, and it would be sacrilege to modify it.

Japan.—The civilization of Japan is an off-shoot or development of that of China, and the Japanese literature is based upon Chinese models and standards. The literary relation strikes one as in some respects similar to that which existed between Great Britain and the American Colonies, or later with the American States. The literature of Japan is described, however, as characterized by much more elasticity, variety, and creative originality than is possessed by that of China, and in place of stereotyping

itself upon the models of old-time classics, it has shown from century to century a wholesome power of development.

At one time, says Karpeles, Japan possessed an alphabet of its own, but later, the Chinese characters were introduced, and were used together with the older alphabet. It is only the very earliest writings in which the Japanese characters alone are employed. The Japanese scribes have from the beginning worked with brushes rather than with pens, and in so doing, have been able to utilize such substances as silk, which would have been unsuitable for the work of the pen. The invention of paper, however, took place at an early date, possibly simultaneously with its first use in China. Printing from blocks, and later from type, was promptly introduced from China early in our era.

According to the native chroniclers, the earliest literary production of Japan was the work of the two gods Izanaghi and Izanami. These gods, having created the country, thought it was incomplete without some poetry, and the poetry was therefore added. Tsurayuki, a poet of the tenth century, takes the ground that all true expression of feeling is poetry. The nightingale sings in the wood, the frog croaks in the pool; each is giving utterance to a feeling, and each, therefore, is pouring forth a poem. There is no living being, he continues, who is not a producer of poetry. (This is as startling to us ordinary mortals as the discovery of Molière's Monsieur Jourdain that he had been talking prose all his life without knowing it.) As poetry, says Tsurayuki, begins with the expression of feeling, it must have come into existence with the beginning of creation.^[14] In the earliest times, he says, when the gods were poets, the arrangement of sounds into syllables had not been made, and rhythm had not been invented. These early divine poems or utterances of the gods are, therefore, very difficult to understand. Later, however, Susanoo-no-mikoto fixed sounds into syllables, and then, according to the tenth-century poet, Japanese literature had its actual beginning, but he does not give us the date of this useful piece of work. We are inclined to wonder what the wise Susanoo, etc., did about the announcing of his own name, say on really formal occasions, before the little matter of the invention of syllables had been accomplished.

While it is claimed that from prehistoric times there had been in Japan an active production and a wide distribution of poetry (folk-songs), the first collection of the "people's ballads" appears to have been made as late as

700 A.D. At this time the Emperor, whose residence was at Nara, took an interest in literature, and during the quarter century from 700 to 725 A.D. lived “the noble poet” Yamabe-no-Akahito, and the “wise man of the poets,” Kakino-mo-to-Hito-Marō. (The god above referred to, who bestowed upon Japan the invention of syllables, seems to have done his work thoroughly.) The compilation which took shape during this period is known as the *Man-yō-shū*, or the “collection of ten thousand leaves.” The two later collections are known as *The Old and the New Songs of Japan*, and *The Hundred Poets*.

A special feature in the literature of Japan is the great number of poetesses. The fashion of women interesting themselves in the writing of poetry was initiated by the poetic Empress Sōtō-ō-ime, in the third century A.D.

The great epic of Japanese literature is the *Fei-ke-mono-gatari*, that is *The Annals of the Fei-ke Dynasty*, which is said to have been composed in 1083 A.D., and which was sung among the people by blind rhapsodists. An epic of later date, in twelve books, is credited to the poet Iwanano. The literary record shows a long series of tales and romances, which are described as possessing a graceful fancy and imagination much in advance of Chinese compositions of the same class.

The theatre has from early times played a very important part in the social life of Japan, and dramatic composers are held in high honor. The first dramas written for performance date from about 807 A.D. The people of Japan have from the early times of Japanese literature given cordial appreciation to literary producers, and especially poets and dramatists. The official recognition of literature and of men of letters appears, however, to have been much less distinctive and less important than in China. We do not find record of official positions and preferments being bestowed on the ground of proficiency in philosophy or literature, or by reason of a knowledge of the learning of the past; nor have the smaller government places been distributed by competitive examinations arranged for students of literature.

The distribution of literature among the people appears to have been from an early date very general, and the knowledge of the great classics has certainly been widespread. Of the methods by which such distribution was accomplished in the early centuries of literary production we know nothing.

It seems probable from certain references by later authors, that in Japan, as in Greece, the rhapsodists and reciters were the principal distributors.

Of rewards or compensations given to the earlier Japanese authors there is no record. The national treasury does not appear to have been utilized as in China and Assyria. It is possible that the dramatists may have secured some share of the stage receipts, but it is probable that the other authors must have contented themselves with such prestige or honors as came to them from the readers of, or the listeners to, their compositions.

India.—In India, the typical early literature is the myth. There is no national epic in the Greek use of the term, in which are described the doings of heroic men. The literary productions are the work of poets whose imagination has been impressed with the immensity and with the mystery of the universe, and whose poetic fancies take the form of visions. These fancies or visions are concerned with the doings of the gods, while man plays but a small part in the narrative.

Sanskrit literature is said to date back to the fifteenth century B.C. The written characters have an origin common with that of the Greek letters. The oldest existing monuments of Indian script are the edicts of the King Açoka, cut into the stone at Girnar and elsewhere “so that they might endure for ever”. They date back to the third century B.C.

The first literary period of India presents the poetry of the *Vedas*, the sacred scriptures of the Sanskrit peoples. The hymns and invocations comprising the *Vedas* are supposed to have been collected about 1000 B.C. This is the date that has by many authorities been accepted for the collecting of the Homeric poems, and corresponds nearly with the time fixed for the writing of the Chinese *Book of the Metamorphoses*. It also tallies with the period to which is ascribed the production of the Persian *Zend-Avesta*.

The term *Veda* means knowledge, or sacred knowledge. The collection of the *Vedas* comprises four divisions. The *Rig-Veda*, or *Veda of Praises or Hymns*; the *Sama-Veda*, or *Veda of Chants or Tunes*; the *Yajur-Veda*, or *Veda of Prayers*; and the *Atharva-Veda*, or *Brahma-Veda*.

The second literary period, beginning about the fifth century B.C., is that of the *Folk-Songs*, in which the myth becomes legend, and the gods,

approaching a little closer to the earth, assume more nearly the character of heroes. The third period is that of the classic poets, whose productions in lyric and dramatic poetry are ranked with the great works of literature of the world. This period appears to have reached its height of productiveness between the sixth and tenth centuries of our era.

The earliest prose works are the theological writings of the Brahmanic priests, which take the form of commentaries on the *Vedas*, and which elucidate the sacred texts, principally from a sacrificial point of view. The production of these theological commentaries is supposed to date back to the seventh or sixth century B.C.

Buddha, or Gautama, philosopher, poet, reformer, and redeemer of his people, began his work towards the close of the sixth century B.C. His teachings gave rise to an enormous production of theological literature in India, Ceylon, China, and Japan.

The information concerning the materials used by the earlier writers of India, and as to the methods by which their books were placed before the public, is very meagre. According to Louisy, the use of *diphtherai*, or dressed skins, prevailed to some extent. Prepared palm-leaves were also utilized, particularly by the Buddhist writers of Ceylon. There appears to have been no general or popular circulation of the manuscripts. These were costly, and were beyond the means of any but the very wealthy, while it was also the case that the knowledge of reading was confined to but limited circles.

It seems probable that the manuscripts were in the main prepared in the monasteries or temples, and that they were exchanged between the temples. The teachings of the writers were brought before the people by preaching or recitations. Certain of the princes also attached to their courts poets and philosophers, and practically the only libraries or collections of manuscripts outside of those in the temples, must have been those contained in the palaces of the few princes who possessed literary tastes.

There could have been no other way of securing for an author compensation for his work excepting through princely favors or from the treasuries of the temples.

Persia.—The first name that comes down to us connected with the literature of Persia is that of Zoroaster. The Persian form of his name is Zarathustra, meaning the gold-star. The date of his birth is said to be more uncertain than that of Homer, but he is supposed to have lived about 1000 B.C.

He is credited with the authorship of the *Gâthas*, hymns partly religious, partly political. To Zoroaster were also revealed the teachings which later took shape in the sacred scriptures of the Persians, the *Zend-Avesta* (commentary-lore). Of these scriptures, only one division, the *Vendidad*, has been preserved complete. Of the other parts only fragments remain. It is estimated that the *Vendidad* (which means the regulations against demons) represents about one twentieth of the original collection.

The oldest portion of the *Avesta* is the *Yasna*, or sacrificial liturgy. This is a grouping together of the commentaries surrounding the *Gâthas*. A third division is the *Visparad*, or the *Seasons*, in which are set forth the lists of the objects sacred to each season. A fourth division is the *Yescht-Sade*, or little *Avesta*, comprising prayers and hymns.

The monotheistic or dualistic nature of the faith as originally taught by Zoroaster has, in the later religious writings and practices, been overlaid and obscured by the different phases of nature worship. Fire is accepted as the symbol of holiness, but, according to the views of the educated Parsees, is not itself the thing worshipped.

The existing canon of the *Avesta* was compiled and published under the direction of King Sapor II., who reigned 309-330 A.D. Among the poems of the *Avesta* we find the legend of which the hero is Rustem, who stands as the representative of Iran in its long contest with Turan.

The literature of Persia prior to the fourth century of the Christian era was probably controlled in great part by the priests. The exceptions would have been in the case of the court poets or court historians, writing under the incentive of royal remuneration. It is probable that songs and recitations were to some extent given to the public by minstrels or rhapsodists. There is some evidence also of the development in later centuries of the story-teller or improvisatore, who made a business of exchanging, for the pence of the public, stories partly original, but chiefly borrowed from older sources. The Oriental capacity for story-telling, and the Oriental readiness to devote an

abundance of leisure time to listening to stories, is clearly indicated not only by modern practices, but also by the history of such collections as the *Arabian Nights*. Of this famous series of tales, neither the nationality nor the date of origin has been fixed with any degree of certainty. It is probable, however, that the collection first took shape in Bagdad about 1450 A.D., the date of the invention of printing. Von Hammer is of opinion that the Bagdad Tales are based upon a Persian collection called *Hezar Afsaneh*, *The Thousand Fanciful Stories*. From a passage in the *Golden Meadows* of El-Mesoudee (quoted by von Hammer) this Persian collection is known to have been in existence as early as 987 A.D.

It seems probable, as suggested, that the practice of publicly reciting poems or of narrating stories prevailed in Persia from a very early date, and constituted here, as in Greece, the first method for the distribution or the publication of literary compositions. The material employed for manuscripts was first *diphtherai*, or skins, and later papyrus and parchment.

Judæa.—There is a similar lack of evidence concerning the existence among the Hebrews of anything that could be called literary property. The great body of the earlier Hebrew literature belonged, of course, to the class of sacred writings, best known to us through the books of the *Old Testament* and of the *Apocrypha*. In addition to these, and partly, of course, included with these, were the various collections of the law and of the comments on the law, while later years produced the long series of commentaries known to the reader of to-day under the general name of the *Talmud*. The various transcripts required of these writings of the law and the prophets gave employment to numbers of scribes, who, in the first place, apparently were usually connected with the Temple, and must have derived their support from the ecclesiastical revenues, but who later formed a separate commercial class, receiving payment for their work as done.

Professor Peters speaks of the age of Hezekiah as the golden age of Hebrew literature. He quotes the text, Prov. xxv., I, which says that “the men of Hezekiah translated” or transcribed, or wrote down the Proverbs of Solomon, as evidently an effort to collect and preserve the literary treasures of the past. He says, further:

“It is not unnatural to suppose that the writing down of Solomon’s Proverbs was for the purpose of a library in

Jerusalem, such as the Assyrian kings had long since collected at Nineveh. The *Book of Amos* was edited (somewhere about 711 B.C.) apparently for this library ... and I suppose Hosea and Micah also to have been edited about this time and for the same purpose. It was the formation of this library at just this time and the desire to collect and preserve all the literary remains of the past, which led to the collection and preservation of so much of the literature of the Northern Kingdom, but lately brought into Judah by the Israelite *emigrés*. No tales of the valor of the heroes of Judah, no Judæan folk-lore ante-dating the time of David, have been handed down to us; this literature belonged to the Northern Kingdom. Literary and antiquarian zeal led to the collection and reception of these northern tales and poems into Hezekiah's library ... where their use in historical works, owing to the awakened zeal for a knowledge of the past, was assured. So with the transfer of intellectual activity from Samaria, a new era begins in Judah, and soon the charming tales and poems of the north, preserved in the library of Hezekiah, begin to be woven into the more solid and ambitious works of the historians and lawyers of Jerusalem.

This literary awakening could not fail to act upon the priests. They were the custodians of those ancient religious and legal traditions, which, coming down from the age of Moses, had grown with, and been modified by, changing times and conditions. While some portions of the 'law' were written, presumably the larger part of it was handed down mainly by word of mouth.

Moreover, that which was written probably existed in various independent codes relating to different subjects. Some of these—such as a tariff of offerings, or tables of civil and criminal law, like those contained in the *Book of the Covenant*—may have been published, or set up at the Temple gates, where they could be read by the worshippers. The greater part of the 'law,' however, seems to have been the exclusive, if not esoteric, possession of the priesthood of the Jerusalem Temple. The literary activity of the Renaissance made itself felt within the

circle of the priests, leading them to begin to commit to writing their unwritten law as well as the ancient traditions, customs, and ceremonies. Thus was commenced the work which has given us the middle books of the *Pentateuch*, as well as much of Genesis and Joshua.”^[15]

It appears, therefore, as if the Hebrew literature of the time (the reign of Hezekiah, covering the period referred to, lasting from 728 to 699 B.C.) consisted substantially of the “law,” that is of the authoritative teachings of the “church,” and was almost exclusively in the hands of the priests. They exercised a control, which amounted practically to an ownership, over the sacred, that is the official, records of the “law,” and it appears as if the attested copies or transcripts could be made only with their permission and under their supervision. It is probable, therefore, that the copyists were attached to the Temple, and that such moneys as were received from the sale of their transcripts belonged to the treasury of the Temple,—but the manner of such sales can only be guessed at, as the records give us no information. If, however, this understanding of the practice should prove to be correct, we should have an example, if not of literary property, at least of a species of “copyright” control.

The severe Jewish law, directing the penalty of death to be inflicted upon prophets speaking “false words,” or uttering as inspirations of their own, words which had originated with others, has been quoted as an early example of regulation of plagiarism, but it appears evident, says Rénouard,^[16] that the crime here to be punished was not plagiarism but sacrilege, “*Vates mendax qui vaticinatur et quæ non audivit, et quæ ipsi non sunt dicta, ab hominibus est occidendus.*”^[17] The utterance of the prophet Jeremiah (c. xxiii. v. 30) evidently refers to the same regulation.





CHAPTER II.

Greece.

THE literature of Greece has become the property of the world, but of the existence of literary property in Greece—that is, of any system or practice of compensation to writers from their readers or hearers, either direct or indirect—the traces are very slight; so slight, in fact, that the weight of authority is against the probability of such practice having obtained at all.

It is fortunate for the literature of the world that the Greek poets, dramatists, historians, and philosophers were content to do their work for the approval of their own generation, for the chance of fame with the generations to come, or for the satisfaction of the work itself, as their rewards in the shape of anything more tangible than fame appear to have been either nothing or something very inconsiderable.

Clement says: “After the most painstaking researches through the records left us by the Greeks, we are compelled to conclude that in none of the Greek states was any recognition ever given under provision of law, to the right of authors to any control over their own productions.”^[18] Breulier writes: “Literary property, in any sense in which the term is understood to-day, did not exist at Athens.”^[19] Wilhelm Schmitz concludes that “no such relation as that which to-day exists between authors and booksellers (publishers) was known among the Greeks. In none of the writings of the time, do we find the slightest reference to any such publishing arrangements as Roman authors in the time of Martial were accustomed to secure.”^[20] This treatise of Schmitz’s is a painstaking and interesting study of the conditions of Greek literature in classic times and of the relations of Greek writers to their public, and for certain portions of this chapter I am largely indebted to the results of his investigations.

Géraud remarks that in the first development of written language and literature among the Hebrews and Egyptians, it is easy to recognize the “fatal influence of the spirit of priestly caste, an influence from which the

Greek peoples were comparatively free.”^[21] The richest literature of antiquity, he goes on to say, is that of Greece, and it was also in Greece that the art of writing made the most rapid advances. The teaching of the priests, whether given through the oracles or not, was purely oral, so that the Greeks did not come into possession of any body of sacred scriptures such as formed the original literature of other peoples. On the other hand, the ardent nature, inquiring and active intellect, and brilliant imagination of the Greeks, gave an early and rapid development to the arts, to poetry, and to speculative philosophy.

The old-time tradition credits the introduction of the alphabet in Greece to Cadmus, and fixes the date of the first Hellenic spelling-school at about the fifteenth century before Christ. I believe the authorities are divided as to whether this mythical Cadmus represents a Phœnician or an Egyptian influence, but this is a question which need not be considered here. I understand the philologists are in accord in the conclusion that the Cadmus story represents, not a first instituting of a Greek alphabet, but merely certain important modifications in the form of letters already in use. Birt asserts, as if it were now a settled fact, that while the Greeks derived their written characters from the Phœnicians, they were indebted to Egypt for their first ideas in the making of books. There is a very distinct family resemblance between the Greek characters as known in literature and those of the Hebrew, Phœnician, and Syriac alphabets, while the names of the Greek letters *Alpha* and *Beta* are found in all the Semitic dialects. It seems further to be certain that the earlier peoples of Greece, after for a time having written perpendicularly according to the fashion of the Chinese, began later to write from right to left according to the Oriental manner.

The so-called *Boustrophedon*, a term meaning “turning like oxen when they plough,” was a method of writing from left to right, and from right to left in alternate lines. Among the earlier specimens of this method were the laws of Solon (about 610 B.C.) and the Sigeon inscription (about 600 B.C.). This system represents a period of transition between the earliest style and that of which the invention is credited to Pronapides, and is simply the modern European fashion of writing from left to right. The inscriptions of the Etruscans are largely written in *Boustrophedon*. Neither in Greece, however, nor elsewhere, did this method remain in use for any writings which are to be classed as literature.

While Greek literature, as far as known to us, must be considered as beginning with the Homeric poems, the date of which is estimated by the majority of the authorities at about 900 B.C., there appears to be no trustworthy example of Greek writing earlier than about 600 B.C. Curiously enough, this specimen was found not in Greece but in Egypt. Jevons describes it as follows:

“On the banks of the Upper Nile, in the temple of Abu Simbel, are huge statues of stone, and on the legs of the second colossus from the south are chipped the names, witticisms, and records of travellers of all ages, in alphabets known and unknown. The earliest of the Greek travellers who have thus left their names were a body of mercenaries, who seemed to have formed part of an expedition which was led up the Nile by King Psammitichus.”^[22]

Jevons goes on to give the grounds for the conclusion (based mainly on the formation of certain of the letters, and in part, of course, on the references to King Psammitichus) that the inscription was written, or rather was cut, upon the statue between 620 B.C. and 600 B.C., according as we take the king mentioned to have been the first or second of his name.^[23] We have, then, a date fixing a time at which the art of writing certainly existed among the Greeks, while it is further evident that if in the year 600 the art of writing was so well established that it was understood by a number of mercenaries, it must have been quite generally diffused through certain classes of society, and the date for its introduction into Greece must have been considerably earlier than 600. Jevons knows, however, of no example of Greek writing which can be ascribed to an earlier date than that above quoted.

The conclusion, based upon this inscription, that in the year 600 B.C. writing had for some time been known in Greece, enables us, however, says Jevons, to accept as probably authentic a reference to writing ascribed to an author who lived nearly a century earlier. Archilochus, a poet who is believed to have flourished about 700 B.C., uses in one of his fables the expression “a grievous *skytale*.”

“A *skytale* was a staff on which a strip of leather for writing purposes was rolled slant-wise. A message was then written on

the leather, and the latter being unrolled, was given to the messenger. If the messenger were intercepted, the message could not be deciphered, for only when the leather was rolled on a staff of precisely the same size (*i. e.*, thickness) as the proper one, would the letters come right. Such a staff, the duplicate of that used by the sender, was of course possessed by the recipient.”

This primitive method of cipher was for a long time in use with the Spartans for conveying State messages. In the figure of speech used by Archilochus, his fable was to outward appearance innocent of any recondite meaning, but would prove a grievous “skytale” for the person attacked.

It seems reasonable, continues Jevons, to accept this passage as indicating a knowledge of writing in Greece as early as 700 B.C. This date allows a century for the diffusion of the art and for the spread of the Ionic alphabet which are implied by the Abu Simbel inscription. And the passage does not prove too much. It does not imply even that Archilochus himself could write. The invention or introduction was sufficiently novel and admirable to furnish a poet with a metaphor; and the *skytale* was probably then, as in later times, a government institution. This mention of it accords with the probable supposition that writing was used for government purposes for some time before it became common among the people.

The next date or period which in connection with my subject it is of interest to fix, however approximately, is that when it is possible to speak of the existence of a reading public. On this point also I take the liberty of quoting one or two paragraphs from Jevons in which the probabilities are clearly presented:

“Reading and writing were certainly taught as early as the year 500 B.C., and half a century later, to be unable to read or write was a thing to be ashamed of. Herodotus speaks of boys’ schools existing in Chios in the time of Histiaëus, who lived about 500.”[\[24\]](#)

“Instruction of this kind does not, however, prove the existence of a reading public. Enough education to be able to keep accounts, to read public notices, to correspond with friends or business agents, may have been in the possession of every free

Athenian in the period between 500 and 450 B.C., and the want of such education may have caused a man to be sneered at; but this does not prove the habit of reading literature.”

There are, however, various references which indicate that by the year 450 B.C. the habit of reading was beginning to become general, at least in certain circles of society. Jevons quotes a passage from the *Tagenistæ* of Aristophanes, in which, speaking of a young man gone wrong, the dramatist ascribes his ruin to “a book, to Prodicus or to bad company.”^[25] Jevons also finds in fragments of an old comedy such expressions as “an unlettered man,” “a man who does not know his A B C.” A passage in the lyric fragments of the poet Theognis (who lived 583-500) is of interest not merely as an evidence of some public circulation of literature, but as possibly the earliest example of an author’s attempting to control the circulation of his own productions. Theognis says he has hit on a device which will prevent his verses from being appropriated by any one else. He will put his name on them as a seal (or trade-mark) and then “no one will take inferior work for his when the good is to be had, but every one will say ‘These are the verses of Theognis, the Megarian.’” As Jevons says: “This passage certainly implies that Theognis committed his works to writing.” It also appears to imply that there was likely to be sufficient literary prestige attaching to the poetry of Theognis to tempt an unscrupulous person to claim to be its author, while it is at least possible to infer that the plan of Theognis had reference not only to his prestige as an author, but also to certain author’s proceeds from the sales of his works, which proceeds he desired to keep plagiarists from appropriating. Clement does not, however, believe that there is adequate ground for the latter supposition, but contends that if the poet caused copies of his poems to be multiplied and distributed, it was not for the purpose of having them sold, and not even in order that they might be read, but to enable his friends to learn them and to sing them at drinking parties or other social gatherings. In his opinion, the nature of the poetry of Theognis shows that it was not composed for a reading public.

Giving the fullest possible weight to the evidences for the early development of the knowledge of reading and writing, and the possible facilities for the multiplication and distribution of books in manuscript, it is certain that Greek literature between the ninth and the sixth centuries B.C. cannot have been prepared for a reading public. The epics which have come

down to posterity from that period must have been transmitted by word of mouth and memory. Mahaffy and Jevons are in accord in pointing out that the effort of memory required for the composition and transmission of long poems without the aid of writing, while implying a power never manifested among people possessing printed books, is not in itself at all incredible. Memory was equal to the task, and the earlier Greek poems, memorized by the authors as composed, were preserved by successive generations of Bards. They were also evidently composed with special reference to the requirements of the reciters whose recitations were in the earlier periods usually given at the banquets of the royal courts or of great houses to which the bards were attached. The practice of reciting before public audiences can hardly have been begun before the year 600 B.C.

The early epics were as a rule much too long to be recited within the limits of a single evening, and they must therefore have been continued from banquet to banquet. The authors have apparently kept this necessity in mind, and have provided for it by dividing their narratives into clearly defined episodes, at the close of which the reciters could leave their audiences with some such word as that given at the close of a weekly installment in the “penny dreadful”—“to be continued in our next.”

As the practice was introduced of entertaining larger audiences in the open air with the recital of the Homeric and other epics, a class of professional reciters arose, known as *Rhapsodists*, who declaimed in a theatrical manner, with much gesture and varying inflection of the voice. The term rhapsody is believed by Jevons to be derived from ῥάπτω, to sew or stitch together. He quotes a line from Pindar, Ὀμηρίαι ῥάπτων επέων ᾠδοί, “sons of Homer, singers of stitched verses.” Words are metaphorically said to be stitched together into verses, and the word ῥαχ-ωδός Jevons derives from ῥάπτω, to stitch, and ᾠδός, a singer. [\[26\]](#)

These rhapsodists travelled from place to place to compete for the prizes offered by the different cities, and while the national poems (carried in their memories) were probably common to all, each reciter doubtless had his own special method of declaiming these. This practice helps to account for the transmission and for the diffusion of the earlier epics. The rhapsodists may, therefore, be said to have served in a sense as the publishers of the period. The derivation of the word comedy throws some light on the literary

customs of the time. It means literally “a song of the village,” from κῶμη, a village, and αἶδω, I sing.

The purposes of Greek writers were either political or purely ideal. The possibility of earning money by means of authorship seems hardly ever to have occurred to them, and this freedom from any commercial motive for their work was doubtless an important cause for the high respect accorded in Greece to its authors. In the time of Plato, the *Sophists*, who prepared speeches and gave instruction for gain, were subject to more or less criticism on this account—a criticism which Plato himself seems to have initiated. ^[27]

At the threshold of Greek literature stands the majestic figure of Homer; and to Pisistratus, the Tyrant of Athens, is to be credited the inestimable service of securing the preservation of the Homeric poems in the form in which they have been handed down to posterity. The task of compiling or of editing the material was confided to four men, whose names, as predecessors of a long list of Homeric editors, deserve to be recorded: Conchylus, Onomacritus, Zopyrus, and Orpheus, and the work was completed about 550 B.C. ^[28]

Another creditable literary undertaking of Pisistratus was the collection of the poems of Hesiod, which was confided to the Milesian Cecrops. We have the testimony of Plutarch that by these means the Tyrant did not a little towards gaining or regaining the favor of the Athenians, which speaks well for the early interest of the city in literature. There are no details on record as to the means by which these first literary products were placed at the service of the community, but there can be no question that the service rendered by the Tyrant and the editors selected by him, consisted simply in providing an authoritative text, from which any who wished might transcribe such number of copies as they desired. This Pisistratus edition of the Homeric books is said to have served as the standard text for the copyists and for Homeric students not only in Greece but later in Alexandria, and is, therefore, the basis of the Homeric literature that has come down to modern days.

Prof. Mahaffy remarks that the writings of Hesiod differed from those of the other early Greek authors in being addressed, not to “the powers that were,” but to the common people. ^[29] Referring to the style of Hesiod’s

works, Simcox says, rather naïvely, “Hesiod would certainly have written in prose, if prose had then existed.” *Works and Days* (the only one of Hesiod’s poems which the later Greek commentators accept as certainly genuine) consists of ethical and economic precepts, written in a homely and unimaginative style, and setting forth the indisputable doctrine that labor is the only road to prosperity. Mahaffy is my authority for the statement that Hesiod’s poems came into use “at an early period as a favorite handbook of education.”^[30]

I wish this brilliant student of Greek life had given us some clue as to the methods by which copies of this literature were multiplied and brought into the hands of the country people and common people to whom it was more particularly addressed. The difficulty of circulating books among this class of readers must have been very much greater than that of reaching the scholarly circles of the cities.

While it was a long time before authors were to be in a position to secure any compensation from those who derived pleasure from their productions, they began at an early date (as in the case before mentioned of Theognis) to raise questions with each other on the score of plagiarisms, and to be jealous of retaining undisturbed the full literary prestige to which they might be entitled.

Clement remarks that “an enlightened public opinion helped to defend Greek authors against the borrowing of literary thieves, by stigmatizing plagiarism as a crime, and by expressing for a writer detected in appropriating the work of another a well merited contempt instead of the approbation for which he had hoped.”^[31] It seems probable, however, that this is too favorable a view to take as to the effectiveness of public opinion in preserving among Greek writers a spirit of exact conscientiousness, as the complaints in the literature of the time concerning unauthorized and uncredited “borrowings” are numerous and bitter.

Such terms as “accidental coincidence,” “identity of thought,” “unconscious cerebration” (in absorbing the expressions of another), were doubtless used in these earlier as in the later days of literature to explain certain suspicious cases of “parallelisms” or similarities. In fact, at least one Greek author, the sophist Aretades, wrote a volume, unfortunately lost, on the similarity or identity of thought creations.^[32]

Clement gives some examples of borrowings or appropriations on the part of writers and orators, and his list is so considerable as to leave the impression that the public opinion to which he refers was either not very active in discovering the practice, or was not a little remiss in characterizing and in condemning it. Isocrates copies an entire oration from Gorgias; Æschines makes free use in his discourses of those of Lysias and Andocides. Even Demosthenes, the chief of orators, occasionally yielded to the temptation; and among other instances, Clement cites extracts from orations against *Aphobos* and *Pantænetos* which are identical with passages in the *Discourses on Ciron* by the old instructor of Demosthenes, Isæus.

Rozoir tells us that an anonymous work of six volumes (rolls) was published under the title *Passages in the Writings of Menander which are Not the Work of Menander*, and that Philostrates of Alexandria accused Sophocles of having pillaged Æschylus, Æschylus of having permitted himself to draw too much inspiration from Phrynichus, and, finally, Phrynichus of having taken his material from the writers who preceded him. Such charges become, of course, too sweeping to be pertinent, and can probably in large part be dismissed with the conclusion that each generation of writers ought to familiarize itself with the work of its predecessors, and may often enough with propriety undertake the reinterpretation for new generations of readers of themes similar to those which have interested their fathers and grandfathers.

One evidence that the subject of plagiarism was a matter which in later days engaged public attention is given by the Fable of Æsop on the Jay masquerading in the plumes of the Peacock.

Clement points out that in connection with the fierce competition between the poets of Athens for dramatic honors, no means were neglected by the friends of each writer to bring discredit upon the productions of his rivals, and that very many of the charges of plagiarism can be traced to such an incentive. Aristophanes, who amused himself by utilizing for his comedies the strifes between his literary contemporaries, puts into the mouth of Euripides, whom he makes one of the characters in *The Frogs*, the following biting words, addressed to Æschylus:

“When I first read over the tragedy which you placed in my hands, I found it difficult and bombastic; I at once made a severe

condensation, freeing the play from the weight of rubbish with which you had overloaded it; I then enlivened it with bright sayings, with pointed philosophic subtleties and with an abundance of brilliant witticisms drawn from a crowd of other books; and finally I added some pithy monologues, which are in the main the work of Ctesiphon.”^[33]

In the same comedy, Æschylus is made to accuse Euripides of having carried on literary free-booting in every direction. Further on, Bacchus, in expressing his admiration for some striking thought expressed by Euripides, asks whether it is really his or Ctesiphon’s, and the tragedian frankly admits that the credit for the idea properly belongs to the latter. Clement concludes that there must have been foundation for the raillery of the comedian, and refers, in this connection, to the remarks of Plato that if one wished to examine the philosophy of Anaxagoras, the simplest course was to read the tragedies of Euripides, the choruses of which reproduced faithfully the teachings of the philosopher. Aristophanes, while scoffing sharply at the misdeeds of others, was himself not beyond criticism, being charged with having made free use of the comedies of Cratinus and Eupolis.^[34]

The philosophers and historians appear to have been little more conscientious than the poets in their literary standard. The historian Theopompus included, without credit, in the eleventh book of his *Philippics* a whole harangue of Isocrates, and with a few changes of names and places, he was able to make use of passages from Androtion and Xenophon. His appropriations were so considerable that they were collected in a separate volume to which was given the fitting title of *The Hunters*.^[35] Lysimachus wrote a book entitled *The Robberies of Ephorus*. Timon, in some lines preserved by Aulus Gellius, charges Plato with having obtained from a treatise of the Pythagorean philosopher Philolaus the substance of his famous dialogue the *Timæus*.^[36] The lines, from the version of Clement, read as follows: “You also, Plato, being ambitious to acquire knowledge, first purchased for a great sum a small book, and then with its aid proceeded yourself to instruct others.”

Even our moral friend Plutarch does not escape from the general charge of borrowing from others.

“In reading,” says Rozoir, “the text of many of the *Lives*, one cannot but be struck with the very great differences of style and of forms of expression, differences so marked, that it is difficult to avoid the conclusion that many portions are extracts taken literally and without credit, from other authors.”^[37]

From these examples, out of many which might be cited, it seems evident that during the centuries in which Greek literature was at its height, the practice of plagiarism was very general, even among authors whose originality and creative power could not be questioned. Emerson’s dictum that “man is as lazy as he dares to be” was assuredly as true two thousand years ago as at the time it was uttered.

We may further conclude that while plagiarism, when detected, called forth a certain amount of criticism and raillery, especially when the author appropriated from was still living, it did not bring upon the “appropriators” any such final condemnation as would cause them to lose caste in the literary guild or to forfeit the appreciation of the reading public. This leniency of judgment could doubtless be more safely depended upon by writers who had given evidence of their own creative powers. The acknowledged genius could say with Molière: “*Je prends mon bien où je le trouve*,” and such a claim would be admitted the more readily as, when a genius does to the work of another the honor of utilizing it, the material so appropriated must usually secure in its new setting a renewed vitality, a different and a larger value.

The case of a small writer venturing to appropriate from a greater one was naturally judged much more harshly, and if a literary theft was detected in a production which was submitted in open contest for public honors, the verdict was swift and severe.

An instance of such public condemnation is referred to by Vitruvius.^[38] One of the Ptolemies had instituted at Alexandria some literary contests in honor of Apollo and the Muses. Aristophanes, the grammarian, who on a certain day acted as judge, gave his decision, to the surprise of the audience, in favor of a contestant whose composition had certainly not been the most able. When asked to defend his decision, he showed that the competing productions were literal copies from the works of well known writers. Thereupon the unsuccessful competitors were promptly sentenced before

the tribunal as veritable robbers, and were ignominiously thrust out of the city.

“Itaque rex jussit cum his agi furti, condemnatosque cum ignominia dimisit.”

This was, however, certainly an exceptional case, as well in the clumsiness of the plagiarism as in the swiftness of the punishment. The weight of evidence is, I am inclined to believe, in favor of the view, that in the absence of any protection by law for the author’s “rights,” whether literary or commercial, in his productions, the protection by public opinion, even for living writers, was very incidental and inadequate; while it seems further probable that, especially as far as the works of dead authors were concerned, but a small proportion of the “borrowings” were ever brought to light at all or became the occasion for any criticism. Much, of course, depended upon the manner in which the appropriation was made. As Le Vayer cleverly says: *“L’on peut dérober à la façon des abeilles sans faire tort à personne; mais le vol de la fourmi, qui enlève le grain entier, ne doit jamais être imité.”*^[39]

There is one ground for forgiving these early literary “appropriators” even of *les grains entiers*—namely, that by means of such transmissal by later writers of extracts borrowed from their predecessors, a good deal of valuable material has been preserved for future generations which would otherwise have been lost altogether.

In considering such examples of plagiarism as are referred to by Greek writers and the general attitude of these writers to the practice, it is safe to conclude that authors cannot depend upon retaining the literary control of their own productions and cannot be prevented from securing honor for the productions of others unless public opinion can be supplemented with an effective copyright law.

Suidas, the lexicographer, relates that Euphorion, the son of Æschylus, and himself also a writer, gave to the world as his own certain tragedies which were the work of his father, but which had not before been made known (*nondum in lucem editis*).^[40] It does not appear that any advantage other than a brief prestige accrued to Euphorion through his unfilial plagiarism.

Such advantage was, however, more possible for the author of a drama than for the author of any other class of literature, for seats in the theatre, which had at first been free, were later sold to the spectators at a drachme (Plato's *Apology of Socrates*). The drachme was equal in cash to about eighteen cents, and in purchasing power to perhaps seventy-two cents of our money. This price was, according to Barthelými,^[41] reduced by Pericles to an obolus, equal in cash value to about three cents.

The expenses of the presentation of a drama were very slight, and even this smaller payment by the audience should have afforded means, after the actors had been reimbursed, for some compensation to the dramatist.

Instances of compensation to orators are of not infrequent occurrence, and, as Paul Clement remarks, it seems reasonably certain that experienced orators were not in the habit of writing gratuitously the discourses so frequently prepared for the use of others. Isocrates is reported to have received not less than twenty talents (about \$21,500) for the discourses sent by him to Nicocles, King of Cyprus.^[42]

Aristophanes speaks of the considerable sums gained by the jurists, but the service for which Isocrates was paid was of course of a different character.

The intellectual or literary life of Athens, initiated by the popularization (at least among the cultivated circles) of the poems of Homer and Hesiod, was very much furthered through the influence of Plato. Curiously enough, notwithstanding Plato's great activity as a writer, he placed a low estimate on the importance of written as compared with that of oral instruction. This is shown in his reference to the myth concerning the discovery of writing.^[43]

The ten books of Plato's *Republic* were undoubtedly prepared in the first place for presentation in the shape of lectures to a comparatively small circle of students, and were through these students first brought before the public. Plato's hearers appear to have interested themselves in the work of circulating the written reports of his lectures, of which for some little time the number of copies was naturally limited. We also learn that the fortunate possessors of such manuscripts were in the habit of lending them out for hire. From a comedy of the time has been quoted the following line: "Hermodoros makes a trade of the sale of lectures."^[44]

Hermodoros of Syracuse was known as a student of Plato, and this quotation is interpreted as a reference to a practice of his of preparing for sale written reports of his instructor's talks. Plato had evidently not yet evolved for himself the doctrine established over two thousand years later by Dr. Abernethy, that the privilege of listening to lectures did not carry with it the right to sell or to distribute the reports of the same. Abernethy's student had at least made payment to the doctor for his course of lectures, while if, as seems probable, the teachings of Plato were a free gift to his hearers, his claim to the control of all subsequent use of the material would have been still better founded than that of the Scotch lecturer. But the time when it was not considered incompatible with the literary or philosophical ideal for the authors or philosophers to receive compensation from those benefited by their instruction, had not yet arrived. This reference to Hermodoros has interest as being possibly the first recorded instance of moneys being paid for literary material. The date was about 325 B.C.

Suidas calls Hermodoros a hearer (ἀκροατής) of Plato, and says, further, that he made a traffic of his master's teachings (λόγοισιν Ἑρμόδωρος ἐμπορεύεται). Cicero, in writing to Atticus, makes a jesting comparison of the relations of Hermodoros to Plato with those borne by his publishing friend to himself, when he says: *Placetne tibi libros "De Finibus" primum edere injussu meo? Hoc ne Hermodorus quidem faciebat, is qui Platonis libros solitus est divulgare.*^[45] "Possibly you may be inclined to publish my work *De Finibus* without securing the permission of the author. Even that Hermodorus, who was in the habit of publishing the books of Plato, was not guilty of such a thing."

The term *libros*, employed by Cicero, is of course not really accurate, and ought properly to be interpreted as teachings, as Hermodoros appears not to have had in his hands any of Plato's manuscripts, and to have used for his "publications" simply his own reports of his instructor's lectures. It seems probable from these several references that Hermodoros secured from his sales certain profits, but it was evidently not believed that he considered himself under any obligation to divide such profits with Plato.

We have no word from Plato himself concerning the method by which his writings were brought before the public, but we find references in Aristotle to the "published works of Plato."^[46] Cephisodorus, a pupil of Isocrates, makes it a ground for reproach against Aristotle (considered at the time as a

rival of his own instructor) that the latter should have published a work on Greek proverbs, a performance characterized as “unworthy of a philosopher.”^[47]

The greater portions of the writings of Aristotle appear to have been composed in the course of his second sojourn in Athens, during which he was specially indebted to, and was possibly maintained by, the affectionate liberality of his royal pupil Alexander the Great. A curious claim was made by the latter to the ownership, or at least to the control, of such of the philosopher’s lectures as had been originally prepared for his own instruction. “You have not treated me fairly,” writes Alexander to Aristotle, “in including with your published works the papers prepared for my instruction. For if the scholarly writings by means of which I was educated become the common property of the world, in what manner shall I be intellectually distinguished above ordinary mortals? I would rather be noteworthy through the possession of the highest knowledge than by means of the power of my position.”

Aristotle’s reply is ingenious. He says in substance: “It is true, O beloved pupil, that through the zeal of over-admiring friends these lectures, originally prepared for thy instruction, have been given out to the world. But in no full sense of the term have they been published, for in the form in which they are written they can be properly understood only if accompanied by the interpretation of their author, and such interpretation he has given to none but his beloved pupil.”^[48]

Alexander’s claim to the continued control of literary productions prepared for him and for the first use of which he, or his father on his behalf, had made adequate payment, raises an interesting question. It is probable, however, that the principle involved is at the bottom the same as that upon which have since been decided the Abernethy case and other similar issues between instructors and pupils; such decisions limiting the rights of the students in the material strictly to the special use for which he has paid, and leaving with the instructor, when also the author, all subsequent control and all subsequent benefit.

Aristotle made a sharp distinction between his “published works” (ἐξωτερικοὶ or ἐκδεδομένοι λόγοι) and his Academic works (ἄκροάσεις). The former, written out in full and revised, could be purchased by the

general public (outside of the Peripatos). The latter were apparently prepared more in the shape of notes or abstracts, to serve as the basis of his lectures. Copies of these abstracts, such as would to-day be known in universities as *Précis*, were distributed among (and possibly purchased by) the students,^[49] and could not be obtained except within the Peripatos.

From the bequests made by certain of the philosophers of their books, it appears that such a distinction between the two classes of books was general. In these legacies the copies of current publications, purchased for reading (Τὰ ἀνεγνώσμενα), are distinguished from the unpublished works (ἀνέκδοτα). It was from such an unpublished manuscript (ἀνέκδοτον)^[50] that in the *Theætet.* of Plato a reading is given.

It is easy to understand that the more abstruse works of Plato and Aristotle were not fitted for any such general distribution as was secured for the then popular treatises of Democritus on the *Science of Nature*, or for the writings of the Sophist Protagoras. It is by no means clear by what channels were distributed these works, which appear very shortly after their production to have come into the hands of a large number of readers not only in Greece itself, but throughout the Greek colonies. The sale of copies, made by students and by admiring readers, seems hardly to furnish a sufficiently adequate publishing machinery, but of publishers or booksellers, with staffs of trained copyists, we have as yet no trustworthy record.

Protagoras, who came from Abdera, was said to have been intimate with Pericles. He was the first lecturer or instructor who assumed the title of Sophist, and what is more important for our subject, was said to be the first who received pay for his lessons. Plato, whose view of the responsibilities of a literary or philosophical worker seems to have been extremely ideal, makes it a charge against Protagoras that during the forty years in which he taught, he received more money than Phidias. And why not, one is tempted to enquire, if his many hearers felt that they received a fair equivalent in the services rendered? The receipts of Protagoras appear to have come entirely from the listeners or students who attended his lectures; at least there is nothing to show that he himself derived any business benefit from the large sales of the copies of these lectures. His remunerated work is therefore an example of property produced from an intellectual product but not yet of property resulting for the producer of a work of literature.

The history, or histories of Herodotus were first communicated to the world in the shape of lectures or readings of the separate chapters of the earlier portions. We find references to four such lectures delivered respectively at Olympia,^[51] Athens,^[52] Corinth,^[53] and Thebes^[54] between the years 455 and 450, B.C. In 447 B.C. Herodotus was sojourning in Athens, still engaged in the work of his history, and becoming known, through his public readings, to Pericles, Sophocles, and other leaders of Athenian thought and culture. In 443 he joined the colonists whom Pericles was sending out to Italy, and became one of the first settlers at Thurium, where he remained until his death in 424. It was at Thurium that the great work, in the shape in which we now know it, was finally completed, about 442. The promptness with which the *History* became known in Greece and the very general circulation secured for it, seems to have been in large part due to the personal interest in it of Pericles and Sophocles and possibly also to the financial aid of the former in providing funds for the copyists. It is related, on uncertain authority, says Clement, that in 446, the Athenian Assembly decreed a reward to Herodotus for his *History*, after certain chapters of it had been read publicly. There appears to be no other reference to any compensation secured by the author for this great work to the preparation of which he had devoted his life and which had cost him so many toilsome and costly journeys. The *History* of Herodotus, the first work of any lasting importance of its class in point of time, and in the estimate of twenty-three centuries not far from the first by point of excellence, was practically a free gift from the historian to his generation and to posterity.

The system of instruction or literary entertainment by means of readings or lectures became one of the most important features of intellectual life in Greece. Mahaffy speaks of the culture and quickness of intellect of an Athenian audience as being far in advance of that of a similar modern assembly. Freeman says: "The average intelligence of the assembled Athenian citizens was unquestionably higher than that of the House of Commons."^[55]

It is stated by Abicht^[56] that the young Thucydides, then a boy of twelve, was one of the listeners to a recital of Herodotus at the great Olympian festival, and, moved to tears, resolved that he would devote himself to the writing of history. Later, when he had entered upon his own historical work,

Thucydides remarks with a confidence which later centuries have justified, that he “was not writing for the present only, but for all time.”^[57]

His *History* was left unfinished, apparently owing to the sudden death of the author, although the exact date of this death is not known. It does not appear who assumed the responsibility for the first publication of the *History*. Marcellinus speaks of a daughter of Thucydides having undertaken the transcribing of the eighth book, and having provided means for the issue of the same.^[58] If this daughter inherited the gold mine in Thrace which her father tells us he owned, there should have been no difficulty in finding funds for the copyists.

According to others the work was cared for by Xenophon and Theopompus. Demosthenes is reported to have transcribed the eight books with his own hand eight times, and there were doubtless many other admiring readers who contributed their share of labor in copying and distributing the eloquent chronicles of the Peloponnesian war. In the fourth century B.C. the dedication of literature to the public seems to have been emphatically a labor of love. Xenophon had at one time thought of writing a continuation of the narrative of Thucydides, but until the time of his withdrawal to Scillus, he had neither the leisure nor the service of the skilled slaves requisite for the work. Xenophon takes to himself the credit of having brought into fame the previously unknown books of Thucydides which he had been in a position to suppress (or to supplant).^[59] Xenophon's own literary activity, resulting in a considerable list of narratives and treatises, was comprised between the years 387 and 355 B.C., that is during the last thirty years of his long life. He died in 355, at the age of ninety-eight. On the estate at Scillus which the Spartans had presented to him, for services rendered against his native state of Athens, he had gathered a large staff of slaves skilled as scribes, by whom were prepared the copies of his works distributed amongst his friends. He speaks of having taken some of the scribes with him to Corinth, where the *Cyropædia* was completed.

In Xenophon's *Anabasis* we find that each chapter or book is preceded by a summary in which are repeated the contents of the preceding chapter. The work was, as was customary, divided into books of suitable length for reading aloud from evening to evening, and such summaries were, says Isocrates, of decided convenience in recalling to the hearers the more

important occurrences related in the previous reading, and in this manner sustained the interest in the narrative. The dialogues of Aristotle were said to have contained proems presenting summaries of the preceding conclusions together with an outline of the new situation. The similar proems in the *Tusculan Disputations* of Cicero are not prefaces to books but to situations, and occur only in those books in which a new situation is introduced.^[60]

For the preservation of the writings of the earlier Greek authors, we are indebted to the first book collectors or bibliophilists. Athenæus^[61] names as founders of some of the more important earlier libraries, Polycrates of Samos (570-522 B.C.), Pisistratus of Athens (612-527), Euclid of Megara (about 440-400), Aristotle (384-321), and the kings of Pergamum (350-200). Pisistratus, who died 527 B.C., bequeathed his books to Athens for a public library, and the Athenians interested themselves later in largely increasing the collection. This is possibly the earliest record there is of a library dedicated to the public. On the capture of Athens by Xerxes, the collection was taken to Persia, to be restored two centuries later by Seleucus Nicator.^[62] The library of the kings of Pergamum, which Antony afterward presented to Cleopatra, is said by Plutarch^[63] to have grown to 200,000 rolls, which stands of course for a much smaller number of works.

The most comprehensive of the earlier private collections of books was undoubtedly that of Aristotle, to whose house Plato gave the name of “the house of the reader.”^[64] Diogenes Laërtius speaks of his possessing a thousand συγγράμματα and four hundred βιβλία. According to one account, the books of Aristotle were bequeathed to or secured by Neleus, and by him were sold to Ptolemy Philadelphus, who transferred them to Alexandria, together with a collection of other manuscripts bought in Athens and in Rhodes.^[65] Strabo says that the heirs of Neleus, ignorant people, buried the manuscripts in order to keep them from falling into the hands of the kings of Pergamum, and that they were seriously injured through damp and worms. When again dug up, they were, however, sold for a high price to Apellicon, who had certain of the works reproduced, in very defective editions, from the imperfect manuscripts. On the capture of Athens, Sulla took possession of such of the books as still remained and carried them off

to Rome, where they were arranged by the grammarian Tyrannion, and served as the text for the later editions issued by the Roman publishers.^[66]

It is probable, says Schmitz, that Ptolemy secured only a portion of the collection, while a number of the manuscripts came into the possession of Apellikon, and reached Rome through Sylla. Another large library, according to Memnon, one of the largest of the time, was that of Clearchus,^[67] Tyrant of Heraclea, who had been a student of Plato and Isocrates.

From the instances above quoted, it appears that it was as a rule only persons of considerable wealth who were able to bring together collections of books. An exception to this is the case of Euripides, who possessed no great fortune, but who had in his slave, Cephisophon, a perfect treasure. Cephisophon not merely took charge of the household affairs, but, as a skilled scribe, prepared for his master's library copies of the most noteworthy literary works of the time.^[68] Educated slaves were in the time of Euripides still scarce among the Greeks, while later it was principally from Greece that the Roman scholars and publishers secured the large number of copyists who were employed on literary work in Rome.

These references to the earlier collections of books are of interest in indicating something of the value in which literature was held as property, and of the estimates placed on books by their readers, while it must be admitted that they do not throw much light on the relations of these readers with the authors to whom they were indebted, and they are absolutely silent as to any remuneration coming to the authors for their labors. The earlier collections were comprised almost exclusively of works of poetry, and it is only when we get to the time of Aristotle that we begin to find in the libraries a fair proportion of works of philosophy and science, although Boeckh^[69] mentions references to works on agriculture as early as the lifetime of Socrates. For a long period, however, poetry formed by far the most important division of the libraries, indicating the great relative importance given in the earlier development of Greek culture to this branch of literature. It is interesting to bear in mind that at a somewhat similar stage of their intellectual development, the literature of the Egyptians was almost exclusively religious and astronomical, that of the Assyrians religious and historical (provided the rather monotonous narratives of the

royal campaigns are entitled to the name of history), while that of the Hebrews was limited to the sacred chronicles and the law.

It appears from such references as we find to the prices paid that, as compared with other luxuries, books remained very costly up to the time of the Roman occupation of Greece, or about 150 B.C. This is a negative evidence that there was as yet no effective publishing machinery through which could be provided the means required for keeping up a staff of competent copyists, and that the multiplication of books was therefore practically dependent upon the enterprise of such individual owners as may have been fortunate enough to be able to secure slaves of sufficient education to serve as scribes. Plato is reported to have paid for three books of Philolaüs, which Dion bought for him in Sicily, three Attic talents,^[70] equal in our currency to \$3240,—and the equivalent, of course, of a much larger sum, estimated in its purchasing power for food. Aristotle paid a similar sum for some few books of Speusippus, purchased after the death of the latter.^[71]

If such instances can be accepted as a fair expression of the market value of literature, it is evident that the ownership of books must have been limited to a very small circle. The cost of books depended, of course, largely upon the cost of papyrus, for which Greece was dependent upon Egypt. An inscription of the year 407 B.C., quoted by Rangabé, gives the price of a sheet of papyrus (ὁ χάρτης) at one drachme and two oboli, the equivalent of about twenty-five cents.

On the other hand, Aristophanes, in his comedy of *The Frogs*, represented in 405 B.C., or about fifty years before the above purchase of Aristotle, uses some lines which have been interpreted as evidence of some general circulation, at least of dramatic compositions. According to the scheme of the play, Æschylus and Euripides, contestants for the public favor, have set forth each for himself the beauties and claims of their respective masterpieces. The *Chorus* then speaks, cautioning the poets that it will be proper for them to present more fully the distinctive features of their tragedies, and to explain the same for the judgment of the audience. That the audience is capable of such judgment is asserted in the following words (paraphrased by Müller^[72]):

“Are you troubled with the fear that your hearers lack the intelligence to appreciate the fine points of your analyses? Let such fear vanish, for there can be no lack of understanding with these hearers. Some of them are men of experience in campaigns; others are in the habit of instructing themselves from books, and have come to the performance each furnished with a scroll with which to freshen his memory, while each also is fully armed with mother-wit. Have no fear therefore. They will have full understanding of all that you may wish to discuss before them.”

Müller proceeds to make an analysis of the purport of the references in this passage, pointing out that the experience of old campaigners would help them to the appreciation of the robust and stirring compositions of Æschylus, while the scholarly habits of the lovers of books would keep them in close sympathy with the complex intellectual problems considered by Euripides.

The sharper edge of the comparison is directed against Euripides, who is always referred to by Aristophanes as a book-worm. Müller further contends that the references to each hearer being “provided with his little book” (or book of the play) must be understood as merely a piece of humorous exaggeration, as during the last years of the Peloponnesian war, when the resources of Athens had been seriously diminished, when poverty was general, and men’s minds were agitated with the excitement of the campaign, few people could have had the money for the buying, or the leisure for the reading, of books.

Athenæus concludes, from a fragment of the comedy writer Alexis (a contemporary of Alexander), that it was not until the time of Alexander that the reading of books played any important part in the intellectual life of the Greeks.^[73] In the comedy of Prodicus, entitled *The Choice of Hercules*, portions of which have been preserved in the *Memorabilia* of Xenophon, Linus, the instructor of Hercules, is represented as directing his pupil to select for his reading one out of a number of books which are lying before him. Among the authors whose works are specified in the list are Orpheus, Hesiod, Homer, Chœrilus, and Epicharmus. (The last named is the first Greek writer of comedy of whom we have any trustworthy account. His first work was produced about 500 B.C.)^[74] Hercules, passing by the poetry,

seizes a volume on cookery, the work of an actor named Simos, who was also famous as a cook.^[75]

Artemon, a grammarian of Cassandria in Macedonia, who wrote shortly after the death of Aristotle and who made a collection of the letters of Aristotle, published a dissertation on the collecting and the use of books, which gives ground for the impression that in his time there was already in Macedonia or Northern Greece a circle of bibliophiles, ready to give attention to the counsels of this forerunner of Dibdin, and possibly able also to pay for the books.

A piece of evidence against the contention that the price of books was high in the time of Plato, is supplied, according to certain commentators, by Plato himself. From a paragraph in the *Apology* Boeckh^[76] understands that some kind of book-trade must have been carried on in the orchestra of the theatre (during the time, of course, when no performance was going on), and that the writings of Anaxagoras were offered for sale for one drachme; and Buchsenschutz^[77] takes the same view of Plato's reference. The words used by Plato are put into the mouth of Socrates, who is represented as contending; first, that the opinions for the utterance of which he has been charged with heresy or impiety, are in substance the same as those already given to the world by Anaxagoras and others; second, that these views have been so widely published that they have become public property, for the quoting of which no single person can properly be held responsible; and thirdly, that they can be obtained in the theatre for a drachme. The particular writings of Anaxagoras to which Socrates here refers, contain his theories concerning the nature of the sun, the moon, the earth, and the creating power of divinity. Schmitz is, however, inclined to believe not that the books containing these doctrines could be purchased in the theatre, but that the theories of Anaxagoras were at the time freely quoted in the popular dramas (such as those of Euripides), and that it was in listening to these plays in the theatre that the public could without difficulty obtain a knowledge of the new views.^[78]

The usual price of admission to the Athenian theatres was, in the time of Pericles, two oboli, or about six cents, but on special holidays, when the performance continued three days, this price was often raised to a drachme, or eighteen cents.^[79] In the absence of any other references to this supposed

practice of turning orchestra stalls into book-stalls, the weight of probability appears to favor the conclusions of Schmitz rather than those of Boeckh.

Schmitz admits that it is not practicable to find in the existing dramas of Euripides examples of such presentation of the Anaxagorean theories of the universe, but he points out that a large portion of the writings of this author was undoubtedly lost in the destruction of the great war, and that this same war prevented any wide distribution of the authenticated copies, although many of the tragedies were so popular that the songs from them were sung throughout the land. By the end of the war the fame of the tragedies had reached Sicily, although very few of the manuscripts could yet have got across the sea. After the defeat of the Athenians before Syracuse, some of those who had been captured or who, escaping from the Syracusans, had wandered over the island, found a temporary livelihood or even purchased their freedom by reciting the plays of Euripides, and on their return to Athens they took occasion to express to the poet their gratitude for the timely service rendered by his genius.^[80]

To the coast cities of Asia Minor, as well as throughout the Greek colonies of the Mediterranean, had come the fame of the new tragedian, although here also copies of the plays themselves appear to have been very scarce. Plutarch relates^[80] that the inhabitants of Caunus (a city of Caria), when besought for shelter by an Athenian vessel chased by pirates, wanted first to know whether the Athenians could recite for them the songs of Euripides.^[81] It is to be hoped that the Caunusians did not insist upon being paid in advance, and upon having the recitations made before they permitted the hard-pressed vessel to gain the shelter of the harbor. In all places and among all classes where Greek was the language, the songs of Euripides appear to have secured an immediate popularity, while by the scholars also was given an appreciation no less cordial. Both Plato^[82] and Aristotle^[83] ranked Euripides above Sophocles and Æschylus.

Alexander the Great entertained the guests at his banquets by reciting long passages from Euripides.^[84] Throughout Greece these tragedies appear for many years to have been the compositions most frequently selected for public readings. Lucian relates^[85] that the Cynic Demetrius, who lived in Corinth in the first century, and whom Seneca refers to as a new friend, heard an “uneducated man” read before an audience *The Bacchantes* of

Euripides. As the reader came to the lines in which the messenger announces the “terrible deed” of Agave and the fearful fate of Pentheus, Demetrius snatched the book from his hands with the words: “It is better for poor Pentheus to be murdered by me than by you.” The point of interest for Lucian (who wrote about 150 A.D.) was the play on the term “murdered,” and for us the example of the practice, in the first century, of the public reading of standard literature, so general that an audience (rather than not to hear the composition) would listen even to an “ignorant reader.”

Returning to the question of the distribution and price of books, we find a reference by Xenophon^[86] to some “chests full of valuable books” having been saved “with other costly articles” from the cargo of an Athenian vessel shipwrecked at Salmydessus, a city on the Euxine.

This appears to be the earliest reference on record to any sending of supplies of books from Greece to the colonies, but even here there is no evidence that the volumes were forwarded by dealers, and it is probable that the “chests” contained the private library of some wealthy Athenian collector who had migrated to Pontus. There is no question, however, but that in the time of Xenophon (445-355 B.C.) Athens was the centre not only of the literary activity of Greece, but of any book-trade that existed.

It seems evident that in Greece, as later in Rome, the earliest booksellers were the scribes, who with their own labor had prepared the parchment or papyrus scrolls which constituted their stock in trade.

The next step in the development of the business was a very natural one, namely, the introduction of the capitalist, who, instead of working with his own hands, employed a staff of copyists and sold the products of their labor. It is only surprising that the continued high price paid for fair copies of noted works and the steady demand for such copies, should not have tempted dealers more rapidly into the business. The principal obstacle was for many years the difficulty of securing a sufficiency of skilled copyists the accuracy of whose work could be trusted. According to Schmitz, there is no mention of the appearance of booksellers in Athens earlier than the fifth century B.C.

The Athenian comedy, which touched with its keen raillery every phase of life, whether public or private, did not overlook this new mode of occupation. The references are as a rule not complimentary, but, as the

comedians spared nothing in their mockery, the fact need not stand to the discredit of the first booksellers. Possibly the earliest mention of the trade is by Aristomenes, who, in a comedy entitled *The Deceivers* (performed about 470 B.C.), speaks of a “Dealer in Books.” Cratinus, in his play *The Mechanics* (written about 450 B.C.), mentions a copyist (βιβλιογράφος)^[87]; Theopompus, writing about 330 B.C., uses the term “bookseller”^[88] (βιβλιοπώλης); Nicophon gives a list of “men who support themselves with the labor of their hands” (χειρογαστορες), and in this list groups the bibliopoles in with the dealers in fish, fruit, figs, leather, meal, and household utensils.^[89] It would seem as if in this instance the term βιβλιοπώλης must have been used as synonymous with or at least as including βιβλιογράφος, the scribe and the seller of the manuscripts being one and the same person. Antiphanes, born in Rhodes B.C. 408, who is credited by Suidas with having written over three hundred dramas, which were very popular in Athens, refers to “book-copyists,” and also to books which had been “sewed and glued.”^[90] The comic writer, Plato, who was a contemporary of Socrates, makes first mention of “written leaves,” *i. e.*, papyrus. The term used by him, χάρται, was, according to Birt, when standing alone, more usually applied to leaves of papyrus prepared for writing, but still blank; χάρται γεγραμμένοι standing for the inscribed leaves.

We may conclude from Nicophon’s having included the booksellers in his list of traders that they had their shops or stalls on the market-place. Eupolis also speaks of the “place where books are sold,” (οὗ τὰ βιβλία ὤνια),^[91] and it appears therefore that as early as 430 B.C. a special place in the market must have been reserved for the book-trade—an Athenian Paternoster Row, or, more nearly perhaps, a Quai Voltaire. It was, however, not until the time of Alexander the Great that the business of making and selling books—that is, attested copies of the works of popular writers—appears to have developed into importance.

Until the business of book-making had become systematized, the admirers of a poet or philosopher were obliged to supply themselves with his works through their own handiwork, unless they were fortunate enough to possess slaves educated as scribes. This test of the reader’s admiration was assuredly rather a severe one. It is certain that the number of disciples of modern authors would be enormously limited if, as a first condition for the

enjoyment of their writings, the would-be readers were under the necessity of transcribing the copies with their own hands. Imagine the extent of the task for the admirers of *Clarissa Harlowe*, or for those who absorbed their history through the ninety odd romances of G. P. R. James!

As the supply of educated slaves increased, there was, of course, less need for individual scholars to devote their own handiwork to copying of manuscripts for their libraries. It was cheaper to employ the labor of slaves, and to use their own time for more important work. The names of some of the slaves who did good service as scribes have been preserved in history. Mention has already been made of Cephisophon, the slave, secretary, and personal friend of Euripides. One of Plato's dialogues is distinguished by the name of *Phædon of Elis*, who had been sold as a slave in his youth and had been employed as a scribe. The attention of Socrates was attracted by his capable work, and he persuaded Crito to purchase his freedom.^[92]

The poet Philoxenus of Cythera was sold as a slave to Melanippides (the younger), whom he served as a scribe, and whose poetry he was said to have surpassed with his own productions. There are many similar instances both of slaves who succeeded in securing an education and in doing noteworthy literary work, and of men of education who had, through the fortunes of war or through the loss of their property, fallen into the position of slaves, and who were then utilized by their masters for literary work.

There is also evidence that the state caused intelligent slaves to be instructed in writing in order to be able to use them for work on the public records or as clerks for the officials.^[93]

It is to be borne in mind that the (to us) extraordinary extent to which the Greeks were able to develop their power of memorizing enabled them often to trust to their memory where modern students would be helpless without the written (or the printed) word. "My father," says Niceratus in *The Banquet* of Xenophon, "compelled me to learn by heart all the poetry of Homer, and I could repeat without break the entire *Iliad* and *Odyssey*."^[94] The boys in school were given as their daily task the memorizing of the works of the poets, and what was begun under compulsion appears to have been continued in later life as a pleasure.

Such an exceptional development of the power of memory, making of it almost a distinct faculty from that which the present generation knows

under the name, may properly be credited with some influence upon the slowness of the growth among the ancients of any idea of property in an intellectual production. As long as men could carry their libraries in their heads, and when they desired to entertain themselves with a work of literature, needed only to think it to themselves (or even to recite it to themselves) instead of being under the necessity of reading it to themselves, they could hardly have the feeling that comes to the modern reader (if he be a conscientious person) of an indebtedness to the author, an indebtedness which is in large part connected with the actual use of the copy of the work. In the early Greek community, a very few copies (or even a single copy) of a great poem were sufficient in a short space of time to place the work of the poet in the minds of all the active-minded citizens, such men as would to-day be frequenters of the bookstores. In the Homeric times it proved, in fact, to be possible to permeate a community with the inspiration of the national epics without the aid of any written copies whatever. For the service rendered by these early bards, the community might, and very possibly did, feel under an obligation of some kind, but the individual reciter who had absorbed the poems into the possession of his memory, and the readers to whom he transmitted the enjoyment of these poems, could not have suggested to them any such feeling of personal obligation to the poet as is experienced by the reader of to-day who is called upon to buy from the author, through the publisher, the text of any work of which he desires the enjoyment. The Greek of these earlier times needed no texts and dreamed of no bookseller. He inherited from his ancestors the poetry of the preceding generation with the same sense of natural right as that with which he took possession of his ancestral acres; and he absorbed into his memory for his daily enjoyment the poetry of his own day with the same freedom and almost the same unconsciousness as that with which he took into his lungs the air about him. In this way the literature with which he had to do became really a part of himself, and he may be said to have become possessed of it in a way which would hardly be possible for one who was simply a reader of books. It is not easy to realize how much we have lost in these days of printed books in losing this magnificent power of memorizing our literature and carrying it about with us, instead of going to our libraries for it and taking it in by scraps. How much more to us, for instance, would Shakespeare's plays stand for, if they could be stored in our heads ready for

use when wanted, instead of being available, as at present, only in the occasional reading circle, or the still less frequent Shakespearian revival.

An author who seems to have taken exceptional pains to secure a circulation for his productions was Demosthenes, but it is to be borne in mind that his interest as a politician, or perhaps it is fairer to say as a statesman, desiring to arouse public opinion in behalf of his policy, was probably even keener than his ambition as an author hoping for a popular appreciation of his eloquence. Whatever the motive or combination of motives, it appears that after the delivery of an oration he would act as his own reporter, writing out revised copies and distributing the same among his friends for distribution.^[95] He had a special interest in securing a wide popular circulation for his speeches in the matter of the guardianship, and for those against Æschines and in behalf of Phormion, and the copies of these,^[96] prepared by his own hand or under his orders, certainly came into the hands of many readers. Copies of the speeches made by Demosthenes against Philip must have been brought to the latter by some of the orator's opponents. Such at least is the interpretation given by Schmitz to the well known exclamation of Philip: "If I had heard him speak these words, I should myself have been compelled to lead the campaign against Philip."^[97]

An early reference to the practice of making publication of a book in any formal manner (as distinguished from the permission accorded to friends to make transcripts for their own use) is given by Isocrates, writing about 400 B.C. He speaks of hesitating to publish his *Panathenaicus* (φανερὰν ποιῆσαι, διαδιδόναι). He began the work, says Birt, when he was already ninety-four, was obliged to leave it on account of illness, but took it up again three years later, and it was then that (conscientious author as he was) he hesitated to give the volume to the public, because some friend to whom he had read it was not fully in accord with its conclusions.^[98]

The development of the trade of making and selling books came but slowly, but received no little impetus through the taste for literature implanted by Aristotle in his royal pupil Alexander. The latter appears to have given frequent commissions to his friend Harpalus for the purchase of books. From the mention by Plutarch^[99] it has been thought Harpalus must have been sent from Asia with instructions to procure for Alexander a long

series of works whose titles are given. Schmitz points out, however, that Alexander could hardly have been in a position during his Asiatic campaigns and journeyings to collect a library, and these commissions to Harpalus must have been made at an earlier date, before Alexander had left Macedonia and while the “friend of his youth” was sojourning in Athens.

The one point that is clear and that is of interest to us in this connection is that, at about 330 B.C., Harpalus was able to purchase in Athens, which was already referred to as the centre of the book-trade of Greece, “many tragedies of Euripides, Æschylus, and Sophocles, dithyrambic poems by Telestes and Philoxenus, the historical writings of Philistus of Syracuse, together with a number of rare works.” From Athens also, at about the same time, Mnaseas, the father of Zeno, brought to his son, in the course of “various business journeys,” copies of all the “published writings of Socrates.”^[100] There is also a reference in Dionysius of Halicarnassus^[101] to the many volumes of Isocrates which had been published (literally “placed among the people”) by the Athenian booksellers. Schmitz speaks of the great impetus given to the production of books, that is, to the reproduction of copies of the works of the writers accepted as standard, by the literary taste and ambition of many of the successors of Alexander, notably the Ptolemies in Alexandria and the Attali of Pergamum. He mentions further that as one result of the greater and more rapid production of manuscripts there was a considerable deterioration in the quality and standard of accuracy of the copies. The complaints of readers and collectors concerning the errors and omissions in the manuscripts begin from this time to be very frequent. It would, in fact, have been very surprising if the larger portion of the manuscripts that came into the market had not been more or less imperfect. As soon as their production became a matter of trade instead of, as at first, a labor of love on the part of scholars, the work of copying came into the hands of scribes working for pay, or of slaves, and partly from lack of literary interest, partly also doubtless from pure ignorance, the many opportunities for blunders appear to have been taken full advantage of. Fortunately it was only the readers who suffered, and the authors, long since dead, were spared the misery of knowing how grievously their productions were mutilated. Different sets of copyists naturally came to have varying reputations for accurate or inaccurate manuscripts. Diogenes Laërtius^[102] speaks of skilled scribes sent from Pella by Antigonus Gonatas

to Zeno, the Stoic, to be employed in making trustworthy transcripts of that philosopher's works, for which the Macedonian king had a great admiration. Diogenes tells us further that when Zeno, who came from Citium in Cyprus, first arrived in Athens, he had suffered shipwreck and had lost near the Piræus, just as he was reaching his journey's end, both his vessel and the Phœnician wares which constituted its cargo. Discouraged by his misfortune, he strolled gloomily along the avenue from the harbor ("by the dark rows of the olive trees") toward the city in which he was now a poverty-stricken stranger. As he reached the market-place and passed a bookseller's shop, he heard the bookseller read aloud. He stopped to listen, and there came to him words of good counsel from the *Memoirs* of Xenophon. "Cultivate a cheerful endurance of trouble and an earnest striving after knowledge, for these are the conditions of a useful and happy life." Cheered by this hopeful counsel, Zeno entered the bookseller's shop and inquired where he should find the teachers from whom he could learn such wise philosophy. In reply, the bookseller, evidently well informed as to the literary life of his city, pointed out the cynic Crates who happened to be passing at the moment. ^[103]

The intellectual life of Athens, which a century before had centred about the dramatic poets, appears at this time to have been principally devoted to the study of philosophy. Among the other noteworthy changes that had been brought about during the hundred odd years since the death of Euripides, was the evolution of the bookseller or publisher who had now evidently become a permanent institution, and whose shop is recognized as a centre of literary information.

We can imagine some European student landing, two thousand years later, in Boston and applying, with an inquiry similar to that put by Zeno, at the corner shop of Ticknor & Fields. How easy would have been the answer if at the moment had passed along Washington Street the slender figure of Emerson!

The question has been raised whether the passage from Diogenes, above quoted, might not indicate that booksellers or others, owning manuscript copies of popular works, made a regular business of reading aloud to hearers paying for the privilege. Such a practice would apparently have fitted in very well with the customs of the time, and would have met the needs of many of the poorer students for whom the purchase of manuscripts

was still difficult. It would also have formed a very natural sequence to the long-standing custom of the recital from memory of the works of the old poets. While it seems very possible from the conditions that public readers found occupation in this way, there is no trustworthy evidence to such effect.

While Zeno was teaching in Athens, a certain Callinus appears to have won distinction among the scribes of Athens for the accuracy and beauty of his manuscripts. The Peripatetic philosopher Lycon, who died about 250 B.C., bequeathed to his slave Chares such of his writings as had already been “published,” while the unpublished works were left to Kallinus “in order that accurate transcripts of the same might be prepared for publication.”^[104]

As the rivalry which continued for some time between the Ptolemies and the Attali in the collecting of libraries caused the price of books in Athens to remain high, a further result was the establishing of other centres of book-production, of which for a long time the island of Rhodes was the most important. By about 250 B.C., the literary activity of the Alexandrian scholars, encouraged by Ptolemy Philadelphus, to whom the founding of the great library was probably due, caused Alexandria to become one of the great book-marts of the world.

After the first conquest of Greece by the Romans had been practically completed by the capture of Corinth in 146 B.C., there appears to have been a revival in Athens of the trade in books, owing to the increased demand from the scholars of Rome, where Greek was accepted as the language of refined literature and where Greek authors were diligently studied. Lucullus is said by Plutarch^[105] to have brought from Rome (about 66 B.C.) many books gathered as booty from the cities of Asia Minor, and many more which he had purchased in Athens, together with a great collection of statues and paintings.

The great hall or library in which his collections were stored became the resort of the scholarly and cultivated society of the city, and its treasures of art and literature were, according to Plutarch, freely placed at the disposal of any visitors fitted to appreciate them. Sulla, without claiming to be a scholar, was also a collector of Greek books. He secured in Athens the great library of Apellicon of Teos, which included the writings of Aristotle and of Theophrastus. Apellicon, who died in Athens in the year 84 B.C., had a

mania for collecting books, and was reputed to be by no means scrupulous as to the means by which he acquired them. If he saw a rare work which he could not purchase, he would, if possible, steal it; and once he was near losing his life in Athens in being detected in such a theft. His Aristotle manuscripts, which were said to be the work of the philosopher's own hand, had been found in a cave at Troas where they had suffered greatly from worms and dampness.^[106] After the manuscripts reached Rome they were transcribed by Tyrannion the grammarian. He sent copies to Andronicus of Rhodes, which became the basis of that philosopher's edition of Aristotle's works.^[107] Pomponius Atticus utilized his sojourn in Athens (in 83 B.C.) not only to familiarize himself with the great works of Greek literature, but to cause to be made a number of copies of some of the more popular of these, which copies he afterwards sold in Rome "to great advantage."^[108]

There is a reference in Pliny to a miniature copy of the *Iliad* prepared about this time, which was so diminutive that it could be contained in a nutshell. He speaks of it as *Ilias in nuce*. Pliny refers to Cicero as his authority for the existence of this manuscript, in which he is interested principally as an evidence of the possibilities of human eyesight. Its interest in connection with our subject is of course as an example of the perfection which had been attained in the first century before Christ in the art of book production.^[109]

Notwithstanding the stimulus given to the production of manuscripts by the increasing demand for these in Italy, books continued to be dear, even through the greater part of the first century. The men of Ephesus who were induced under the teachings of Paul to burn their books concerning "curious arts" counted the price of them and found it to be fifty thousand pieces of silver.

The history of Greek literature presents few other instances of the destruction of books, whether for the sake of conscience or for the good of the community, or under the authority of the state. There are, however, occasional references to the exercise on the part of the rulers of a supervision of the literature of the people on the ground of protecting their morals or religion. Probably the earliest instances in history of the prosecution of a book on the ground of its pernicious doctrines is that of the

confiscation, in Athens, of the writings of Protagoras, which were in 411 B.C. condemned as heretical.

All owners of copies of the condemned writings were warned by heralds to deliver the same at the Agora, and search was made among the private houses of those believed to be interested in the heretical doctrines. The copies secured were then burned in the Agora. Diogenes Laërtius, by whom the incident is narrated, goes on to say that the destruction was by no means complete, even of the copies in Athens, while no copies outside of Athens were affected.^[110] The attempt to suppress the doctrines of the philosopher by means of putting his books on an *index expurgatorius* was probably as little successful as were similar attempts with the doctrines of other “heretics” in later centuries.

The fact that high prices could be depended upon for copies of standard works ought to have insured a fair measure of accuracy in the manuscript. Complaints, however, appear repeatedly in the writing of the time (*i. e.*, the century before and that succeeding the birth of Christ) of the bad work furnished by the scribes. Much of the copying appears to have been done in haste, and with bad or careless penmanship, so that words of similar sound were interchanged and whole lines omitted or misplaced, and the difficulties of obtaining trustworthy texts of the works of older writers were enormously and needlessly increased. In order to enable a number of copyists to work together from one text, it appears that the original manuscript was often read aloud, the work of the scribes being thus done by ear. This would account for the interchanging of words resembling each other in sound.

Strabo, writing shortly before the birth of Christ, refers to an example of this unsatisfactory kind of bookmaking.

The grammarian Tyrannion, in publishing in company with certain Roman booksellers his edition of the writings of Aristotle, confided the work to scribes, whose copies were never even compared with the original manuscript. And, says Strabo, editions of other important classics, offered for sale in Alexandria and Rome, had been prepared with no more care.^[111] The reputation of the manuscripts transcribed at this period in Athens appears to have been but little better. The making, that is to say the duplication and publishing of books, had come to be a trade, and a trade of

considerable importance, but the men who first engaged in it appear to have had little professional or literary standard, and not to have realized that profits could be secured from quality of work as well as from quantity, and that for a publisher a reputation for accurate and trustworthy editions could itself be made valuable capital.

The publishers of Greece appear to have been characterized by modesty, for not one of those who did their work at the time of the greatest prosperity of the book-trade in Greece has left his name on record for posterity. The days were still to come when every book would bear its imprint bringing into lasting association the name of its publisher with that of the author. The Greek publishers appear not to have assumed, like the later Tonson, an ownership in their poets, nor do we, on the other hand, find in the utterances of the poets any expressions corresponding to the famous “My Murray” of Lord Byron. Curtius speaks of a reference in an inscription to the “Ptolemy” or “Ptolemaic” bookstore, but the name of the bookseller is not given. It is only later, when the Greek book-trade was in its decline, that we come across the names of two dealers in books, Callinus and Atticus. They are mentioned as famous during the lifetime of Lucian (about 120 to 200 A.D.), the former for the beauty and the latter for the accuracy of his manuscripts. It is an interesting coincidence that this Callinus, noted for the beauty of his texts, bears the same name as the scribe commended three centuries before by Zeno for the beauty and accuracy of his manuscripts. Their copies were much prized and brought high prices, not in Athens only, but in scholarly circles elsewhere. It is evident that each of these booksellers began business as a scribe, selling only the work produced by his own hands, but that as their orders increased it became necessary for them to employ a number of copyists, whose script, receiving a personal supervision and doubtless a careful collation with the original texts, could be guaranteed as up to the standard of their own handiwork. Of the other booksellers who were in Athens in his time Lucian speaks very contemptuously. “Look,” he says, “at these so-called booksellers, these peddlers! They are people of no scholarly attainments or personal cultivation; they have no literary judgment, and no knowledge how to distinguish the good and valuable from the bad and worthless.”^[112] Lucian had evidently a high standard of what a publisher ought to be.

Some of these Athenian booksellers whom Lucian thus berates for stupidity, appear also to have borne a poor reputation for honesty. Among other misdeeds charged against them was one, the ethics of which might have belonged to a much later period of bookmaking. In order to give to modern manuscripts the appearance of age, and to secure for them a high price as rare antiquities, they would bury them in heaps of grain until the color had changed and they had become tattered and worm-eaten. Lucian also satirizes the ambition of certain wealthy and ignorant individuals to keep pace with the literary fashion of the time, and to secure a repute for learning by paying high prices for great collections of costly books, which, when purchased, gave enjoyment “to none but the moths and the mice.”^[113] It was partly due to the competition of wealthy collectors of this kind that, notwithstanding the great increase in the production of copies, the price of books remained high, much to the detriment of all impecunious students.

The beauty of the calligraphy of the manuscripts of Callinus is known to us only through Lucian, but there are several writers who bear testimony to the accuracy of the transcripts prepared by his rival Atticus, who must, by the way, not be confused with the Roman Atticus, the friend of Cicero. Harpocration of Alexandria, known principally as the author of one of the first Greek dictionaries, makes several references to the authority of the Atticus editions of the speeches of Æschines and Demosthenes. The famous *Codex Parisinus* of Demosthenes is believed by Sauppe to be based upon the excellent textual authority of a manuscript of Atticus, and Sauppe further contends that, if Atticus did not work from an absolute original, he must have had before him a very well authenticated copy. In the fragment of a work by Galen (who wrote in Rome about 165 A.D.) upon certain passages in the *Timæus* of Plato which had to do with medicine, Galen makes Atticus his authority for the passages quoted by him, as if we were indebted to this bookseller for the text of the *Timæus* that has been preserved.^[114]

From the time of Lucian the interest in books steadily increased, book-collecting became fashionable, especially in Rome, and bibliophiles and bibliomaniacs were gradually evolved. At this time the beautifully written and carefully collated manuscripts which emanated from Athens bore a high reputation as compared with the much cheaper but less attractive and less trustworthy copies, which were produced in Alexandria and in Rome. In the book-shops of these two cities, during the first two centuries, a swifter and

less accurate system of transcribing appears to have prevailed, the work being largely done by slaves or by scribes who did not have accurate knowledge of the literature on which they were engaged, while the necessity of a careful collating of each copy with the original appears frequently to have been overlooked. Origen, writing about 190 A.D., speaks of confiding his works to the “swift writers of Alexandria” in order to secure for them a speedy and a wide circulation. He was looking for no other return for his labors than a large circle of readers, and a large influence for his teachings, and the proceeds of the sales of these “swiftly written copies” were in all probability entirely appropriated by the booksellers who owned or who employed the scribes.

After the conquest of Greece by the Romans the centre of book production passed from Athens first to Alexandria and later to Rome. For centuries to come, however, the book production of the world was chiefly concerned with the works of Greek authors, and the literary activity of successive generations drew its inspirations from Greek sources; and the writers of Greece, whose brilliant labors brought no remuneration for the laborers, gave to their country and to the world a body of literature which at least in one sense of the term can properly be called a magnificent literary property.





CHAPTER III.

Alexandria.

DURING the middle of the third century before Christ, the centre of literary activity was transferred from Athens to Alexandria, which became, under Ptolemy Philadelphus, and for more than three centuries remained, the great book-producing mart of the world. The literature of Alexandria was not, like that of Athens, and later that of Rome, something of slow growth and gradual development; the literary ambition and the resources of the second Ptolemy proved sufficient to bring together in a few years' time a great body of writers and students and to place at their disposal the largest collection of books known to antiquity.

The most important step in the undertaking of securing for the royal young city of the Nile the literary leadership of the world was the establishment of the great Museum, which appears to have comprised in one organization a great lending and reference library, a series of art collections, a group of colleges endowed for research (of the type of "All Souls" at Oxford), a university of instruction, and an academy with functions like those of the Paris Academy, assuming authority to fix a standard of language and of literary expression, and possibly even to decide concerning the relative rank of writers. The Museum (whose name is of course evidence of its Greek origin and character) is said to date from the year 290 B.C., in which case the founding of it must be credited to Ptolemy Soter, the father of Philadelphus, but its full organization and effective work certainly belonged to the reign of the latter.

Schools of instruction and courses of lectures had, as we have seen, existed at Athens for a century or more, and Athens had also possessed as early as 300 B.C., at least one public library. Alexandria, however, presents the first example of a university established on a state foundation, and offering to literary and scientific workers an assured income through salaried positions. Mahaffy finds in these positions a fair parallel to the institution of fellowships existing in the British universities. He says: "The fellows of the Alexandrian University, brought together into a society by the

second Ptolemy, developed that critical spirit which sifted the wheat from the chaff of Greek literature, and preserved for us the great masterpieces in carefully edited texts.”^[115]

A peculiarity of the literature of the Alexandrian school was that it had no connection with the country in which it was produced. No inspiration was derived by the Alexandrian writers from Egypt. The traditions and the accumulated learning of the civilization of the Nile (possibly the oldest civilization the world has known), appear to have been contemptuously ignored by the immigrant writers of the Museum, whose interests and whose literary connections remained exclusively Greek. The literature of Alexandria, as well during the reign of the Ptolemies as after the absorption of Egypt into the empire of Rome, remained a direct outgrowth of that of Greece (including, of course, in the term, *Magna Græcia* as well as the Peninsula). It presented certain distinctive characteristics of its own, but these seem to have been due rather to the academic influence, and in the later period to the growth of the theological spirit, than to the Egyptian environment or to the relations of the city with imperial Rome.

Of the several divisions of the Museum, that most frequently referred to in literature, and therefore the best known to later generations, is the Library, but concerning this the accounts are in many respects conflicting. John Tzetzes, a Greek scholar of the twelfth century, writing in Constantinople, tells us on the authority of the Alexandrian writer, Callimachus, that “the outer library” contained 42,000 rolls, while in the inner were placed 490,000 rolls. Callimachus noted “from an examination of the catalogue” that of the latter, 90,000, were βίβλοι ἀμιγεῖς or “unmixed” rolls, that is, rolls containing each only a single work, while 400,000 were βίβλοι συμμιγεῖς or “mixed” rolls, containing each two or more distinct works.^[116] Josephus quotes Demetrius Phalerius as saying to Ptolemy Soter (the first Ptolemy) that the library already contained 200,000 volumes, and would soon include 500,000. In consideration of what is known of the extent of the literature of the time in existence, these figures have been considered by many authorities as too large to be credible. Birt points out, however, that the wholesale purchases which Philadelphus caused to be made throughout Greece and the Greek cities of Asia Minor had unquestionably brought to Alexandria not only single copies and duplicates of all the existing works, but supplies of them by the dozens or hundreds. The unlimited prices

offered from the King's treasury by the librarians of the Museum caused a steady flow of books to set in towards Alexandria from all parts of the civilized world, and in addition to the purchase of all the manuscripts that were offered, the representatives of the King appear to have made a thorough ransacking of all the public and private collections that could be reached, and even to have taken by force volumes which the owners did not wish to sell. Ptolemy is said to have refused food to the Athenians during a famine except on condition that they would give him certain authenticated copies of the tragedies of Æschylus, Sophocles, and Euripides. It is fair to add that he paid for these tragedies, in addition to the promised shipment of corn, the sum of fifteen talents in silver, the equivalent of about \$16,200.

One result of this absorption of the book supplies into Alexandria was that the Greek world was now, and for a considerable time to come remained, dependent upon Alexandria for copies of all of the old writers. The measures of the King had succeeded not only in making it necessary for students and scholars to come to Alexandria for their reading, but in compelling book-buyers to come to Alexandrian dealers for their books. The publishers of Alexandria secured at once a monopoly for their editions, and through their enterprise in training numbers of skilled scribes (including now not only educated slaves but many of the impecunious scholars of the university) and by means of the distributing facilities afforded by the commercial connections of their capital, these publishers retained in their hands for about three centuries the control of the greater part of the book production of the world. The publishers of Athens disappeared, and the publishers who in the last century B.C. and the first century A.D. were carrying on book business in Rome, were obliged to have done in Alexandria the work of transcribing such of their issues as were in the Greek language, forming until the time of Trajan a very large, if not the larger, portion of their total production. The writers who formed what is known as the earlier Alexandrian school, comprised a considerable group of poets, of whom the most noteworthy were Theocritus, Callimachus, Timon, and Lycophron, and some original workers in original science, of whom the most important were Euclid, the father of geometry, Nicomachus, the first scientific arithmetician, Apollonius, whose work on conic sections still exists, and Aratus, the astronomer. If the first named of these scientists could have discounted some small portion even of the compensation due to

him from the many generations of students who have utilized his problems in geometry, he would have been one of the nabobs of literature.

The writers who were perhaps the most characteristic of the academic circle of Alexandria, were, however, the so-called “grammarians,” who rendered to their own generation and to posterity the invaluable service of preparing authoritative editions of the great writers of the past. It is to these Alexandrian editions that we are indebted for the larger portion of the works of the Greek writers which have been preserved, while the fact of the existence of many works of which the texts have been lost is known only through the references to their titles made by Alexandrian commentators. One of these grammarians was Zenodotus, the Ephesian, who is credited with having established the first grammar school in Alexandria (about 250 B.C.). Among others whose names have been preserved are Eratosthenes, Crates, Apollonius, Aristophanes, Aristarchus, and Zoilus. The term “grammarian” was evidently used to designate philologists and *literati*, whose work was by no means limited to the explanation of words, but corresponded more nearly to that done by the French cyclopædists. By this group of scholars was produced what is known as the *Alexandrian Canon*, a list of Greek authors whose writings were thought worthy of preservation as classics. This list included, according to Schöll,^[117] five epic poets, five iambic poets, nine lyric poets, fourteen tragic poets, thirteen comic poets, seven poets of the group known as the Pleiades, eight historians, ten orators, and five philosophers, or in all seventy-nine authors, of whom fifty-six were poets. The academic or official character thus given to the authors named in the *Canon* was of undoubted service to the world’s literature in giving the needed incentive for the preservation of their writings through the multiplication of well edited copies. Moore suggests, however, that this service may in some measure have been offset by the injury caused to literature through the comparative neglect into which were sure to fall a vast number of writers who had failed to be honored with the stamp of the *Canon*, and the consequent loss of their works for posterity.^[118]

Theocritus was a native of Syracuse, and appears to have divided his time between that city and Alexandria. In like manner Aratus, who belonged in Macedonia, did his literary work partly under the patronage of King Antigonos, and partly under that of Philadelphus. It appears to have been difficult for Greek authors, in whatever city they belonged, to escape the

centripetal influence of the Alexandrian Academy, and the attractions presented by so powerful a patron of literature as Philadelphus, while it is also probable that the inducements offered by the Alexandrian publishers had some part in making it desirable for authors of note to make frequent visits to the city. Mahaffy points out that the literature of Alexandria under the Ptolemies possessed little popular character, and was in the main the work of court writers and of scholastic pedants rather than of authors in sympathetic touch with the people. As one evidence of the accuracy of this description, he mentions the omission of any reference in the writings of contemporary Alexandrian writers to the great Galatian invasion which in the early part of the third century B.C. desolated a large part of Asia Minor. While speaking appreciatively of the service rendered to literature by the liberal patronage of Philadelphus, Mahaffy is of opinion that the Museum fellowships came to be utilized (as has been the case in later times with other literary circles supported by royal bounty) by a number of lazy incompetents. In his trenchant phrase, he refers to these deteriorated fellowships as “literary hencoops filled with overfed and idle savants.” His description recalls some at least of the features of the literary circle brought together by Frederick the Great, but the Prussian monarch was probably much more of a barbarian, even in his literary methods, than the Ptolemies of Alexandria.

The most noteworthy literary undertaking emanating from Alexandria was the Greek version of the Old Testament, known as the *Septuagint*, which was begun by certain learned Jews (according to tradition seventy Rabbis) about 285 B.C., and was completed in the course of years by various hands. The work of the translators had, of course, no connection with Greek literature other than as a recognition of the necessity of putting into Greek any writings for which a general distribution was planned. Eckhard says that the first use of the term Γραμματεῖς, in the sense of copyists, was as applied to these Hebrew scholars who were devoting themselves to the interpretation of the Hebrew Scriptures. He adds that, in order to leave them undisturbed in their scholarly undertaking, the king assigned to them a special quarter of the city called Kiriath Sepher, or, in the *Septuagint*, πόλις Γραμμάτων, the first literary quarter or Grub Street of which history makes mention. [\[119\]](#)

Among the grammarians who rendered important service in the editing of the older classics was Callimachus, whose name also appears in the list of poets. This is the same Callimachus whose report concerning the number of the books contained in the library is quoted by Tzetzes. Very few of the other names of the Alexandrian editors have been preserved, their editions having in most cases been modestly sent forth with the names of the authors only.

The publishers of Alexandria must also have been modest, for not a single firm has sent its name down to posterity. There are many references in later literature to the existence in Alexandria of great book-producing concerns, and, as Birt remarks, an active production of literature must have necessitated an effective machinery for the distribution of literature.

Strabo speaks of the excellent organization of the book scribes of Alexandria, and states that Roman methods of bookmaking were derived from Alexandria. The fact that for a number of centuries the entire supply of the most important of the materials required was derived from Egypt, gave an enormous advantage to the development of publishers in Alexandria. Even after the perfection of the methods for the preparation of parchment, papyrus retained its place in the preference of writers, Greek and Roman, and until about the fourth century A.D. the use of parchment continued very inconsiderable. But the papyrus was produced only in Egypt. It was therefore a serious blow at the literary undertakings of the kings of Pergamum when Philadelphus, in pursuance of his policy of concentrating in Alexandria the production of literature, prohibited for some years the export from Egypt of papyrus. It was this embargo that gave a temporary stimulus in Pergamum to the production of dressed skins, and the special interest taken by Pergamum in this industry caused the most carefully finished of the skins (very different in their appearance from the old time διφθέραι) to bear the name of parchment, *pergamentum*. With the removal of the embargo, however, the writers in Asia Minor appear in the main to have speedily gone back to the use of the more convenient papyrus; the production of parchment languished, and when in the latter Empire, parchment again came into vogue, as its manufacture could as well be carried on in many other places, it did not remain an important product of Pergamum.

Not only in Pergamum but also in Antioch was the attempt made, through the founding of museums (*i. e.*, libraries with schools attached) to create literary centres, but these efforts met with no considerable or lasting success. Mahaffy points out that these cities were, during the larger portion of their existence as separate capitals, much more frequently engaged in the excitement of campaigns than was the case with Alexandria. The position of the latter, practically secure against invasion and outside of the great struggles and contests which kept Asia Minor in a state of agitation, was peculiarly advantageous for the development of literary and scholastic interests.

Attractions were offered to literary men by the Court of Antioch, and Syria became under Greek and Macedonian influence a home of Hellenism, but no important literary undertaking took shape under the Seleucids except the translation by Berosus, the Chaldean High Priest, of certain cuneiform records, a work which was dedicated to Antiochus I.^[120] The only large example in literature of Syrian Greek is presented by the *New Testament*, as the *Septuagint* remained the most important record of the Greek of Alexandria.^[121] The library gathered at Antioch appears after the Roman occupation to have been destroyed or dispersed. The larger collection at Pergamum was, according to Plutarch, given by Antony to Cleopatra, and was absorbed into the Museum of Alexandria.

It is probable that in Alexandria not only the publishers but also the authors secured returns from the profits of book-production. It is difficult to explain in any other way the gathering of authors in Alexandria from all parts of the Greek world and their frequent references to their business arrangements for the production of their books. A definite piece of evidence is also afforded by the statement of Strabo, previously referred to, that the publishing methods of Rome were derived from those existing in Alexandria; and in Rome, as we shall see in a later chapter, a system of compensation to authors certainly came into practice. It is, however, unfortunately, the case, that no trustworthy data have been found from which can be gathered the details of the business relations of the Alexandrian authors with their publishers. Birt points out that the government itself went into the publishing business on a considerable scale, and its competition may easily have caused perplexities to the publishers. We have already seen that the Museum had, under the directions of the

King, taken pains to purchase the most authoritative texts known of the classic authors, while in certain cases they secured the entire supplies of the copies known to be in existence. Staffs of copyists were gathered in the Museum, and under the editorial supervision of the salaried Fellows, editions in more satisfactory form than had heretofore been known were produced for the public. It is not shown whether these copies were offered for sale directly at the Museum, or whether arrangements were entered into with the leading booksellers for their distribution in Alexandria and throughout the reading world. It is probable, however, that the latter course must have been adopted, for it is not likely that the Museum undertook to establish connections for the sale of its editions in foreign countries, while it is certain that for their university editions a wide and continual sale was secured.

One of the changes introduced in book-making methods under Philadelphus was the substitution of papyrus rolls of small and convenient size for the enormous scrolls heretofore in use. According to Birt, the average length of these larger rolls had not exceeded five hundred inches, or about forty-one feet, but instances are cited, in the earlier Egyptian literature, of rolls (principally Hieratic) reaching a length of one hundred and fifty feet. In the fifth century there was burned in Byzantium a Homeric roll one hundred and twenty feet in length.^[122] It is possible that the writer of the Apocalypse may have had one of these enormous scrolls in his vision when he beheld the record of the sins of Babylon reaching to the heavens.

Callimachus, the grammarian, who seemed to have had as much responsibility as any man of his group in shaping the literary work of the Academy of Philadelphus, gave utterance to the dictum, "A big book is a big nuisance," τὸ μέγα βιβλίον ἴσον ἔλεγεν εἶναι τῷ μεγάλῳ κακῷ,^[123] and from his time the cumbersome scrolls began to disappear, and as well for the new editions of the classics as for the literature of the day, the small rolls came into use. These smaller rolls would contain in poetry from 350 to 750 lines each, so that for the *Iliad* and *Odyssey*, for instance, thirty-six rolls were required. For works in prose each roll would usually contain from 700 to 1500 lines, while specimens have been found with as few as 150 lines.^[124] Such rolls would comprise from ten to at the most two hundred pages.^[125]

Birt is of opinion that this question of the extent of the sheets available for the writer and the nature of the divisions in the subject suggested by the division in the material, had a very marked influence upon the style, proportioning, and subdivisions of works of literature. He goes so far as to ascribe to this cause the evolution of epigrammatic literature, *vers de société*, and light and superficial court poetry of the Alexandrian school, which formed so sharp a contrast to the massive tragedies of the great poets of Attica. I can but think, however, that Birt has got the causation reversed, as it seems more probable that a certain style of writing should have brought about a change in the method of dividing writing paper than that the paper-makers should have been in a position, simply by changing the form of their rolls, to evolve a new style of literature, or even to play any important part in such evolution.

This increasing use of small rolls must, of course, be taken into account in calculating the number of works contained in all the post-Alexandrian libraries as well as in the great collection of the Museum of Philadelphus.

Birt ascribes to the limitation presented by the size of the rolls the division of narratives into “books,” but it is certainly the case that there are examples of such division in the works of writers of a much earlier date, when large rolls were still customary. Xenophon’s *Anabasis*, for instance, is so divided.^[126] The books in this are also peculiar, as before mentioned, in being preceded by summaries of the preceding books. The length of a dramatic poem was naturally determined by the time that could be allotted for the performance. They contained from 1300 to 1700 lines, and each drama constituted a “book,” although several books might, even under the new fashion of smaller rolls, still be included in one roll.

As fresh supplies of the classic writings came to be distributed through the civilized world, more particularly, of course, among the Greek cities, the monopoly established by the policy of the Ptolemies for the Alexandrian editions gradually came to an end, and the production of books took a fresh start in other centres. The monopoly of the paper-makers, however, continued, for nowhere but in the valley of the Nile could the papyrus be made to grow, and during the first two or three centuries of the Roman Empire the extent of the book-making markets supplied by the paper industries must have been so enormous that it is difficult to understand how the growth of the papyrus, in the limited district suitable for it, could have

been sufficient to meet the requirements. To modern Egypt, according to Wilkinson and other authorities, the plant is unknown, for it has entirely disappeared from its ancient habitat on the banks of the Nile. It would seem, therefore, that, like flax and the cotton plant, it required for its existence certain special conditions which could be insured only through careful cultivation. The words of the Hebrew prophet have thus been realized: "The paper reeds by the brooks, by the mouth of the brooks, ... shall wither, be driven away, and be no more."^[127] It is probable that the cultivation was finally brought to a close in the seventh century, when the Saracens took possession of Egypt.

The importance of Alexandria as one of the chief sources of book-production endured for three centuries or more after its conquest by the Romans in the year 30 B.C. As long as the language and literature of the Greeks continued to be the fashion among the cultivated circles in the Roman Empire, the supplies of books prepared by the Greek copyists continued to be largely drawn from Alexandria. By the close of the first century, however, the centre of literary activity had been transferred to Rome, and it was no longer to Alexandria but to Rome as the literary as well as the official capital of the world, that men of letters now journeyed from all parts of the empire.

The Alexandrian Academy of letters was succeeded by the Alexandrian school of theology, and to the city of the Ptolemies is probably to be credited the evolution of the *odium theologicum*, and the beginning of the long series of fierce and bitter theological contests which have unfortunately played so large a part in the history of the Christian Church, and have had so marked an influence on the history of the world. The names of Philo, Ammonius, and later of Plotinus, Iamblichus, Clemens, Origen, and Porphyry are the best known of the Alexandrian lecturers and writers of the first two centuries after Christ, whose teachings in philosophy and theology exercised influence on the thought of their time and on the metaphysical and theological conception of generations to come. In the fourth century came the more noteworthy Athanasius, and in the fifth Cyril, of whom such a vivid picture is given in Kingsley's *Hypatia*. That curious combination of Oriental mysticism with the Hebrew and Christian creeds known as Gnosticism, if it did not originate in Alexandria, was largely

taught there during the first two centuries A.D., among the earlier teachers being Basilides, Valentinus, Heracleon, and Theodotus.

From the various schools of metaphysics and theology was poured out during the first three centuries after Christ a great body of writings, which found their way into the remotest corners of the Christian world, and the persisting influence of which can be traced in not a few of the creeds even of to-day. It is probable, however, that important in other ways as this literature was, it presented few examples of literary property in the shape of returns to its author. The writers on metaphysical, theological, and religious subjects were, in fact, so keenly interested in extending the knowledge of their special views and tenets, and in furthering the influence of the creeds and systems of belief with which they had identified themselves, that they were very ready to facilitate by every possible means the distribution of their works, and to give to all who desired the fullest possible freedom for the multiplication of copies. The booksellers may have profited to some extent by the activity of the public interest in the rivalries of the various schools, but it appears as if the compensation of the authors must, like that of the Athenian philosophers of five or six hundred years earlier, have been limited to such payments as were made by the attendants on their lectures.

Our consideration of the relations of authors with their readers, and concerning the nature and extent of the remuneration secured for literary undertakings, must now be transferred to imperial Rome, the city from which what is known as classical literature derives its largest heritage, a heritage second in importance only to that to be credited to Athens.





CHAPTER IV.

Book-Terminology in Classic Times.

BEFORE proceeding to the consideration of the conditions under which works of literature in Rome were prepared by the writers and were brought within reach of the hearers or readers, it will be convenient to give consideration to the different forms of books which existed among the ancients, the various names by which these forms were known, and the nature of the material from which they were prepared.

The history of the different materials used in the writing of books and of the various terms employed to designate the books themselves, throws light on the conditions and the development of the production and distribution of literature. The baked clay tablets of the Chaldeans and Assyrians have already been referred to. Layard speaks of those found by him as of different sizes, the largest being flat and measuring nine inches by six and a half, while the smallest were slightly convex, and in some cases not more than an inch long, with but one or two lines of writing. The cuneiform characters on most of them were singularly sharp and well defined, but so minute in some instances as to be illegible without the aid of a magnifying glass. Curiously enough, in the same ruins with the tablets have been found specimens of the glass lenses which were probably used by their readers. Specimens have also been found of the instrument which was employed to trace the cuneiform characters, and its form sufficiently accounts for the peculiar shape of these characters, a shape which was imitated by the engravers on stone. The tracer is a little iron rod (a *stylus*), not pointed but triangular at the end. By slightly pressing this end on the cake of soft moist clay held in the left hand, no other sign could be obtained but that of a wedge, the direction being determined by a turn of the wrist, presenting the instrument in various positions. The tablets, having been thus inscribed on both sides and accurately numbered or folioed, were baked in the oven.

An astronomical work discovered by George Smith comprised seventy such tablets, say one hundred and forty pages. The first of these begins with the words "When the gods Anu," and this seems to have been taken as the

title of the work, for each successive tablet bears the notice “First (second or third) tablet of ‘When the gods Anu.’ Further, to guard against all chance of confusion, the last line of one tablet is repeated as the first line of the following one—a fashion which we still see in old books, in which the last word or two at the bottom of a page is repeated at the top of the next.... If the tablets were to be impressed with figures or hieroglyphics in place of or in addition to the cuneiform characters, engraved cylinders were used of some hard stone, such as jasper, cornelian, or agate.... Tablets have also been found (usually in foundation stones) of gold, silver, copper, lead, and tin.”^[128]

Referring to the care with which each monarch gathered into his palace the chronicles of his reign, building long series of inscribed tablets into the walls and burying others beneath the foundation stones, Ménant says:

“It was not mere whim which impelled the kings of Assyria to build so assiduously. Palaces had in those times a destination which they have no longer in ours. Not only was the palace indeed the dwelling of royalty, but, as the inscriptions indicate, it was also the *Book*, which each sovereign began at his accession to the throne, and in which he was to record the history of his reign.”

Painstaking and slow as the method appears to have been in which the Babylonians and Assyrians recorded the earliest known literature of the world, in one respect at least they achieved a success greater than that of any of the literature-producing nations who were to follow them. Their books were made to last, and through forty centuries of vicissitudes such as would have crumbled into unrecognizable dust the collections of the Vatican or of the British Museum, the mounds of Mesopotamia have safely protected the libraries of the Chaldean kings, and it is probable that, notwithstanding the completeness of the devastation that overwhelmed the Assyrian lands, a larger proportion of the entire body of Assyrian literature has been preserved for the students of to-day than of any national literature which came into existence prior to the invention of printing.

The book of Egyptian literature was nearly always written on papyrus, that is, on the tissue prepared from the stems of the papyrus plant, a species of reed which in ancient times abounded on the banks of the Nile. In the

earlier days, there are instances of palm-leaves being used for certain classes of documents. According to Wilkinson, the papyrus plant has now entirely disappeared from Egypt. So important was the rôle played by papyrus in the history of classic literature that ancient writers speak as if their literature could hardly have existed, or at least could hardly have been preserved, without it.

Pliny, for instance, writes: *Papyri natura dicetur, cum chartæ usu maxime humanitas vitæ constet, certe memoria.*^[129] Birt renders this: It is on literature that all human development depends, and assuredly to literature is due the transmission of history.^[130] Pliny here uses the word *charta* (*i. e.*, paper made of papyrus) as a general term for literature, and speaks as if papyrus were the only material in use for books. He was writing about the middle of the first century.

From their own land the Greeks could secure no materials for book-making, and their literature, which was to inspire and to enlighten future generations, could be preserved for these generations only by the use of substances imported from other countries. By far, the most important of their book-making materials was the same papyrus plant which had long been utilized by the Egyptians. To the stem of this plant, from which the book “paper” was prepared (the English term being, of course, derived from the Egyptian plant), the Greeks gave the name of βύβλος, or βιβλος. These terms, with the diminutives βύβλιον, βιβλίον, and βιβλάριον speedily came to stand for the book itself instead of for the book-paper, the “book” comprising a series of prepared papyrus sheets, gummed together into a roll. βύβλος usually denoted a single work only, although such work might comprise several volumes or rolls. Suidas, however, whose *Lexicon* was written about 1000 A.D., asserts that it was also used for a collection of books. The word βύβλος was in like manner used for cordage, *i. e.*, the ropes of ships, for the making of which the papyrus stem was also employed.

We have named first in order papyrus, as the material most universally used by the Greek writers, and βύβλος as the term for book most frequently occurring in Greek literature.

Centuries, however, before the introduction of the papyrus, or of the dressed skins, other materials were employed for writing, such as thinly

rolled sheets of lead, used for public documents, and slips of linen sheets, and wax tablets, used for private records and correspondence. Wax tablets were known to Homer, and twelve hundred years after Homer were still in use among the Romans. The Homeric Greeks also utilized slabs of wood and the bark of trees, another material which remained useful for many generations, and which gave to the Romans the term for book, *liber*. Another term in which the roll nature of the book is clearly indicated is κύλινδρος, a cylinder.^[131] This brings us back to one of the Assyrian forms, arrived at, however, in a very different way.

The papyrus book, whether Egyptian, Greek, or Roman, was gotten up very much like a modern mounted map. A length of the material, written on one side only, was fastened to a wooden roller, around which it was wound. The Egyptian name for such a roll was *tamā*. Such rolls were often twenty, thirty, or even forty yards long.^[132] Herodotus tells us the whole of the *Odyssey* was written on one such roll. He also refers to an Egyptian priest rolling a book about the horns of a sacrificial bull.^[133] As the inconvenience of these long rolls became apparent, the practice obtained of breaking up the longer works into sections. Certain suitable sizes became normal, and the conventional length of the roll possibly exercised some influence on the length of what are still called the “books,” *i. e.*, divisions of the classical authors. The Egyptian rolls were kept in jars, holding each from six to twelve.^[134]

The term ἀπλὰ was applied to a “book” or writing completed on a single strip of papyrus and comprising therefore only one leaf.^[135]

The word τόμος (from which comes our English tome) occurs only after the Alexandrian era. It means literally a slice or a cutting, and when used with precision stood, as to-day, for a portion or division of the entire work. A diminutive of this is τομάριον.

Ὁ χάρτης indicated originally a papyrus sheet or roll which had not yet been written upon, but came later to be used also for a papyrus manuscript.^[136]

Τεῦχος, which had for its earlier signification tool or implement, was later used for a chest, repository, or book-case, and, after the Alexandrian age, came finally into use as a term for a set or series of (literary) works.

Γράμμα, meaning in the first place “that which is graven or written,” and then “the letter” or the scripture, is used, although but rarely, for book, occurring more often in the plural Γράμματα,^[137] and still more frequently in the form Συγγράμματα, “words written together.” The Σύγγραμμα was a collection of manuscript rolls tied together in a bundle or faggot, called by the Latins *fascēs*.

The famous term Λόγος, meaning in the first place that which is said, the word, the utterance, and then the story or narrative, came occasionally to be referred to as the book, or in the plural form, Λόγοι, as the books, writings, or works of a particular writer. It was, however, the substance of the writings and not their physical form which was then referred to, and the expression seems to have been applied only to writings in prose.

The previous terms (with the exception of Λόγος, which, having to do with the thought of the writer and not with the form of the writing, could stand for any intellectual production) were all employed only for books written on papyrus. A material which preceded the use of papyrus, and which, with improved methods of preparation, long outlasted this, although occupying a far less important place in ancient literature, was obtained from skins or hides. The use of this material for writing was borrowed from the Phœnicians, from whom were also purchased the skins themselves. The dressed skins were called διφθέραι, and writings upon skins came to be known by the same name. Ctesias speaks of the διφθέραι βασιλικαὶ, royal books (or writings or documents) of the Persians, and Herodotus says that such skins were used in the earlier times for book-material not only in Greece, but even in Egypt, the home of the papyrus. In Greece, the papyrus, introduced from Egypt through the Phœnician traders, appears at one time to have almost entirely replaced the dressed skins, while later, owing to the improved methods for the preparation of the skins, these again found favor. It was, however, not until the production of parchment (*membrana* or *pergamena*), that the value of skins for literary purposes began to be properly understood, and even parchment made its way but slowly among writers in competition with the long-established papyrus, which it was, however, destined to outlast for many centuries. The name parchment, *pergamena*, is derived from the city of Pergamum, where, according to the tradition, it was first prepared under the direction of King Eumenes II., about 190 B.C. It seems certain, however, that parchment had been produced

considerably before this date, but a great impetus was doubtless given at this time to its use, and its manufacture was improved, owing to the embargo placed by Ptolemy Philadelphus on the exportation from Egypt of papyrus. Ptolemy was, it appears, jealous of the growing fame of the great library of Pergamum, which was beginning to rival that of Alexandria, and he hoped that by cutting off the supply of book-material from other countries he could compel the scholars of the world to resort to Alexandria.

Pliny, writing about 250 years later, appears not to have believed that the new parchment could serve as in any way an adequate substitute for the papyrus. He considered it very fortunate that the Ptolemies had finally consented to withdraw the interdict on the exportation of papyrus, as otherwise the history of mankind in the past (*immortalitas hominum*) might have been utterly lost.

Excepting for the temporary impetus given to the use of the parchment among the writers of Pergamum during the embargo on the Egyptian papyrus, its introduction among literary circles proceeded but slowly. It came into competition more directly with wax tablets for private notes and memoranda than with papyrus for use in books.

For correspondence, at least for the longer letters, papyrus seems for some centuries to have been found the most convenient material. The author of the Second Epistle of John evidently wrote on papyrus,^[138] and in the long series of letters between Cicero and his several correspondents, all the references are to the same material.

The Latin terms for book, like those used by the Greeks, indicate the nature of the material used, or the method of its arrangement. The word *liber*, which occurs perhaps the most frequently in Latin literature, has been already referred to. It means originally bark, and by some antiquarians is supposed to give evidence of some prehistoric use by the Italian writers of tablets of wood or bark. It was applied finally to books of all kinds, but when used with precision, it indicated books of papyrus arranged in leaves as opposed to a roll or a series of rolls. The roll, whether composed of papyrus sheets or of parchment, was called *volumen*. Its use as a general term for a book of any kind appears to date from the time of Cicero. *Liber* was also used for a division of a literary composition, in the sense in which the term “book” is employed to-day, the entire work being called *volumen*,

or *opus*. The latter term, however, had, like λόγος, no reference to the material or form, but only to the literary production.

The next term in order of importance was *codex*. The word, which means originally the trunk of a tree, was in the first place used for wooden tablets smeared, for writing purposes, with wax. It was later applied to large documents and manuscripts, whether of papyrus or parchment. A still later meaning was that of a collection or series of writings, in the sense in which we should to-day speak of “a body of literature.” A *codex rescriptus*, or palimpsest, was a parchment on which the original writing had been erased or defaced to make room for a later inscribing. The erasing was sometimes imperfectly done, so that it became possible to decipher the text of the original writing through that which had been superimposed. A number of important works of antiquity have in this manner been recovered through the labors of modern scholars, the list including Cicero’s *De Republica*, some of the books of Livy, certain books of Pliny the Younger, and portions of the *Septuagint*.

The term *libellus*, literally a small writing, was used for a memorandum book, a petition, a memorial, a summons, a complaint in writing, and finally for a small volume. Birt explains that in the latter sense it always stood for a book of verse, on the ground that, according to the usual arrangement, a volume of verse contained half as much material as one of prose.

The wooden case containing the papyrus roll was called a *capsa*, or a *scrinium*. The latter term was, possibly, more generally applied to a case large enough to hold several rolls. The term *umbilicus* was applied to a reed or stick fastened to the last leaf or strip of the manuscript, around which it was rolled.

It is to be borne in mind that as the inspiration for Roman literature came from Athens and Alexandria, and the earlier Roman authors were accustomed to use Alexandria as a convenient centre for book-production, the Greek terms for books and for things connected with books came into general use with Latin writers, and probably for some time continued to be employed in place of or indifferently with the Latin terms.





CHAPTER V.

Rome.

ROMAN literature may be said to date from about 250 B.C., or, to take an event which marked an important era in the life of the Republic, from the close of the first Punic War, 241 B.C.

With the Romans, literature was not of spontaneous growth, but was chiefly the result of the influence exerted by the Etruscans, who were their first teachers in everything mental and spiritual.

The earliest literary efforts of the Greeks, or at least the earliest which are known to us, were, as we have seen, epic poems, setting forth the deeds of the gods, demi-gods, and heroes. The earliest literary productions of the Romans were historical narratives, bald records of events real or imaginary.

Simcox refers to the curious feature of Latin literature, that “It is in its best days a Roman literature without being the work of Romans.”^[139] The great writers of Athens were Athenians, but from Ennius to Martial, a succession of writers who were not natives of Rome lived and worked in the metropolis and owed their fame to the Roman public.

Authors came to Rome from all parts of the civilized world, there to make their literary fortunes. They needed, in order to secure a standing in the world of literature, the approval of the critics of the capital, and in the latter period, they required also, for the multiplying and distributing of their books, the service of the Roman publishers.

Géraud points out that the Romans came very near to the acquisition of the art of printing. It was the aim of Trajan, in his Asiatic expeditions, to surpass Alexander in the extent of his conquests and journeyings eastward. “If I were but younger!” murmured Trajan, as he stood on the shores of the mysterious Erythrean Sea (the Indian Ocean). And there was in fact probably little but lack of time to prevent him from passing Alexander’s limit of the Indus, and, marching across the Indian peninsula, from arriving within the borders of the “everlasting empire” of the Chinese. In the time of

Trajan, however (100 A.D.), the Chinese had already mastered the art of xylographic printing, or printing from blocks. If, therefore, Trajan had arrived at the imperial power say ten years earlier, literary property might have saved thirteen centuries in securing the most essential condition of substantial existence.

There are, however, compensations for all losses. If printing had come into Europe in the first century, the world might to-day be buried under the accumulated mass of its literature, and my subject, already sufficiently complex, would have assumed unmanageable proportions.

With the knowledge of the language and literature of Greece, which came to the Romans partly through the commerce of the Greek traders of the Mediterranean, partly through the Greek colonies in Italy, and partly, probably, through the intercourse brought about by war, a new literary standard was given to Rome. The dry annals of events, and the crude and barely metrical hymns or chants, which had hitherto comprised the entire body of national literature, were now to be brought into contrast with the great productions of the highest development of Greek poetry, drama, and philosophy. As a result the literary thought and the literary ideals of Rome were, for a time, centred in Athens.

It would not be quite correct to say that from the outset Athenian literature served as a model for Roman writers. This was true only at a later stage in the development of literary Rome. The first step was simply the acceptance of the works of Greek writers as constituting for the time being all the higher literature that existed. Greek became and for a number of years remained the literary language of Rome. Such libraries as came into existence were at first made up exclusively, and for centuries to come very largely, of works written in Greek. The instructors, at least of literature, philosophy, and science, taught in Greek and were in large part themselves Greeks. In fact the Greek language must have occupied in Italy, during the two centuries before Christ, about the place which, centuries later, was held throughout Europe by Latin, as the recognized medium for scholarly expression.

There is, however, this difference to note. The Latin of mediæval Europe, though the language of scholars, was for all writers an acquired language, and its use for the literature of the middle ages gave to that literature an

inevitable formality and artificiality of style. The Greek used in early Rome was the natural literary language, because it was the language of all the cultivated literature that was known, and it was learned by the Romans of the educated classes in their earliest years, becoming to them if not a mother tongue, at least a step-mother tongue. In the face of this all-powerful competition of the works of some of the greatest writers of antiquity, works which were the result of centuries of intellectual cultivation, the literary efforts of the earlier Roman authors seemed crude enough, and the development of a national literature, expressed in the national language, progressed but slowly.

With the capture of Corinth in 146 B.C., the last fragment of Greek independence came to an end, and the absorption of Greece into the Roman empire was completed. But while the arms of Rome had prevailed, the intellect of Greece remained supreme, and, in fact, its range of influence was enormously extended through the very conquests which gave to the Romans the mastery, not only of the little Grecian peninsula, but of the whole civilized world.

The second stage in the development of Roman literature was the wholesale adaptation by the Roman writers of such Greek originals as served their purpose. It was principally the dramatic authors whose productions were thus utilized, but the appropriations extended to almost every branch of literature. In a few cases the plays and poems were published simply as translations, due credit being given to the original works, but in the larger number of instances in which the adaptation from the Greek into the Latin was made with considerable freedom and with such modifications as might help to give a local or a popular character to the piece, the Roman playwright would make no reference to the Attic author, but would quietly appropriate for himself the prestige and the profits accruing from his literary ingenuity and industry. It is proper to remember, however, that in few cases could living Greek authors have had any cause for complaint. It was the writings of the dead masters, and particularly, of course, of those whose work, while distinctive and available, was less likely to be familiar to a Roman literary public, which furnished an almost inexhaustible quarry for the rapacity of the plagiarists of the early Republic.

The bearing of this state of things upon the development of real Roman literature and upon any possibility of compensation for the writers of such

literature, is obvious. Why should a Roman publisher or theatrical manager pay for the right to publish or to perform a drama by a native writer, when he could secure, for the small cost of a translation or adaptation, a more spirited and satisfactory piece of work from the Attic quarry?

What encouragement could be given, in the face of competition of this kind, to the young Latin poet, striving to secure even a hearing from the public? The practice of utilizing foreign dramatic material by adapting it for home requirements, has, as we know, been very generally followed in later times, the most noteworthy example being the wholesale appropriations made by English dramatists from the dramatic literature of France, prior to the establishment between the two countries of international copyright.

There must also have been a further difficulty on the part of the earlier Roman publishers in the way of finding funds for the encouragement of native talent. Their own work was for many years being carried on at a special disadvantage in connection with the previously referred to competition of Alexandria. As late as the middle of the first century A.D., a large portion, and probably the larger portion, of the work of the copyists in preparing editions had to be done in Alexandria, as there alone could be found an adequate force of trained and competent scribes, the swiftness and accuracy of whose work could be depended upon. Alexandria was also not simply the chief, but practically the sole market in the world for papyrus. The earlier Roman publisher found it, therefore, usually to his advantage to send to Alexandria his original text, and to contract with some Alexandrian correspondent, who controlled a book-manufacturing establishment, for the production of the editions required, while to this manufacturing outlay the Roman dealer had further to add the cost of his freight. There is record of certain copying done for Roman orders during the first and second centuries B.C. in Athens, but this seems in the main to have been restricted to commissions from individual collectors, like Lucullus (B.C. 115-57). The mass of the book-making orders certainly went to Alexandria, which bore a relation to the book-trade of Rome similar in certain respects to that borne to the London publishers in the first half of the present century by the literary circle and by the printers of Edinburgh. The earlier Roman publishers, therefore, in losing the advantage of the manufacturing of books issued by them, found their margin of possible profit seriously curtailed, and the chances of securing for the authors any remuneration from the sales

of their books must for many years have been very slight. It seems, in fact, probable that compensation for Roman authors began only when, through the development of publishing machinery, it became possible for the making of books to be done advantageously in Rome. This period corresponds also with the time when a real national literature began to shape itself, and when the development of a popular interest in this literature called for the production of books in the Latin language, which could be prepared by Latin scribes.

The two sets of influences, the one mercantile, the other intellectual and patriotic, worked together, and were somewhat intermingled as cause and effect. The peculiar relation borne to the earlier intellectual development of Rome by the literature of a foreign people has never been fully paralleled in later history. The use of Greek in Italy as the language of learning and of literature, was, as said, very similar to the general acceptance of Latin by the scholars of mediæval Europe as the only tongue worthy of employment for literary purposes. But I can find no other instance in which the literature of one people ever became so completely and so exclusively the authority for and the inspiration of the first literary life of another. During the eighteenth century, North Germany had, under the direction of its Court circles accepted French as the language of refined society, and German literature was to some extent fashioned after French models; but important as this influence appeared to be, at the time, say, of Frederick the Great, it does not seem as if it could have had any large part in shaping the work of the German writers of the following half century.

The literary life of the American Republic has, of course, during a large portion of its independent existence, as in the old colonial days, drawn its inspiration from the literature of its parent state, Great Britain. There has been, in this instance, as in the relation between Rome and Greece, on the part of the younger community, first, an entire acceptance of and dependence upon the literary productions of the older state; later, a very general appropriation and adaptation of such productions; still later (and in part *pari passu* with such appropriation), a large use of the older literature as the model and standard for the literary compositions of the writers of the younger people; while, finally, there has come in the latter half of the nineteenth century for America, as in the second half of the first century for Rome, the development, in the face of these special difficulties, of a truly

national literature. For America, as for Rome, this development was in certain ways furthered by the knowledge and the influence of the great literary works of an older civilization, while for America, as for Rome, the overshadowing literary prestige of these older works, and the commercial difficulties in the way of securing public attention and a remunerative sale for books by native authors in competition with the easily “appropriated” volumes of older writers of recognized authority, may possibly have fully offset the advantage of the inspiration.

In certain important respects the comparison fails to hold good. For America the literary connection with and inspiration from Great Britain was in every way a natural one. In changing their skies, the Americans could not change their mother-tongue, and in the literature of England, prior to 1776, they continued to claim full ownership and inheritance. The peculiar condition for Rome was its acceptance, as the foundations of its intellectual life, of the literature of a conquered people, with which people its own kinship was remote, and whose language was entirely distinct.

The estimate in which the Greeks were held by their conquerors is indicated in the fact that, while the Greeks held all but themselves to be barbarians, by the Romans the term was applied to all but themselves and the Greeks.

While a republican form of government has not usually been considered as unfavorable for intellectual activity, history certainly presents not a few instances in which an absolute monarch has had it in his power, through the direct use of the public resources, to further the literary production of the State in a way which would hardly have been practicable for a republic. It is not to be doubted, for instance, that a ruler in Rome, with the largeness of mind and persistency of will of Ptolemy Philadelphus, could by some such simple measures as those which proved so effective in Alexandria, have hastened by half a century or more the development of a national literature in Italy. But, until the establishment of the Empire, the rulers of the Republic had their hands too full with the work of defending the State and of extending its sway, to be able to give thought to, or to find funds for any schemes for, “Museums,” Academies, or Libraries, planned to supply instruction for the community, and to secure employment and incomes for literary men, under whose direction literary undertakings could be carried on at the expense of the public treasury.

No institution of learning received any endowment from the treasury of the Roman Republic, and the scholars who undertook literary work received no aid or encouragement from the government. Under the limitations and conditions controlling the literary life of the time, it is not to be wondered at that the many attractions held out by the Ptolemies should have caused Alexandria rather than Rome to become the literary centre of the world, a distinction which it seems hardly to have lost until, half a century after, through the conquest of Egypt by Octavius (B.C. 30), it had fallen to the position of a capital of a Roman province.

A still further consideration to be borne in mind in connection with the slow development of Roman literature, is the attitude of Roman writers to their work. Many of those whose names are best known to us would have felt themselves lowered to be classed as authors. They were statesmen, advocates, men about town, or, if you will, simple citizens, who gave some of their leisure hours to literary pursuits. To the Greek author, whether poet, philosopher, or historian, literature was an avocation, an honored and honorable profession. The Roman writer preferred as a rule to consider his writing as a pastime. Cicero says: *Ut si occupati profuimus aliquid civibus nostris, prosimus etiam, si possumus, otiosi.* [\[140\]](#)

Cornelius Nepos, in writing the life of Atticus, omits the smallest reference to the connection of Atticus with literature, as if any association with authorship or with publishing was either of no importance, or might even have impaired the reputation of an honored Roman.

It was this feeling that authorship was not in itself an avocation worthy of a Roman citizen, which unquestionably stood very much in the way of any arrangements under which authors could secure compensation for their productions, and doubtless postponed for a considerable period the recognition by the publishers and the reading public of any property rights in literature. The evidences, or, as it would be more exact to say, the indications, concerning such compensation for Roman writers are but fragmentary and at best but inconclusive. They will be referred to later in this chapter.

The first Latin playwright whose name has been preserved, was Titus Livius Andronicus of Tarentum. Andronicus added to his labors as a dramatist the work of an instructor of Greek literature, and he prepared for

school use (about 250 B.C.) an abridgment of the *Odyssey*. A volume of this kind, written for use as a text-book, could hardly have been undertaken for the sake of the literary prestige, but must have been published for the purpose of securing profit from the sale of copies. If this inference is a just one, the book will stand as the earliest known instance in Latin literature of property in the work of an author, and the example is peculiarly characteristic, because the work of Andronicus, like the literature of his country, rested upon a Greek foundation.

A large proportion of the works of the early Roman dramatists have been identified as being versions, more or less exact, of known Greek originals, and in a number of cases the substance of Greek productions of which the titles and perhaps some descriptive references have come into record but the original texts of which have disappeared, have been preserved only by means of these Latin versions. The presumption is strong that very few of the dramatic writings which appeared in Rome during the century following the date of Andronicus, say 280 B.C. to 180 B.C., even of those whose Greek connection has not been traced, were not in great part based upon Greek originals.^[141] It would not be easy to decide whether this exceptional relation between the two literatures, and this enormous indebtedness of the younger to the older, furthered or hindered the wholesome development of the literary productiveness of Italy. It seems probable that the gain in refinement, and in the cultivation of literary form, was largely offset by the check to the work of the creative faculty and the lessening of sturdiness and individuality. Emerson's saying that "every man is as lazy as he dares to be," was probably as true of the writers of Rome as it would have been of any other group of writers placed in a similar position. It is much easier to build one's house from the finished blocks of the neighboring ruin, than to do the original hewing of new stones out of the side of the mountain.

The next name of importance among the writers of the period of the Punic Wars was Ennius, often spoken of as "the father of Latin literature." Of his dramatic work Simcox remarks: "A play of Ennius was generally a play of Euripides simplified and amplified."^[142] It is in order to remember that Ennius, though doing all his literary work in Latin, was himself not a Latin, but a Calabrian—that is, at least half Greek in his ancestry and early environment. The work by which he is best known is the *Annals*, a historical or rather legendary poem, giving evidence of the Greek bias of

the author in undertaking to present history (from Romulus to Scipio) as a poem rather than as a chronicle of facts in sober prose. Ennius translated a Sicilian Cookery-book (issued about 175 B.C.), a piece of work which, as the translator was poor, earning a modest livelihood by teaching, could only have been undertaken as a business commission. Whether it was paid for by a bookseller or by a patron is not recorded, but the probability is in favor of the latter, as Ennius, while frequently mentioning his patrons, makes no reference to any booksellers. An early instance of the possibility of making money by writing is afforded by Plautus, whose comedies date between 202 and 184 B.C. He is reported to have written plays with such success as to have been able with the proceeds to set himself up as a miller, and when his business failed, he returned to play-writing until he had again secured a competence.^[143] His success was the more noteworthy, as it was difficult to understand how there could have been much demand for comedies in Rome during the anxious years when Hannibal was encamped at Capua. Cæcilius, who was a late contemporary of Plautus, is for us little more than a name, as of his comedies, commended by others as great, but fragments have been preserved. Terence was one of the writers possessing a large appreciation of Greek literature. He translated a hundred plays, chiefly from Menander, but there is nothing to tell us how far his literary undertakings proved commercially successful.^[144] A historical work of substantial importance was the *Origines* of Cato the Censor, completed about 149 B.C. (three years before the fall of Carthage and of Corinth), which dealt with the institutions of Rome and with the origin of the allied Italian States. This was followed by the *Annales Maximi* of Mucius Scævola (issued in 133 in no less than eighty books), by further Annals by Calpurnius Piso, and by the Histories of Hostius (125) and of Antipater (123). I have, of course, no intention of presenting in a sketch like this, a summary of early Roman literature, or a schedule of Latin writers. I only desire to point out that during the century preceding the birth of Cicero (106), while there is no definite information concerning the existence in Rome of any organized book trade, or of publishing machinery, by means of which books could be manufactured and sold, and business relations be established between the authors and their public, a number of important literary enterprises, involving no little labor and expense, were undertaken. I think there are fair grounds for the inference that the continued production of books addressed to the general public implied the existence of a distribution machinery for reaching such

public, and that there were, therefore, publishers in Rome who found it to their advantage to pay authors for literary labor many years before the founding of the firm of that prince of publishers, Atticus, whose business methods are described by Cicero.

In Rome, as in Athens, the men who first interested themselves in publishing undertakings, or at least in the publishing of higher class literature, were men who combined with literary tastes the control of sufficient means to pay the preparation of the editions. Their aim was the service of literature and of the State, and not the securing of profits, and, as a fact, these earlier publishing enterprises must usually have resulted in a deficiency. As the size of the editions could easily be limited to the probable demand, and further copies could always be supplied as called for, it seems at first thought as if the expense need not have been considerable. The high prices which, under the competition of a literary fashion, it became necessary to pay for educated slaves trained as scribes, constituted the most serious item of outlay. Horace speaks of slaves competent to write Greek as costing 8000 sesterces, about \$400.^[145] Calvisius, a rich *dilettante*, paid as much as 10,000 sesterces, \$500, for each of his *servi literati*.^[146] In one of the laws of Justinian, in which the relative price of slaves is fixed for estates to be divided, *notarii*, or scribes, are rated fifty per cent. higher than artisans.^[147]

Certain proprietors found it to their advantage, partly for their own service and partly for the sake of making a profit later through their sale, to give to intelligent young slaves a careful education. Such a training, in order to produce a really valuable scribe, had to include a good deal beside reading and penmanship. A *servus literatus*, to be competent to prepare trustworthy copies, needed to have a good knowledge of Greek, and such acquaintance with the works of the leading authors, Greek and Latin, as would enable him to decipher with some critical judgment doubtful passages in difficult manuscripts. It is probable that better work, that is more accurate work, was done by these selected scribes of the household than by the copyists employed by the book-dealers. Strabo tells us that as the making of books became a common undertaking, there was constant complaint at the inaccuracies and deficiencies of the copies offered for sale, which had in many cases been prepared by ignorant scribes writing hastily and carelessly, and which had not afterwards been collated with the original text.^[148]

Strabo refers to book-making establishments in Rome as early as 80 B.C., which was before the founding of the concern of Atticus, but he does not give us the names of their managers.

Marcus Crassus, whose staff of skilled slaves included readers, copyists, and architects, took upon himself the general supervision of their education, and presided over their classes of instruction.^[149] As is shown by the correspondence of Cicero, Atticus, Pliny, and others, these educated slaves frequently came into very close personal relations with their masters, and were cherished as valued friends. The writers who were employed in the duplicating of books were called *librarii*, correspondence clerks, *amanuenses*, and the official clerks of public functionaries, *scribæ*. An inscription quoted by Gruter indicates that the work of book-copying was sometimes confided to women—*Sextia Xanta scriba Libraria*. Copyists who devoted themselves to deciphering and transcribing old manuscripts, were known as *antiquarii*. The term *notarii* was applied to those who wrote at dictation, taking reports of speeches and of public meetings, testimony of witnesses, notes of judicial proceedings, etc. They were called *notarii* because they took notes, often in a kind of shorthand. Such a man was Tiro, a freedman of Cicero.

The man whose name is most intimately connected with the work of publishing in the time of Cicero was Titus Pomponius Atticus, who is perhaps best known to us through his correspondence with Cicero. Atticus organized (about 65 B.C.) a great book-manufacturing establishment in Rome, with connections in Athens and Alexandria. He was himself a thorough scholar, and it was because he was so well versed in the Greek language and literature that the name Atticus had been given to him. It is probable that his earliest publishing ventures were editions of the Greek classics, and it is certain that these always formed a very important proportion of his undertakings. He had himself brought from Greece an extensive and valuable collection of manuscripts, which he placed at the service of Cicero and of other of his literary friends, and the development of the work of his scribes from the transcription of a few copies for their friends to the publication of editions for the reading public was a very natural one.

The editions issued by Atticus, which came to be known as “Attikians,” Ἀττικιάνά, secured wide repute for their accuracy, and came to be referred

to as the authoritative texts. The term “Attikians” appears to have been used as we might to-day, in referring to Teubner’s Greek classics, say “the Teubners.” Haenny speaks^[150] of the “Attikians” as welcomed by scholars for their accuracy and completeness. H. Sauppe tells us that the text of the oration of Demosthenes against Androtion is based upon the issue of Atticus.^[151] Harpocration refers to the “Atticus texts” of this oration, and also of Æschines.^[152] Galen makes mention of the Atticus edition of Plato’s *Timæus*.^[153] Haenny points out that some question has been raised as to whether the term “*Attikiana*” always referred to the editions of Titus Pomponius Atticus.^[154] He concludes, with Birt, that this term may, later, having come to stand for accurate texts and carefully prepared editions, have occasionally been applied to issues of a later period which could properly be so described or as a term of compliment. When, however, it was used in connection with works presumably issued between 65 and 35 B.C., it must be understood as referring to the publications of Titus Pomponius. Fronto always spoke of him simply as Atticus, and he is so referred to several times by Plutarch. Hemsterhuis^[155] quotes a reference by Lucian. “You appear to think,” says Lucian to the “book-fools,” bibliomaniacs, “that it is essential for scholarship to possess many books. Therein, however, you show your ignorance.”

Atticus brought to Rome skilled *librarii* from Athens, and gave personal attention to the training of young slaves for his staff of copyists. He seems also to have sent manuscripts for copying to both Athens and Alexandria, probably while he was still completing the organization of his own staff. Such commissions may also have been due to the fact previously referred to, that of many works the well authenticated texts could be found only in those two cities, and after the time of Philadelphus, more particularly in Alexandria.

Atticus was a large collector of books, and won also some reputation as an author, although his principal work, a series of chronological tables, belonged perhaps rather to records than to literature proper. Cicero speaks warmly both of the excellent literary judgment and of the warm liberality of his publishing friend, and it seems certain that Atticus took an important part in furthering the development of Latin literature, and in organizing the publishing machinery which was thereafter to make it possible for Latin

writers to secure some remuneration for their labors. He seems, in fact, in every way to have been a model publisher, and to have well deserved the honor of being the first of his guild whose name has been preserved in the history of Latin literature. While giving due credit to his wide-minded liberality in his dealings with authors, and to his public-spirited expenditure in behalf of literature, it is in order to bear in mind that with Atticus publishing, while probably carried on with good business methods, was rather a high-minded diversion than a money-making occupation. His chief business was that of banking, in which he became very wealthy. It is not so difficult to be a Mæcenas among publishers if one is only a Mæcenas to begin with. It is probable from the little that can be learned concerning the expenses of book-making and the possibilities of book-selling, that the publishing interests of Atticus brought him (as far at least as money is concerned) deficiencies instead of profits, but he doubtless considered that he was, nevertheless, a gainer by literature when he had taken into account at its full value the friendship of Cicero. Among the earlier writings of Cicero certainly published by Atticus were the *Letters*, the *De Oratore*, the *Academic Discourses*, and the *Oration for Ligarius*.^[156]

Cicero seems to have been especially well satisfied with the account of sales rendered for this last, for he writes: “You have done so well with my *Discourse for Ligarius*, that I propose hereafter to place in your hands the sale of all my writings”—*Ligarianam præclare vendidisti; posthac, quidquid scripsero, tibi præconium deferam*.^[157]

Several pieces of information are given by this letter. It appears that Cicero was in the habit of securing remuneration from the sale of his published works, and that this remuneration was proportioned to the extent of the sales, and must therefore have been in the shape either of a royalty or of a share of the net profits. It is further clear from the emphasis given to his decision that Atticus should publish his future works, that some other publishing arrangements were within his reach, and therefore that there were already other publishers whose facilities were worth consideration in comparison with those of Atticus.

In this same letter Cicero tells his publishers that he has discovered an error in this *Ligarian Oration* (he had spoken of a certain Corfidius who had been dead for some years as if he were still living), and that before any more copies were sold, at least three of the *librarii* must be put to work to

make the necessary correction, from which it appears that the “remainder” of the edition comprised a good many copies.

A passage in another letter shows that the ancient, like the modern, publisher had to keep a record of complimentary copies given away under instructions of the author, so as to avoid the risk of including these among the copies accounted for as sold. “I am obliged to you,” writes Cicero, “for sending me the work by Serapion. I have given orders that the price of this should be paid to you at once, so that you should not have it entered on your register of complimentary copies.”^[158]

While the *De Oratore* was in course of publication, Cicero discovered that a quotation had been ascribed to Aristophanes which should properly have been credited to Eupolis. Some copies had already been sold, but Cicero begs Atticus to have the correction made in all the copies remaining in the shop, and, as far as possible, to have the buyers looked up so that their copies might also be corrected.

Simcox says that “Cicero’s smaller treatises, the *Lælius* and the *Cato*, were probably, like the *De Officiis*, based upon Greek works, which he adapted with a well founded confidence that as a great writer he could improve the style, and that a Roman of rank ought to be able to improve the substance.”^[159] The suggestion is interesting as indicating a change in the mental attitude of a Roman writer towards Greek literature.

Cicero used Atticus not only as a publisher but as a literary counsellor and critic, and evidently placed great confidence in his friend’s critical judgment. He speaks of waiting in apprehension for the “crayon strokes” (across the papyrus sheets)—*Cerulas enim tuas miniatas illas extimescebam*.^[160] Atticus criticises freely, indicates misused words and erroneous historic references, and suggests emendations.^[161]

It seems evident, from the wording of certain references, that the copies prepared for sale were usually at least themselves the property of the bibliophile. Cicero speaks of *libri tui*,^[162] and says also, *illa quæ habes de Academicis*.^[163] On the other hand, the author and publisher, occasionally, at least, assumed equal shares of the cost of the paper (papyrus). Cicero writes to Atticus, *quoniam impensam fecimus in macrocolla, facile patior teneri*.^[164] This share taken by the author in the outlay in addition to his

investment of literary labor, may very properly have been taken into account in arriving at a division of the profits, but we have no figures to show on what basis such division was made. While the *Discourse on Ligarius* produced, as we have seen, a profit, the publication of the first series of *Academic Discourses* (*Academica Priora*) resulted in loss, and the full amount of this loss appears to have been borne by the publisher. Cicero, referring to the large portion of the edition remaining unsold, writes, *tu illam jacturam feres æquo animo, quod illa, quæ habes de Academicis, frustra descripta sunt; multo tamen hæc (i. e., academica posteriora, the later or the revised series) erunt splendidiora, breviora, meliora.*^[165] “You will bear the loss with equanimity, since the copies that you have left on your hands of the *Academic Discourses* comprise in fact but a portion of the venture. The revised editions of these will be more brilliant, more compact, and in every way better.” Cicero wishes to show that this revision should certainly prove popular and salable, and should more than make up the loss incurred on the first edition.

Birt points out^[166] the difference in the publishing arrangements entered into by Cicero from those referred to by Martial. Cicero has apparently a direct business interest in the continued sale of his books, an interest, therefore, probably based upon a percentage. Martial, on the other hand, appears to have accepted from the publishers some round sum, a *præmium libellorum*, for each of his several works, a sum which is evidently too small to make him happy. On this ground he says it is, from a pecuniary point of view, a matter of indifference to him whether his writings find few readers or many—*Quid prodest? nescit sacculus ista meus.*^[167] Unfortunately no catalogue or even partial list of the publishing ventures of Atticus has been preserved, and the references in the letters of Cicero are almost the sole source of information in regard to them. Cicero speaks of the treatise of Aulus Hirtius upon Cato as one of the publications of Atticus.^[168] Birt finds record of the issue by him of a series of carefully edited Greek classics (published in the original), for the texts of which the trustworthy manuscripts of the Athenian “calligrapher,” or copyist, Callinus were followed.^[169] Birt is also my authority for the conclusion that Atticus did not confine his book business to his publishing house, but that he established retail shops, *tabernarii*, in different quarters of Rome, and possibly also in one or two of the great provincial capitals.^[170]

While no publisher of the time occupied any such prominent position in the world of letters as Atticus, it seems evident from the references made by Roman authors to the arrangements for the sale of their books, that other publishing concerns already existed in Rome, although no other names have been preserved. It is probable that no one of his contemporaries possessed the exceptional advantages afforded by the wealth of Atticus in carrying on literary undertakings of uncertain business value, and it is probable also that the competition of a publisher to whom the financial result of his venture was a matter of small importance, must frequently have been perplexing to the dealers whose capital was limited and whose income was dependent upon their publishing business. In fact, the exceptional business methods of Atticus may easily for a time have discouraged or rendered difficult the development on sound business foundations of publishing in Rome.

Important as the undertakings of Atticus unquestionably were for the furthering of the production and the distribution of literature, in Rome, we should have known practically nothing concerning his work as a publisher if it were not for the fortunate preservation of the series of letters written to him by Cicero. If these letters had been destroyed, the name of Atticus would have come into the history of his time only as that of a rich banker and a public-spirited citizen. The honorable friendship between this old-time publisher and his most important author was of service to literature in more ways than one. Other Roman publishers of greater importance must have taken up the work of Atticus, but no similar series of letters has been preserved to commemorate their virtues and their services. Boissier^[171] is of opinion that Tiro acted as publisher for certain of Cicero's writings; he uses the phrase *Tiron et Atticus, les deux éditeurs de Cicéron*. The evidences, however, concerning Tiro's career as a publisher do not appear to be conclusive. Tiro was a favorite slave of Cicero, a Greek by birth, and evidently a man of education. He served as Cicero's secretary, and, as the correspondence shows, was regarded by his master as a valued friend. As secretary, he unquestionably had during Cicero's lifetime a full share of responsibility in preparing Cicero's writings for publication, and after the death of his master he appears to have acted as a kind of literary executor.

It is probably to this class of service that Quintilian referred when he spoke of him as the compiler and publisher of the writings of Marcus Tullius.^[172] Gellius, in quoting the fifth oration against Verres, speaks of the

edition or the “book” as one of accepted authority, prepared under the supervision and personal knowledge of Tiro.^[173]

Haenny is of opinion that Tiro never had any publishing business, but that his services were simply those first of a secretary and later of an editor and literary executor. Seneca is authority for the statement that after the death of Cicero his works and the right to their continued publication were bought from Atticus by the bookseller Dorus;^[174] see also Birt.^[175] This same Dorus was, says Seneca, the publisher of the history of Livy: *Sic potest T. Livius a Doro accipere aut emere libros suos.*

The writings of Catullus and the famous treatise on the *Nature of Things* of Lucretius were the most important of the works published between 75 and 50 B.C. during the time of Cicero’s correspondence with Atticus. Lucretius appears to have had little personal vanity concerning his work, which did not appear until after his death. It is probable, but not certain, that the former was issued by Atticus.

Géraud says that there were at this time in Rome a large number of public writers, or professional copyists (*librarii*), who devoted themselves to transcribing for sale the older classics, and who also took commissions from authors for the production of small editions of volumes prepared for private circulation.^[176] Their work might in fact be compared to that of the typewriters of to-day, whose signs are multiplying in all our large cities. These “writers” were principally Greeks, and it was probably for this cause that their Latin work not infrequently evoked criticism. Cicero, writing to his brother Quintus, concerning some Latin books which Quintus had asked him to purchase, says it was difficult to know where to go for these, because most of the texts offered for sale were so bad—*ita mendose et scribuntur et veneunt.*^[177]

These *librarii* took upon themselves the work not only of transcribing but of binding and decorating the covers of the books sold by them. The contrast between a scribe of this kind, working at bookmaking in his stall like a cobbler making shoes, and the great establishment of the banker-publisher Atticus, must have been marked enough.

*Non modo hoc tibi, salse, sic abibit;
Nam, si luxerit, ad librariorum*

*Curram scrinia, Cæsios, Aquinos
Suffenum, omnia colligam venena,
Ac te his suppliciis remunerabor.*^[178]

Atticus died, full of years and honors, in the year 32 B.C. If he had only had the consideration to leave some memoirs for posterity, we should have much more satisfactory knowledge than is now possible concerning the relations of Roman authors with their publishers and with the public during the first century before Christ. We have not even, however, any of his letters to Cicero, letters which would of course have had a special interest in making clear the nature of his publishing arrangements with his authors.

In the year 48 B.C. appeared a work whose vitality has proved exceptional, and which, thanks to the school-boys, is to-day, nineteen hundred years after the death of its author, in continued demand. I refer to Cæsar's *Commentaries on the Gallic Wars*. This book could certainly have been made a magnificent "property" for its author, but as he was literally intent upon "wanting the earth," the ownership of one book was hardly worth any special thought. As a fact, we have no details whatever of Cæsar's publishing arrangements, although we do know that by means of some distributing machinery copies of the *Commentaries* speedily reached the farthest (civilized) corners of the Roman dominion.

Virgil's *Æneid* was, we are told, given to the world through Varius and Tucca, about 18 B.C. The sixth book was read to Augustus and Livia in 22, the year of the death of Marcellus. The publication of the *Æneid* took place at a time when the machinery for the production and distribution of books was beginning to be adequately organized. It seems evident that it was only after the institution of the Empire that the publishers of Rome were in a position to reach with their editions any wide public outside of Rome and the principal cities of Italy.

About the year 40 B.C. the poet Horace, then twenty-five years old, came to Rome with the hope, as he states, of obtaining a living through literature. His estate at Venusia had been confiscated, owing to his having borne arms at Philippi on the defeated side, and he was now dependent upon his own exertions.^[179] He found at Rome a literary circle of growing importance. It was the beginning of the Augustan age, and literature was the fashion with

the court circles of the new Empire, and therefore with the society leaders who took the court fashions for their model. Through the kindness of Virgil, the young poet was introduced to Mæcenās, the wealthy statesman whose princely patronage of literature has become proverbial.

The liberality of Mæcenās supplied the immediate needs of the poet, and he appears never to have had an opportunity of finding out whether, apart from the aid of patronage, he could actually have supported himself through the sale of his poems. In fact, a little later, when for a time at least he possesses, through the friendship of Mæcenās, an assured income he appears to have taken the position of refusing to permit his books to be sold, and of writing only for the perusal of his friends. [\[180\]](#)

His first expectancy, however, in regard to the possibilities of a literary career, give grounds for the belief that at the time of the beginning of the Empire the publishing machinery of the capital was already adequately organized, and that the writers whom Horace found in Rome, including Virgil, Tibullus, Propertius, Varius, Valgius, and many others, were securing, apart from the gifts of the emperor or of other patrons of literature, some compensation from the reading public. On this point, however, Horace has himself given other evidence, which, if somewhat unsatisfactory concerning the matter of author's compensation, is at least clear as to the existence of machinery for the making and distributing of books, and which also indicates that his resolution not to offer his books for sale had not been adhered to. He refers to the brothers Sosii as his publishers, and complains that while his works brought gold to them, for their author they earned only fame in distant lands and with posterity.

*Hic meret æra liber Sosiis, hic et mare transit,
Et longum noto scriptori prorogat ævum.* [\[181\]](#)

A complaint so worded is of course perfectly compatible with the existence of a publishing arrangement under which Horace was to receive an author's share of any profits accruing. Precisely similar complaints are frequent enough to-day when all new books are issued under the protection of domestic copyright and under publishing agreements, and while sometimes an indication that the publisher has managed to secure more than

his share of the proceeds of literary labor, they are much more frequently simply the expression of the difference between the author's large expectations concerning the public demand for his books and the actual extent of such demand.

If publishing statistics could be brought into print, they would show numberless instances in which the author's calculations concerning the number of copies of their books which the public "could be depended upon" to call for, or "must certainly have called for," were as much out of the way as have been the estimates of defeated generals as to the numbers of the forces by which they had been overwhelmed. It is certainly to be regretted that the brothers Sosii have not left us some records from which could be gathered their side of the story of their dealings with the court poet. There are instances in later times of firms which have found the honor of being publishers for a poet-laureate bringing more prestige than profit.

The shop of the Sosii was in the *Vicus Tuscus*, near the entrance to the temple of Janus. In the first book of Horace's *Epistles* we find the lines:

*Vertumnum Janumque, liber, spectare videris,
Scilicet ut prostes Sosiorum pumice mundus.* [\[182\]](#)

Horace finds occasion to inveigh against plagiarists as well as against publishers, and here his indignation is probably better founded. The literature of Rome was, as before pointed out, based on a long series of "appropriations" and adaptations from the Greeks, and the habit, thus early initiated, doubtless became pretty deeply rooted. Virgil complains:

*Hos ego versiculos feci; tulit alter honores,
Sic vos non vobis nidificatis aves.* [\[183\]](#)

Horace writes: [\[184\]](#)

*O imitatores, servum pecus ut mihi sæpe,
Bilem, sæpe jocum vestri movere tumultus.*

It seems probable that by this stage in the development of literature, the indignation of an author against plagiarists was not merely on the ground of interference with literary prestige or of the wrongfulness of a writer's securing honor falsely, but because plagiarism might involve an actual injury to literary property. The first application to literary theft of the term *plagium* (from which is derived the French *plagiaire* and the English "plagiarism"), was made by Martial. In the legal terminology of Rome, *plagium* was used to designate the crime of man-stealing, and a *plagiarius* was one who stole from another a slave or a child, or who undertook to buy or to sell into slavery one who was legally free. The use of so strong a term to characterize literary "appropriations" is sufficient evidence of the opinion of Martial that such a proceeding was a crime. Martial's word has been adopted, but later generations of writers do not appear to have fully accepted his views of the criminal nature of the practice.^[185]

Simcox is of opinion^[186] that the poets of the Augustan age certainly expected to make a certain profit by the sale of their books. They also had expectations of profiting by the gifts of the emperor or of other rich patrons of literature, but there must have been not a few writers who were not fortunate enough to secure the favor either of the court or of the grandees who followed the fashion of the court, and to whom the receipts from the booksellers would have been a matter of no little importance and might frequently have provided only the means for continued sojourn in the capital. It could only have been the receipts from sales that Horace had in mind when he wrote that mediocrity in poets is intolerable, not only to gods and men, but to booksellers, as if to the poets the approval of the booksellers was of more importance than that of either the gods or their fellow-men.^[187] It would seem as if either the gods or the publishers must have been too lenient during the past eighteen centuries in their treatment of the poets, for the amount of mediocre verse turned out from year to year is certainly no smaller, considered in proportion to the entire mass of poetry, than it was in the days of Horace.

The scanty references which can be traced in Latin literature of the first century to the relations of authors with the book-trade appear, as might be expected, almost exclusively in the writings of the society poets. In such chronicles as those of Sallust and Livy, narratives written for other purposes than for literary prestige or for bookselling profits, and which had perhaps

almost as much to do with the politics of the day (“present history”) as with the history of the State (“past politics”), there was naturally no place for such an insignificant detail as the arrangements of the authors for placing their books upon the market. References to booksellers would have been equally out of place in such a national epic as the *Æneid* or a great didactic poem like the *Georgics*.

What little is known, therefore, concerning the bookselling methods of the time must be gathered from the casual allusions found in the verses of such writers as Horace, Ovid, Juvenal, and Martial, and particularly of the last-named.

When (about 7 A.D.) Ovid was banished by the aged Augustus to Tomi, a dreary frontier town somewhere near the mouth of the Danube, he complains that he finds there no libraries, no booksellers. He is surrounded by the din of weapons and the tedious talk of soldiers. He has no single associate who is interested in literature, or whose taste or judgment he could call upon for literary counsel.

*Non hic librorum, per quos inviter alarque,
Copia; pro libris arcus et arma sonant,
Nullus in hac terra, recitem si carmina, cujus
Intellecturis auribus utar, adest.*

From expressions like these, one can gather an impression of the circles the gay society poet had left behind him in his mourned-for Rome—the libraries and book-shops, where he could always find literary friends to whose appreciative criticism he could submit his latest lines. The picture recalls the literary resorts of London in the time of Wycherley and Congreve.

Ovid sends one of his productions to a friend in Rome, whom he requests to supervise its publication. He writes:

“O thou who art an instructor and a priest among the learned! I commend to your care this my offspring. Bereft of its parent (an exile), it must place its dependence upon you its guardian. Three of my (literary) progeny have preceded this. See that my future productions are given to the world through yourself.”^[188]

Martial presents himself to the public with a cordial appreciation of his own merits:

*Hic is quem legis ille, quem requiris,
Toto notus in orbe Martialis
Argutis epigrammaton libellis.* [\[189\]](#)

“This is he whom you read and whom you seek—Martial, famous throughout the world for his brilliant volumes of epigrams.” He goes on to say:

*Ne tamen ignores ubi sim venalis, et erres
Urbe vagus tota, me duce certus eris.* [\[190\]](#)

“Lest, however, you should perchance not know where I am for sale, and should go astray and wander over the whole city, you shall be made sure of your way by my directions.” He then adds the direction:

*Libertum docti Lucensis quære Secundum
Limina post Pacis Palladiumque forum.*

“Look for Secundus, the freedman of the learned citizen Lucensis, (you will find him) behind the threshold of Pax and the forum of Pallas.”

Secundus appears to have been the Tauchnitz of his day, and to have prepared editions in compact form for travellers:

*Qui tecum cupis esse meos ubicunque libellos
Et comites longæ quæris habere viæ,
Hos eme, quos arctat brevibus membrana tabellis.*

“You who desire to have my books with you wherever you are, and to make them the companions of your long journeys, buy those which have been put up in compact form” (literally, “which the parchment compresses into small pages”).

Martial was apparently a chronic grumbler, and the record of his various complaints about his publishers and his public has been of not a little service in throwing light upon certain details of the publishing methods of his time. He was evidently one of the writers who kept a close watch on the receipts from the sales of his books. He maintained that a poet was perfectly justified in refusing to give presentation copies, because these interfered with the receipts from his booksellers.

He writes, for instance, to his friend Lupercus:

*Occurris quotiens, Luperce nobis
Vis mittam puerum, subinde dicis,
Cui tradas epigrammaton libellum
Lectum quem tibi protinus remittam?
Non est quod puerum, Luperce, vexes.
Longum est, si velit ad Pyrum venire,
Et scalis habito tribus, sed altis.
Quod quæris proprius petas licebit;
Argi nempe soles subire letum.
Contra Cæsaris est forum taberna
Scriptis postibus hinc et inde totis,
Omnes ut cito perlegas poetas.—
Illinc me pete; nec roges Atrectum,
(Hoc nomen dominus gerit tabernæ);
De primo dabit, alterove nido
Rasum pumice purpuraque cultum,
Denariis tibi quinque Martialem.
“Tanti non es,” ais! Sapis, Luperce.* [\[191\]](#)

“Every time you meet me, Lupercus, you say something about sending a slave to my house to borrow a volume of my Epigrams. Do not give your slave the trouble. It is a long distance to my part of the city, and my rooms are high up on the third story. You can get what you want close to your abode. You often visit the quarter of the Argiletum. You will find there, near the Square of Cæsar, a shop the doors of which are covered on both sides with the names of poets, so arranged that you can at a

glance run over the list. Enter there and mention my name. Without waiting to be asked twice, Atrectus, the master of the shop, will take from his first or second shelf a copy of Martial, well finished, and beautifully bound with a purple cover, and this he will give you in exchange for five deniers. What! Do you say it is not worth the price? O wise Lupercus!”

Martial takes occasion to recommend to another acquaintance (but on an entirely different ground) the propriety of purchasing rather than appropriating his productions.

He writes to a certain Fidentinus:

*Fama refert nostros te, Fidentine, libellos
Non aliter populo quam recitare tuos.
Si mea vis dici, gratis tibi carmina mittam,
Si dici tua vis, haec eme, ne mea sint.* [\[192\]](#)

“It is said, Fidentinus, that in reciting my verses you always speak of them as your own. If you are willing to credit them to me, I will send them to you gratis. If, however, you wish to have them called your verses, you had better buy them, when they will no longer belong to me.”

It is possible that Martial intends by this to suggest to Fidentinus the purchase of the author’s “rights” in these verses, “‘rights,’ which he was willing to sell for a price.” It is more probable, however, that he wanted to shame the plagiarist at least into the buying of some copies.

Martial writes in a similar strain to Quintus:

*Exigis ut donem nostros tibi, Quinte, libellos.
Non habeo; sed habet bibliopola Tryphon.
Æs dabo pro nugis et emam tua carmina sanus?
Non, inquis, faciam tam fatue. Nec ego.* [\[193\]](#)

“You ask, Quintus, that I shall make you a present of my poems. I, myself, have no copies, but the bookseller Tryphon

has some. You may say to yourself, ‘Shall I give money for such trifles?’ ‘Shall I, being of sound mind, buy your verses?’ ‘No, indeed,’ you conclude, ‘I will commit no such folly.’ Neither, then, will I.”

It was Martial’s idea that the proper use of presentation copies was not for needy friends but for influential patrons, from whom substantial acknowledgments could be looked for in the shape of *honoraria*. He begs the court chamberlain, Parthenius, to bring his modest little book (*timida brevisque charta*) to the attention of the Emperor.^[194] He asks Faustinus to give a copy to Marcellinus,^[195] and begs Rufus to present two copies to Venulejus.^[196]

The hopes of the author in connection with these presentation copies are indicated by such lines as the following:

*Editur en sextus sine te mihi Rufe Camoni,
Nec te lectorem sperat, amice, liber.*^[197]

Or by these:

*O quantum tibi nominis paratur
O quæ gloria! quam frequens amator!
Te convivia, te forum sonabit,
Ædes, compita, porticus, tabernæ,
Uni mitteris, omnibus legeris.*

It is evident that a book frequently secured through such personal distribution on the part of the author a certain circulation and publication before copies were placed upon the bookstands, or before it was given into the hands of any bookseller acting as its publisher. Haenny is of opinion that the anxiety of authors like Martial to come into relations with patrons and to secure from them *honoraria* may be taken as indicating that they could depend upon no receipts from the booksellers. It seems to me that another interpretation is equally plausible. We find an author like Martial needy, eager for money, taking pains to cultivate the favor of the wealthy and the influential in the hopes of securing benefits at their hands. We find

him also doing all in his power to push the sale of his books through the booksellers, telling the public where to go and how much they will have to pay, himself writing the publishing announcements of his new books, and in every way evincing the keenest interest in the sales secured for them. It seems natural enough to conclude that he derived a direct business advantage from these sales, and such a conclusion is in accord with what we know of the character of the man, and is borne out by various references in his writings.

In one epigram^[198] Martial laments that no one of his readers has felt moved, in return for the gratification secured from his writings, to make him a present such as Virgil received from Mæcenas: *tantum gratis pagina nostra placet*, an expression which has been interpreted as indicating that this author received no return either direct or indirect from those buying his books. In another utterance, however, he mourns his loss of receipts when for a long time he has published no new thing, but even then he considers that the loss to the public has been much more serious.^[199]

In thus speaking of his indifference to the number of his readers, he appears to have either forgotten, or as a matter of affectation to have ignored, the fact that while a large sale for a particular book already paid for by the publisher, could not increase the author's gains for that particular work, it would certainly put him in a position to secure a higher price from the publisher for his next similar work.

In this way the author would have a very direct pecuniary interest in securing the largest possible number of readers even for books which had been purchased outright by the publisher.

A. Schmidt is one of the students of the subject who believes there is evidence to show that, according to the usual practice, the author received compensation from the publisher not in the form of a royalty, but as an advance payment on the delivery of the manuscript or on the publication of the book.^[200]

Among other quotations he cites the following:

*Quamvis tam longo possis satur esse libello,
Lector, adhuc a me disticha pauca petis,*

*Sed Lupus usuram puerique diaria poscunt,
Lector, solve. Taces, dissimulasque? Vale.*

The reader, however much pleased with the poem given, is supposed to be expecting a few additional verses; but the usurer Lupus is calling upon the poet for his money, and the poet's children are crying for bread. (Therefore) O reader, make payment (to me, in need, from whom you have received benefit). (What!) You make no response. You pretend (not to understand). Farewell!—"I have no use for you," would be the modern slang.)

The passage presents difficulties, and has been variously interpreted. Schmidt reads for "*solve*" "*salve*." I base my reading on the text given by Haenny.

In another epigram he notes that the edition of his *Xenii* could be bought from his publisher, Tryphon, for four sesterces (the equivalent of about twelve and a half cents).

He grumbles at the price as being too high, contending that Tryphon could have secured a fair profit from half the amount. He adds: "These verses, O reader, you will, however, find convenient for presents for your friends, at least if your purse is as scantily furnished as is my own."

*Omnis in hoc gracili xeniorum turba libello
Constabit nummis quatuor empti tibi.
Quatuor est nimium? poterit constare duobus,
Et faciet lucrum bibliopola Tryphon.
Hæc licet hospitibus pro munere disticha mittas,
Si tibi tam rarus quam mihi nummus erit.^[201]
Nulla remisisti parvo pro munere dona,*

. . . .

*Decipies alios verbis vultuque benigno,
Nam mihi jam notus dissimulator eris.^[202]*

Here we have a reproach (which may also serve as a suggestion) to the reader. "You have sent me no gift [or *honorarium*] as an acknowledgment

[of the pleasure given to you]. Others may be deceived by your words and your smiling countenance [into believing you to be a fair-minded man who would recognize his obligations]. To me it is evident you are a dissembler.” (The term is apparently used here to describe one shirking an obligation).

Martial is quite clear in his mind that no one who has read his productions and has not felt an indebtedness to their author, and who has not taken measures to discharge the same, can be an honorable man.

Et tantum gratis pagina nostra placet. [\[203\]](#)

“My book gives so much pleasure at no cost” (to the receiver).

*Dicitur et nostros cantare Britannia versus.
Quid prodest? nescit sacculus ista meus.* [\[204\]](#)

“It is said that (even in distant) Britain my verses are sung. What advantage is that? [to me]. My purse knows nothing of it.”

Such a complaint may be interpreted in one of several ways. The author may have had payment for his Italian editions, but have been unable to exercise control over unauthorized issues of his books in distant parts of the empire; or he may have sold to his distributing publisher, Tryphon, all rights in the verses, in which case the direct advantage of extended sales would accrue only to the publisher; or there may have been no actual sales in Britain, but single copies carried by officers or travellers may have found their way there, and their presence, referred to in correspondence or by returning travellers, have given to the author the impression that a large reading public in the far north was appreciating his poetry. A very slight reference would serve to excite the imagination of so self-confident an author as Martial.

Martial seems to have been in the habit, not unknown to modern writers, and particularly to English writers, of pitting one publisher against another, in order to secure the largest bid for a new work. At one time he had no less than four publishers in charge of the sale of his works, Tryphon, Atrectus, Polius, and Secundus.

The last named issued a special pocket edition of the *Epigrams*.

Atrectus, Secundus, and Tryphon have already been referred to. To the fourth, Quintus Valerianus Polius, had it seems been given over the earlier productions of the poet, which he terms his *juvenilia*. He commends Polius to the reading public in the following lines:

*Quaecunque lusi juvenis et puer quondam
Apinasque nostras, quas nec ipse jam novi
Male collocare si bonas voles horas
Et invidetis otio tuo, lector,
A Valeriano Polio petes Quinto,
Per quem perire non licet meis nugis.* [\[205\]](#)

“The trifles that I scribbled in the callow days of my youth, productions which I myself hardly remember, these you may secure (if you have a grudge against your leisure and are willing to waste a few hours) from Polius, through whose care my trifles are preserved from oblivion.”

It seems probable that Atrectus gave special attention to the more elaborate and artistic editions, such as are to-day rather clumsily described as *editions de luxe*. It is in his shop that the volumes are to be found with the ornate purple covers. As far as can be judged from the references, Atrectus, Polius, and Secundus had simply a local trade. Tryphon, on the other hand, we know to have possessed a publishing and distributing machinery. As Haenny remarks, it was no small matter to provide with Martial's writings not only Rome, but Italy, the provinces, and the outlying corners of the empire. While he was still a beginner in literature, Martial had to be satisfied with the services of Polius, who continued later to keep in sale the *juvenilia*. It was only after the poet had become known in the fashionable literary world that he was able to secure the co-operation of a leading publisher like Tryphon.

If we were to-day referring to such a publishing relation, we should speak of securing the imprint of the publisher. As has been explained, however, the practice of associating with a work the name of its publisher began with printed books. The Roman publisher sent out his manuscript copies with no indication of the address of the shop in which they had been prepared.

The poet tells us that he prepared the advertisements for the booksellers, putting these in the form of epigrams, but not neglecting to specify the form and price of each book as well as the place where it was offered for sale.

*Qui tecum cupis esse meos ubicunque libellos,
Et comites longæ quæris habere viæ,
Hos eme quos arctat brevibus membrana tabellis;
Scrinia da magnis, me manus una capit.*

. . . .

*Libertum docti Lucensis quære Secundum
Limina post Pacis, Palladiumque forum.* [\[206\]](#)

The idea of an epigrammatic advertisement recalls the announcement (identical with the rhyming title-page) of the first edition of Lowell's *Fable for Critics*.

“Reader! Walk up at once (it will soon be too late) and buy at a
perfectly ruinous rate,
A Fable For Critics, or better
(I like, as a thing that the reader's first fancy may strike, an old-
fashioned title-page, such as presents
a tabular view of the volume's contents),
A glance at a few of our Literary progenies
(Mrs. Malaprop's word)
From the tub of Diogenes,
A vocal and musical medley, that is
A series of Jokes by a Wonderful Quiz,
Who accompanies himself with a rub-a-dub-dub,
Full of spirit and grace, on the top of the tub.
Set forth in October, the 21st day,
In the year '48, G. P. Putnam, Broadway.”

It is a pity that one of Martial's advertisements could not have been preserved to compare with the above, which strikes one as quite

Martialesque in its general style.

According to Schmidt,^[207] Martial's activities in connection with the sale of his books did not end even with the preparation of the advertisements. In certain cases he was himself engaged in finding buyers for copies. It is probable that such author's copies formed part of the compensation paid by the publisher for the manuscript, and while by the wealthier authors these would be bestowed "with compliments" upon their friends, the needy writers like Martial would be compelled to turn them into cash. In the eighteenth century in London we find a similar condition of things in the accounts of what was then called publishing "by subscription," when the needy author would, with his hat in one hand and his subscription list in the other, wait upon his "gracious patron" in expectation of an order for so many copies of his new volume at a guinea or more each.

In spite of the careful training given to their copyists by a few high-class publishers like Atticus, the complaints of inaccurate and slovenly texts, *libri mendosi*, were frequent. In order to be really trustworthy, each individual copy of the edition ought, of course, to have been carefully collated with and read verbatim by the original, but for an edition of any size, prepared as rapidly as we are told some of them were, such thorough verification was of course impracticable. Martial states^[208] that a poem of his (we infer that he means an edition of the poem), comprising 540 lines, had been produced in one hour, *hæc una peragit hora nec tantum nugis serviet ille meis*. Such work would of course have been done by employing one or more readers to dictate to a number of copyists. The number of copies in the edition is not stated. It could only have been on rare occasions that the author himself would undertake to correct the copies. Martial speaks of doing such correcting work in an exceptional case.^[209]

Cicero was evidently exacting concerning the accuracy of his copies. He tells Atticus that by no means must any copies of the treatise *De Officiis* be allowed to go out until they had been carefully corrected.

We find an occasional reference to a "press-corrector" known to Atticus and Cicero by his Greek name Διορθωτήρ. As the author, except in rare cases, did not get his manuscript again into his hands after this had gone to his publisher, and saw his work again only when the edition was completed and about to be distributed, he was saved from the temptation to make

“betterments” by omissions or additions. All such revision he had attended to with due care before handing over his manuscript as “ready for publication,” and authors and publishers of classic times were thus saved the vexation of “extra corrections,” which so frequently forms a serious addition to the expense account and to the annoyance account of modern book-making.

The risks of errors in the transcription must certainly have been materially increased if in the larger publishing establishments the practice was followed of writing from dictation, one “reader” supplying simultaneous “copy” to a number of scribes. It seems probable that in no other way would it have been practicable to produce with sufficient speed and economy the editions required, and I find myself in accord with Birt in the conclusion that dictating was the method generally followed, at least in the more important establishments and for the larger editions. The scribes must of necessity have had a scholarly training, and ought also to have possessed some familiarity with the texts to which they were listening; while with the most skilful and scholarly scribes a careful revision of their copies would have been essential.

Haenny is of opinion that dictation was rarely if ever employed. He lays stress on the fact that the term employed by Cicero in referring to the multiplication of copies was *describere*, and he contends that this stands simply for copying and cannot be translated as writing from dictation. [\[210\]](#)

One indication of the size of the editions prepared of new books is given in the many references to the various uses found for the “remainders” or unsold copies. The most frequent fate of unsuccessful poetry was for the wrapping of fish and groceries, while large supplies of surplus stock found their way from the booksellers to the fires of the public baths. [\[211\]](#) Cooks also were large buyers of remainders of editions. An author who was voluminous and who had not been able to secure a publisher, might even, as the wags suggested, find it convenient to be burned upon a pile of his own manuscripts. It is evident that in these earlier days of publishing it was no easier than at present for authors or publishers to calculate with accuracy the extent of the public interest in their productions, while it is also probable that then as now an author would rather pay for the making of an abundant supply than incur the dreadful risk of not having enough copies to meet the immediate demand.

While the Augustan age witnessed a decided development in the literary interests of the Roman community, and while the organization of such bookselling establishments as those of Atticus, Tryphon, and the Sosii gave to authors the needed machinery for bringing their writings before the public, it is probable that for the larger number of the writers of the time the receipts from the books were very inconsiderable.

As before pointed out, question has in fact been raised by more than one student of the subject as to whether the Roman authors secured from the sales of their books any money return at all. Of the writers who find no satisfactory evidence for such returns, Haenny is by far the most important. I am myself, however, inclined to accept the conclusions of Birt, Schmitz, Géraud, and others to the effect that Roman authors, from the time of Cæsar down, were able to secure from the publishers or booksellers through whom their books were sold some portion of the proceeds of such sales. The absence of any protection under the law for either author or publisher, the competition of unauthorized editions, the competition (of a different kind) of books published solely for the amusement or the literary satisfaction of their wealthy or fashionable authors, and written without any desire for money return, and the lack of adequate publishing and distributing machinery, unquestionably all operated to make the compensation of such Roman authors as, like Martial, needed the money, fragmentary, uncertain, and at best but inconsiderable. The weight of the evidence, however, seems to me certainly to favor the conclusion that compensation there was, and that it served as one of the inducements for authorship as a career (or as a partial occupation), and served also to attract to the capital (where alone publishing facilities could be secured) literary aspirants from the rest of Italy and from the provinces. Schmitz gives his views as follows^[212]:

Mihi quoque persuasum est, plurimos auctores Romanos gloriæ tantum ac honoris causa scripta sua bibliopolis divulganda tradidisse, quod tamen non impedit, quominus illi interdum pretium a bibliopolis acceperint. Et vere acceperunt.

In Rome, as centuries before in Greece, the compensation for stage-rights and the rewards for playwrights were much more assured and more satisfactory than any that could be secured by writers of books. Comedy writers like Plautus and Terence were able to sell their plays to the Ædiles. Haenny contends that the payments made by the Ædiles ought not strictly to

be described as given for the purchase of the plays, but as a recognition on the part of the community, made through its official representatives, of a service rendered—a recognition that took the shape of an *honorarium*. I imagine the playwrights cared very little what the arrangement was called as long as they got the money. As a fact, however, it was the business of the Ædiles to provide plays for the public theatres, and I do not see why the arrangements made by them with Plautus and Terence did not constitute as definite an acknowledgment on the part of the State of the rights of dramatic authors as was the case with similar arrangements made fifteen hundred years later with Molière or Beaumarchais by the State manager of the Théâtre Français.

Schmitz goes on to say:

Sin autem scripta ab auctoribus cuiusvis generis vendebantur, non video cur non bibliopolæ quoque huic illive auctori pro scriptis certam mercedem solverint.

Is it likely, he contends, that Plautus and Terence, having been paid for their stage-rights (which they practically transferred or sold to the State), would have been satisfied to hand over to the publishers, without compensation, the book-rights of these same plays, the popularity of which had already been tested?

It seems to me possible, however, that in this contention Schmitz proves too much. The publisher might take the ground that a play which had been paid for by the Ædiles for the public welfare had become public property and belonged to the common domain, and that the author had surrendered or assigned to the State such rights in it as he had possessed. Such a theory would have given to the publisher a fair pretext for declining to pay compensation or *honorarium* for any play that had already been paid for by the Ædiles.

A similar suggestion was made as late as 1892 in the case of the official poems written by Tennyson as poet-laureate. It was contended that the nation paid to the laureate an annual stipend as a specific consideration for the production of poems on certain official occasions, and that the poems thus paid for were the property of the nation. This theory did not prevent the laureate from securing, first from the publication in a monthly, and later from a reissue (with other pieces) in book-form, a large compensation for

his royal birthday odes and jubilee hymns. I am inclined to think, however, that if the question had been put to the test, the courts would have decided that the copyright of these productions had become vested in the nation, and that the poems belonged to the public domain.

In calling attention to the frequently quoted twenty-fourth epigram of Martial, Schmitz says:

Quantulumcunque fuit, merebatur noster libellis suis et quum dona ab amicis non acciperet, mereri tantum potuit a bibliopolis, qui carmina sua vendebant.... Quæ sententia probatur alio loco Martialis, quo damnum se accepisse queritur, quum carmina non scripserit, doletque prope jam triginta diebus vix unam paginam peractam esse.

The epigram in question reads as follows:

*Dum te prosequor et domum reduco,
Aurem dum tibi præsto garrienti,
Et quidquid loqueris facisque laudo,
Quot versus poterant, Labulle, nasci?
Hoc damnum tibi non videtur esse,
Si quod Roma legit, requirit hospes,
Non deridet eques, tenet senator,
Laudat causidicus, poeta carpit,
Propter te perit? Hoc, Labulle, verum est?
Hoc quisquam ferat? ut tibi tuorum
Sit major numerus togatulorum,
Librorum mihi sit minor meorum?
Triginta prope jam diebus una est
Nobis pagina vix peracta. Sic fit,
Cum cenare domi poeta non vult.*

In translating, I attempt only to present the general purport.

“During the time in which I am in your company, Labullus, and while escorting you homeward I am listening to your chattering, and am expected to give attention and praise to whatever you may be saying or doing, how many verses do you

think could I have produced? Do you not realize how grievous a loss it is [to both author and public] that what Rome reads, what the stranger asks for, what the knight does not scorn, what the Senator cherishes as a possession, what the lawyer praises, what the poet eagerly seizes, that all this should perish [*i. e.*, fail to come into existence], O Labullus, through your fault? Yet is not this the case? Is it a thing to be approved that simply to swell the number of your followers, my literary productions should be diminished? During a whole month I have hardly been able to complete a page. This is the inevitable result when the poet is tempted to dine away from home.”

The interpretation placed by Schmidt on these and similar verses, that the *damnum* stood for a pecuniary loss to the author, and that productions which secured for themselves popular favor brought, therefore, to their authors pecuniary gain, is upheld by Becker. He maintains that authors were evidently attracted to Rome by the prospects of such receipts, and that, to a considerable extent at least, they depended upon the same for their support. “It is not easy to believe,” Becker continues, “that a needy author like Martial, always in want of money, would have been willing to permit Tryphon, Secundus, and Polius to make profits out of his productions without arranging to secure any portion of these profits for himself.”^[213] Birt, who, as we have before seen, is a firm believer in the conclusion that Roman writers secured compensation for their work, is of opinion that this compensation must usually have taken the shape of a *præmium*, as Martial puts it, a round payment or *honorarium*, made probably on the delivery of the manuscript, rather than that of a royalty.^[214]

One of Martial’s references to the customary *præmium* occurs in these verses.^[215] The poet has been protesting against the weary and unprofitable role of a client or follower. He asks that Rome may spare him from any such thankless and trivial tasks as those which come upon the weary “congratulator,” who, for his dreary service, earns through the day at best but a hundred miserable pennies (*plumbeos*), while Scorpis (the gladiator) carries off in an hour, as victor, fifteen sacks of gleaming gold. Then follow the lines:

Non ego meorum præmium libellorum,

*(Quid enim merentur?) Appulos velim campos,
Non Hybla, non me spicifer capit Nilus,
Nec quæ paludes delicata Pomptinas
Ex arce clivi spectat uva Setini.
Quid concupiscam quæris ergo?—dormire.*

“As a reward (*præmium*) for my books (for what, indeed, are they worth?) I ask not for the Appulian fields; neither Hybla nor the fruitful Nile attracts me, nor the luscious grapes which from the Setian hillside hang over the Pontine marshes. You ask what do I then desire; I reply—to sleep.”

These lines should, of course, be interpreted in connection with the poet's other utterances, which, as we have seen, are not marked by any lack of appreciation of the importance of his literary productions. It seems probable that the query, “what, indeed, are they worth?” is meant as a mere *façon de parler*, and is intended to be answered with a full appreciation of the inestimable value of his poems to the reader and to the community. I judge further that the poet in naming the attractive things of this world which he would *not* demand as his reward, while, of course, speaking with a certain hyperbole of phrase, is at the same time making a kind of undercurrent of suggestion that fruitful hillsides, or even great provinces, would not, in fact, be a disproportioned reward for talents and services like his. The lines remind one of what Dickens (in his sketch of the election of a beadle) describes as the “great negative style” of oratory. “I will not speak of his valiant services in the militia, I will not refer to his charming wife and nine children, two at the breast,” etc. The important detail in the lines, however, for our present purpose is the reference to a *præmium* or compensation of some kind or amount as naturally to be looked for and to be depended upon for successful literary production. Taking this reference in connection with others of similar purport, it is, I think, safe to conclude that, notwithstanding the lack of protection of the law, Martial and other writers of his time who were not too rich to require such earnings or too proud to demand them, earned money with their pens, or rather with their *styli*.

I add references to a few other instances of payments or returns to authors.

One of the earliest is mentioned by Suetonius.^[216] Pompilius Andronicus, the grammarian, sold his treatise for 1600 sesterces. This sale must have

comprised the original manuscript, together with such author's and publishing "rights" as existed. The younger Pliny is quoted by Birt^[217]—as saying that Pliny the elder had, while in Spain, declined an offer from a certain Lucinus of 40,000 sesterces (about \$1800.00) for his commentaries. Lucinus was not a publisher, but apparently some enthusiastic admirer of the author.

In another epigram^[218] Martial makes a curious slap at two contemporary poets:

*Vendunt carmina Gallus et Lupercus.
Sanos, Classice, nunc nega poetas.*

"Gallus and Lupercus sell their poetry. Now deny, O Classicus! that they are real poets (or poets in their right minds, or poets of common sense)."

As Haenny suggests (citing Schrevel), no one dares to deny the sanity of a poet who can get money for his productions, but one might question the sanity of the publisher who pays the money.

Haenny thinks that Martial is sneering at the practice (unworthy of poets) of writing for gain. Such a position seems to me entirely inconsistent with Martial's other expressions. It seems to me much more likely that Martial is sneering at the idea that these particular writers have produced any poems that are worth money. Lupercus is probably the same person whom Martial rebuked for trying to secure his, Martial's, poems without paying for them.

In one epigram^[219] Martial advises a friend, who comes to him for counsel concerning a profession for his son, by no means to permit him to become a poet. If the boy has money-making desires, let him learn to play on the cithara or the flute. If he seems to have real capacity, he might become a herald or an architect.

In another^[220] he points out that no money can be obtained from Phœbus or from Thessalian songs. It is Minerva who has wealth—she alone lends money to the other gods. In a third^[221] he complains that in writing poetry he may give pleasure to his readers, but he does so at a serious sacrifice to himself, for if he chose, in place of giving his time to verses, to serve as an advocate, to sell his influence to anxious defendants, his clients "would

become his purse.” As it is, however, he must console himself with the thought that his readers are benefited although the poet works practically without recompense.

Later, the poet likens his literary work to a die or a cast from a dice-box, the result of the labor being at best an uncertainty.^[222]

It was through patronage that literature became remunerative, and fortunately for the authors the patronage of literature became, under Octavius, fashionable. I have already referred to the familiar name of Mæcenās, whose influence in interesting his fellow-patricians and the young Emperor in the literary productions of the capital was most important. The fashion of patronage thus initiated continued to a greater or less extent until the days of Hadrian. As Simcox expresses it, the poets got into the habit of expecting to be treated “as semi-sacred pensioners, as they have been at the courts of the princes of the heroic age of Greece and Scandinavia—as they are still at the courts of certain princes in India who trace their descent up to the heroic age.”^[223] In the age of Anne, English poets passed through a somewhat similar experience, and during the reigns of the first two Georges, they were not infrequently haunted by the same expectations. The bitter line, as paraphrased by Johnson, after his experience with Lord Chesterfield, commemorating the evil of the poet’s lot, has become proverbial

“Age, envy, want, the patron and the jail.”

In Rome when, in the decline of the literary interests of the Court, the hopes of patronage were finally abandoned, the profession of poetry seems for a time to have been practically given up.

Juvenal takes as the subject of his seventh satire the poverty of men of letters. He complains that the Emperor is their sole stay, and that authors can make no money and have as a dependence only the unprofitable patronage of the great. The poets who recite their verses, the historians, the lawyers, the rhetoricians who act as instructors for the young, are made to pass in turn before him, and of each the condition arouses the compassion of his irritable muse. In this satire we find references to the practice among poets of giving public readings of their productions. “Macalonus will lend

you his palace and will provide some freedmen and some obliging friends to applaud. But among all these, you will find no one who will furnish you with means to pay either for seats in the parquet or orchestra, or even for places in the gallery.”^[224]

Or again, it is Statius who gives a reading of his *Thebaïd*.

“All the city comes to hear the reading. The audience is enthusiastic and applauds vociferously. But Statius would have died of hunger if he had not been able to sell to the actor Paris his tragedy of *Agave*. Paris distributes military honors and puts on the fingers of poets the ring of knighthood. What the nobles do not give, an actor may bestow.”^[225]

The author of the dialogue on the decadence of oratory (attributed to Tacitus) makes mention also of these public lectures or readings, and of what they cost to a certain Bassus, for hiring a hall, for programmes, and for outlays in getting an audience together.

Rogare ultro et ambire cogitur ut sint qui dignentur audire; et ne id quidem gratis. Nam et domum mutuatur, et auditorium exstruit, et subsellia conducit, et libellos dispergit.^[226]

Apart from the use of authorship as a profession, it was of course pursued by many as an agreeable means of beguiling leisure, the results being harmless for posterity if not entirely so for the neighbors of the writer. In this respect, Rome, in the third century, was not very different from London or New York in the nineteenth. The *dilettante* tragedian frequently restricted his literary ambition to securing a hearing for his productions before an audience, whether public or private, and did not venture to plan for his works any wider publication.

There are not a few references to banquets at which the guests paid for their dinners by listening, with due appreciation, to the latest tragedy of their host.

In some instances at least the guests must have found occasion really to value their literary as well as their gastronomic entertainment, as not a few works which had been left by their authors uncopied and uncared for, have been preserved for posterity only through the care of admiring friends.

Donatus says that Virgil had planned before his death to burn his *Aeneid*, unwilling that it should be published without further revision, and that the work was only saved by the commands of Augustus.^[227] Other writers, either by reason of dread of critical opinion or from an extreme standard of thoroughness, kept their manuscripts in their desks for a number of years after completing them. As Catullus says, after publication there can be no thought of further emendation. He speaks of one of Cinna's volumes as given to the world after the ninth winter (*edita nonam post hiemem*).^[228]

This term of nine years happens to coincide with the advice of Horace, that a literary work should be held back for nine years—*nonum prematur in annum*,—for the word once published can never be recalled.^[229]

Pliny permitted his friend Saturninus to help him with the revision of his *Schedulæ*, but is not even then assured that he will be satisfied to permit them to come before the public: *Erit enim et post emendationem liberum nobis vel publicare vel continere*—"and after the revision of the books it still rested with us to decide whether to publish them or to hold them back."^[230]

Fronto, who was tutor to Marcus Aurelius, had written a pamphlet against a certain Asclepiodotus, and had arranged with a publisher for the issue of an edition. Hearing later that Verus (the adopted son of Antoninus Pius) was friendly to Asclepiodotus, he hastened to the publisher's office to cancel the publication, but finds, to his regret, that he is too late, a number of copies having already gone out to the public, *curavi quidem abolere orationem, sed jam pervaserat in manus plurimum quam ut aboleri posset*.^[231]

According to Birt,^[232] the oldest book-shop—that is, retail book-shop—known to have existed in Rome was that in which Clodius hid himself (58 A.D.). Later, we find the stalls of the bibliopoles placed in the most frequented quarters of the city, by the Janus Gate of the Forum, by the Temple of Peace, on the *Argiletum*, in the *Vicus Sandalarius*, and on the *Sigillaria*. Martial speaks in fact of the street *Argiletum* as being chiefly occupied by booksellers, with whom, curiously enough, he tells us, were associated the fashionable tailors.^[233] It would be pleasing to think that there was ever a time or a city in which the buying of books was as much of a fashionable diversion as the buying of clothes.

Both Horace and Martial speak of the book-shops as having become places of resort where the more active-minded citizens got into the habit of meeting to look over the literary novelties and to discuss the latest gossip, literary or social. On the door-posts or on columns near the entrance were placed the advertisements of recent publications and the announcements of works in preparation. Martial gives us the description as follows:

*Contra Cæsaris est forum taberna
Scriptis postibus hinc et inde totis,
Omnes ut cito perlegas poetas.*

. . . .

*De primo dabit alterove nido
Rasum pumice purpuraque cultum
Denariis tibi quinque Martialem.* [\[234\]](#)

Birt finds evidences that before the close of the first century, the book trade in Rome and through many portions of the Empire had developed into large proportions. Each week the packets from Alexandria brought into Rome great cargoes of papyrus from the paper-makers of Alexandria. These papyrus rolls, first stored in the warehouses, speedily find their way to the workrooms of the publishers, where hundreds of skilled slaves follow with swift pens the rapid dictation of the readers, who relieve each other from time to time. Others occupy themselves with the work of comparison and revision, while a third group, the *glutinatores*, cover the completed manuscripts with appropriate bindings. In the book-shop, *taberna*, are attractively presented for the attention of the scholars, the *dilettanti*, the real collectors, and their fashionable imitators, the collections of the accepted classics and of the latest literary novelties. Here a cheap edition of the *Æneid* is sold for school use for a few pennies; there great sums are expended for a veritable “original” text of some work by Demosthenes, Thucydides, Cato, or Lucilius [\[235\]](#); while a third buyer is placing a wholesale order for a “proper assortment” of literature to serve as an adornment for a new villa.

From the Roman bibliopoles large shipments of books are also regularly made to other cities, such as Brundisium, *fascēs librorum venalium expositos vidimus in Brundisio*,^[236] or Lugdunum^[237] (Lyons), or Vienna (in Gaul).^[238]

It seems also to have been the practice (which has not been abandoned in modern times) to ship off to the provinces the over supplies or “remainders” of editions of books which had in the capital gone out of fashion. *Aut fugies Uticam aut vinctus mitteris Ilerdam*.^[239]

Notwithstanding this extreme activity of the business of making and selling books, Birt is inclined to conclude that the lot of the poor student must have been a difficult one.

Such libraries as existed in Rome and Italy had not been instituted with reference to the work of students, as had been done with the collections in Alexandria, and the Roman State appears in fact to have given very little attention to the requirements of higher education.

An author, named Diogenian, writing in the time of Hadrian, undertook to supply the needs of the impecunious student of philology, the πένης πεπαιδευμένος of Lucian, with his book entitled περιεργοπένητες, which was so comprehensive in its information as to enable its fortunate owner to “do without any other work on its subject.”^[240]

Birt concludes from certain references that the leading publishers in Rome had during the beginning of the second century organized themselves into an association for the better protection of their interests in literary property, and that each member of such association bound himself not to interfere with the undertakings of his fellow-members. As Roman literature increased in commercial importance, some such arrangement or undertaking was, of course, indispensable, as in connection with the cheapening rates for the labor of slave copyists, indiscriminate competition could only have resulted in anarchy in the book-world, and have retarded indefinitely the development of literature as a profession. Birt evidently had in mind the existence of some such Publishers’ Commission as was instituted by the book-trade of Leipsic in the 17th century, but it is not likely that the Roman association succeeded in securing any such definite and effective organization.

It is on record, however, that the publisher Tryphon claimed to possess a legal control over the writings of Quintilian, while there is, unfortunately, nothing to show by what means he was enabled to retain such control.^[241] Tryphon took credit to himself for having persuaded the reluctant Quintilian to permit the publication of certain works which would otherwise have been lost to posterity.^[242] Quintilian refers to Tryphon as a trusted friend, on whose judgment he relied.^[243] Tryphon was also one of the numerous publishers of Martial.^[244]

The name of the *librarius* Dorus, mentioned by Seneca as a contemporary of his own, is worthy of note because he was one of the earliest buyers of publishing rights or copyrights. Seneca understands, namely, that Dorus had purchased from the heirs of Atticus and from those of Cicero the publishing rights and the “remainders” of the editions of Cicero’s works.^[245]

An ownership was claimed by the State in the Sibylline books, but this was of course never exercised in the form of a publishing right. It is related, however, that the duumvir Attilius suffered the punishment of death, adjudged to a parricide, because, being charged with the custody of the Sibylline books, he suffered Petronius Sabinus to copy some portions of the same. This might be called an infringement of a copyright vested in the State, but in the regard of the Roman law the deed was evidently considered simply as a sacrilege.^[246]

Suetonius relates, in his *Life of Domitian*, an instance in which the Emperor administered, on the ground of certain objectionable passages in a work of history, a penalty so severe that it is difficult to accept the report as accurate. He says: *Hermogenem Tarsensem occidit propter quasdam in historia figuras; librariis etiam qui eam descripserant cruce fixis*. “He killed Hermogenes of Tarsus on account of certain expressions in his history; even the booksellers who had circulated the work were crucified.”^[247]

If the account is correct, we have in this instance a very early application of the present usage in regard to the circulation of so-called “libellous” matter. The bookseller of to-day no longer dreads capital punishment at the hands of an irate monarch, but it is perfectly possible for him to be forced into bankruptcy through the penalties collected on account of the circulation

(however unwittingly) of volumes containing statements called by the law “libellous.”

The principal customers of the booksellers were the schoolmasters and the so-called “grammarians.” To these should be added, from the beginning of the first century, an increasing number of libraries. The first public library in Rome is said to have been founded as early as 167 B.C., but it was not until the reign of Augustus that the Roman libraries became important and that in the other cities also libraries were instituted.

There was a library attached to the temple of Apollo on the Palatine hill in Rome, which Simcox refers to as an humble imitation of the Museum of Alexandria, but I do not know the date of its founding. It is noted of Tibullus, who was usually indifferent to fame, that he consented to send to this library a copy of his collected writings, and there are other references from which it appeared that, either from public spirit or from a desire for public appreciation, authors made a practice of presenting copies of their books to this Palatine library, and that in this way a considerable collection was brought together, of which the public had the benefit; but it is certain that there was no municipal or imperial enactment prescribing such presentation copies, and it does not appear that any of the emperors took any such active interest in furthering the development of literature and of the literary education of the public as had been shown by the Ptolemies of Alexandria.

In Rome there were, according to Birt, twenty-nine public libraries founded between the reign of Augustus and that of Hadrian, while there are various references to the public libraries of the smaller cities. Aulus Gellius^[248] speaks of the library in Tibur (the modern Tivoli) *in Herculis Templo satis commode instructa libris*. Comum (the modern Como) possessed a library given to it by Pliny.^[249] The Roman Athens had a public library connected with the College of the Ptolemies, and the Emperor Hadrian founded a second.^[250] Strabo speaks with appreciation of the library of Smyrna.^[251]

It appears probable that, at least for the first three or four centuries after Christ, the larger proportion of the books contained in the public libraries (as in the private collections) were in Greek. Cicero speaks more than once of the fact that the Greek books were comparatively plenty, while those in

Latin were scarce.^[252] Juvenal's character, the impecunious Cordus, "possessed but few books, and those in Greek."^[253] Suetonius, in speaking of the restoration by Domitian of the public libraries which had been burned by Nero, states that the Emperor collected from all sources trustworthy texts and forwarded them to Alexandria for use in the production of the many copies required.^[254] It is evident, in the first place, that at this time (about 90 A.D.) the supply of skilled copyists in Rome was still inadequate for any such extended undertakings, and secondly, that there was question merely of works in Greek, for Latin texts would hardly have been sent to Alexandria.

Even without the aid of scholarly government supervision and of liberal government appropriations, the public libraries of Rome and of the leading cities of the provinces must have been of no little importance in furthering the literary interests of the time, while they rendered to posterity the important service of preserving not a few works which would otherwise apparently have perished entirely. For this latter service we are indebted, however, not only to the libraries but to the vanity of the authors, who for the most part took pains to place in one or more of the public libraries copies of their writings as soon as published. Of certain works of which the originals have disappeared, such knowledge as we have comes to us only in the fragments given in the school readers, which for each generation of young students were made up of extracts from the books of the previous generation of writers.

Some of these "classical" readers of the period of the early Empire were copied for use in the monastic schools of some centuries later, but these were in large part speedily superseded by the collections of legends and breviaries which came to be accepted as the proper literature for the monastery and the convent.

In addition to the "grammarians" buying books for their professional needs, and the city libraries purchasing for the public welfare, there were, during the first two centuries, an increasing number of private collectors, not a few of whom, however, bought books, not from any scholarly interest, but simply because it became the fashion to do so. Seneca speaks of great collections of books in the hands of men who had never so much as read their titles.^[255] Such purchases must nevertheless have been important for

the encouragement of literary work in Rome. Many of the public baths were furnished with libraries^[255]; a country house could not be complete without a library, says Cicero^[256]; each one of the villas of Italicus, according to Pliny, had its library^[257]; Trimalchio, says Petronius,^[258] possessed no less than three. A statue of Hermes, found in Rome, bears an epigram which speaks of βύβλοι in the grove of the Muses, and which undoubtedly had been intended to be placed in the library of some country villa.^[259]

Among some of the larger private collections referred to are those of the grammarian Epaphroditus, who possessed 30,000 volumes,^[260] and of Serenus Sammoaicus, who is credited with over 60,000 volumes.^[261]

The impecunious Martial, on the other hand, tells us that his own collection comprised less than 120 rolls.^[262]

We have already referred to the practical interest taken by Martial in the details of bookselling. We find him quoting the authority of the booksellers against certain critics, who were not willing to rank Lucian as a poet of repute, and showing that after thirty years or more there was still a steady demand for Lucian's poetical works.

Martial takes the ground that continued popular appreciation is sufficient evidence of literary repute, whatever the critics may say to the contrary.^[263]

The same satirist refers more than once to many amiable and deserving authors, who, despite their talents, succeeded in reaching no public at all other than the unhappy guests who learned from experience to dread the admirable dinners which had to be paid for by listening to literary productions. The practice of recitations on the part of the host must have been quite general, if when no such performance was intended it was considered desirable to mention the fact in the invitations. Martial quotes himself as promising to Stella in inviting him to dinner, that under no provocation will he be tempted to recite anything, not even though Stella should recite his own poem on the "Wars of the Giants."^[264]

Martial explains the inferiority of the literary production of the reign of Domitian by the fact that there was no Mæcenas to give encouragement to authors. All the great poets of the Augustan age had, as he recalls, been placed in easy circumstances (as far as they were not so already) either

through the direct bounty of Mæcenas or as a result of his influence over the Court. According to the view of Martial, literature possessing any lasting value is impossible without the leisure and freedom from care which comes from an assured income. Mæcenas, and the fashion of subsidizing literature initiated by him, appear in a crude way, in presenting encouragement for literary work, to have supplied the place of a copyright law.

There may, of course, often have been question as to what constituted a “proper compensation” for a poetical effort. Tacitus speaks of a certain Roman knight, C. Lutorius Priscus, who had won some repute from a poem on the death of Germanicus. He thereupon composed another poem on the death of Drusus (son of Tiberius), who was at the time seriously ill, but who was perverse enough to recover. Priscus had, however, already read his poem aloud, after which he was promptly put to death under a vote of the Senate, whether on account of the badness of the poem, or because he had prophesied the death of the Prince, Tacitus does not state. [\[265\]](#)

Juvenal joins with Martial in characterizing the writing of poetry as an unsatisfactory profession, and hints more strongly than Martial that the profession was spoiled by amateurs. He suggests as a further ground for the absence of first-rate poetry, that all the subjects had been exhausted, meaning, of course, all the mythological subjects. He arrives at the conclusion that poetry and literature in general are dying, and considers this is not to be wondered at, since even if a man of letters makes a sacrifice which ought not to be required of him, and turns schoolmaster, he will be grossly underpaid, and often not able to recover the beggarly pittance which will be due him. [\[266\]](#)

This inadequacy of the legitimate returns for literary work was doubtless considered by Martial as a sufficient justification for utilizing his unquestioned literary cleverness in ways not always legitimate, for, as has been pointed out by Cruttwell, Simcox, and others, not a few of the epigrams look like demands for blackmail. “Somebody”—the poet declines to know who the somebody is—“has given offence”; if the poet should discuss who, so much the worse for somebody. He is full of veiled personalities of the most damaging kind. He deprecates guessing at the persons indicated, but they must have recognized themselves, and have seen the need of propitiating a poet who was at once politic and vindictive. He

insists repeatedly upon his successful avoidance of all personal attacks, while he had been lavish of personal compliments. He tells us himself that these were not given gratis, and when somebody whom he has praised ignores the obligation he receives, the fact is published as a general warning. We cannot doubt that when Martial wrote that “there were no baths in the world like the baths of Etruscus,” and that “whoever missed bathing in them would die without bathing,” he expected to be paid in some form or other for the valuable advertisement he was giving to Etruscus. ^[267] In like manner, when he answers numerous requests for a copy of his poems with a reference to his bookseller, adding a jocose assurance that the poems are not really worth the money, it is fair to assume that the bookseller had paid something for the manuscript or that the author had some continued interest in the sales. ^[268]

In being obliged by the narrowness of his means to watch thus closely the sales of his booksellers, and in believing himself compelled to pick up *sesterces* by writing complimentary epigrams or threatening abusive ones, Martial may well have envied the assured position of his contemporary Quintilian, who received from the imperial treasury as a rhetorician a salary, which, with his other emoluments, gave him an income of 100,000 *sesterces* (about \$4000). Quintilian appears to have been the first rhetorician to whom an imperial salary was given.

It is evident that at this time the art of the rhetorician or reciter was still one of importance. The great books of the Claudian period were evidently written to be recited or to please a taste formed by the habit of recitation. ^[269] After the reign of Claudius the noteworthy works, with the exception perhaps of the *Thebaïd* of Statius, were certainly written to be read. How many readers they found is a more difficult thing to determine. There was certainly, on the part of some writers at least, no lack of persistency. Labeo, the jurist (who died 13 A.D.), is credited, for instance (or should we say debited?), with the production of no less than four hundred works. ^[270]

The average editions of works addressed to the general public are estimated by Birt to have comprised not less than five hundred copies, and in many cases a thousand copies. ^[271] Pliny, writing about 60 A.D., makes reference to a volume by M. Aquilus Regulus (a memoir of his deceased son), of which the author caused to be made one thousand copies for

distribution throughout Italy and the provinces. Pliny thinks it rather absurd that for a volume like this, of limited and purely personal interest, the piety and the vanity of the author should have caused an edition to be prepared larger than that usually issued of readable works.^[272] Birt is of opinion that there is sufficient evidence in the references of Horace, Propertius, Ovid, Martial, and others, to show the existence of a well organized system for the distribution and sale of books, not only in Italy, but throughout the distant provinces of Gaul, Britain, Germany, and Scythia. Such a distribution, even if restricted to the larger cities, would have been impracticable with editions of much less than one thousand copies.^[273] In support of this view regarding a widespread distribution of books, Birt quotes a passage from Pliny concerning the service to literature rendered by Varro.

“Varro was unwilling that the fame of great men should perish, or that the lapse of years should cause the memory of their deeds to be lost. He took pains, therefore, in the almost countless volumes of his writings, to preserve for posterity sketches or studies of more than seven hundred men who had won renown. Such a device might well have aroused the envy of the Gods, for these portraitures were not only thus ensured a permanent existence, but they were distributed to the farthest corners of the earth, so that the names of these heroes of the past would, like those of the Gods themselves, be known in all lands.”^{[274][275]}

Varro, who was a contemporary of Cicero, appears to have interested himself not only in biography, but in almost every department of research. He is credited with forty-one books on antiquities, seventy-six books of edifying dialogues, fifteen books of parallel lives of illustrious Greeks and Romans, twenty-five books on the Latin language, nine books on the “seven liberal arts,” fifteen books on civil law, thirty political memoirs, twenty-two books of speeches, one hundred and fifty satires, and a number of minor works.^[276] Such industry and versatility have few parallels in the history of literature, although it is to be borne in mind that the author was favored with length of days, and was able to be active in literary work as late as his eighty-second year. It is evident, however, that there must have been some measure of appreciation on the part of the public and the publisher to have encouraged him to such long-continued production.

Possibly the earliest instance of any practical interest taken by the imperial government in furthering the distribution of literature for the higher education of the public, is presented by an edict of the Emperor Tacitus (275 A.D.), ordering that every public library throughout the Empire should possess not less than ten sets of the writings of his ancestor, Tacitus, the historian. His reign of two hundred days was, however, too brief to enable him to ensure the execution of his decree. It seems probable that if the aged Emperor (he was in his seventy-fifth year when he came to the throne) had been able to carry out his plan, posterity would not have had occasion to mourn the disappearance of so large a portion of the writings of the great historian.

Tacitus, the historian, was born about 60 A.D., in a small town of Umbria. His father was of equestrian rank and a man of importance, and it is interesting to note that the son, instead of being sent to Athens for his education, as was so frequently done with well born youths of the preceding generation, received his university training at Massilia (the modern Marseilles), which by the close of the first century had become an important centre of literature and education. The supremacy of Athens in influencing the higher education of Italy had come to a close, and the centre of intellectual life was moving westward. Tacitus was evidently a man of no little versatility of power. Before achieving lasting fame through his histories and essays, he had won distinction as a lawyer and as an orator, and had served with dignity and success as prætor and consul. He is spoken of as a graceful poet, and was believed also to have been the author of a clever volume of *Facetiæ*.

His *History* was published some time during the reign of Trajan, in some thirty books, of which less than five have been preserved. His second historical work was published a few years later, in sixteen books, under the title of *Annals*, and of this about nine books have been preserved. The frequent references to these two works and to the well known essay on the Germans, in the writings of the contemporaries and successors of Tacitus, show how important a position they occupied in the literature of the Empire, and show also that copies of them were distributed widely throughout the known world. We have unfortunately no details whatever concerning the method of their publication, and no references to the publishers to whose charge they were confided.

If Tacitus had only, like Martial, been an impecunious writer, we should probably have found in his correspondence with his friend Pliny, or in other of his writings, some mention of his publishing arrangements and of the receipts secured through the sale of his works. It is evident, however, that his official emoluments were sufficient to free him from any necessity of making close calculations concerning earnings by his pen, and it is even possible that he permitted the fortunate publishers, whoever they were to reserve to themselves the profits, which ought to have been considerable, arising from the sales of these important and popular works.

Notwithstanding the gradual decline of Athens towards the close of the second century as a centre of higher education, Greek continued to be

throughout the Empire the language not only for many philosophical and scholarly undertakings, but for not a few works planned for popular reading. I mentioned that Massilia (Marseilles) had been selected as the place where the young Tacitus could secure to best advantage a refined education, but Massilia, although a thousand miles from Greece, was a Greek city. It is probably not too much to say that throughout the Roman world, wherever a town came into distinction in any way as a place of intellectual activity and of literary life, it would be found to have possessed a large Greek element. The Greek brains must have served as yeast for the intellectual substance of the Roman world.

Suetonius, writing, about 150 A.D., his work *Ludicra*, comprising treatises on the sports and public games of the Greeks and Romans, gave the work to the public in both Greek and Latin. The *Meditations* of Marcus Aurelius Antoninus, written about 170 were issued only in Greek. Simcox says:

“From the reign of Hadrian onwards until the translation of the Empire to the East, the intellectual needs of the capital, such as they were, were supplied by the eastern half of the Empire; all the upper classes learned Greek in the nursery, and it was the language of fashionable conversation ... all people who professed to be serious entertained a Greek philosopher. Their only reason for keeping up Latin literature at all was that the cleverest people who had received a literary education wished to be poets or historians or orators, an ambition which was sustained by the competitions endowed by Domitian and by the professorships which were founded by his predecessors and successors.”

I have already referred to the influence of the French language in Germany during the first half of the eighteenth century as presenting a somewhat similar case; but the influence upon German thought and German literature of the French language and literature, rendered fashionable under the Court of Frederick the Great, was of course slight and superficial as compared with the part played in the Roman world by the language and the thought of the Greeks.

Towards the end of the second century Carthage became of literary as well as commercial importance. Latin was the language of administration, and

the literary culture of Carthage took upon itself, therefore, a Latin rather than a Greek form.^[277] Among the authors who gave form, each in his own very distinctive manner, to the literary school of Carthage were Fronto and Apuleius, and a generation later the Father of the African Church, the theologian Tertullian.

Fronto's books appear to have been made in Carthage, but were certainly on sale with Roman dealers, and the same was doubtless the case with the witty and popular *Fables* and *Metamorphoses* of Apuleius, but the evidence in regard to a publishing trade in Carthage is purely inferential. Aulus Gellius, writing about 170, speaks of picking up in a second-hand bookshop in Brundisium a volume from which he quotes a pretty story. The incident was probably imaginary, for, as Simcox points out, the story was taken from the elder Pliny; but the reference shows that the business of the bookseller was, at the date specified, already sufficiently systematized to support, even in the smaller towns, second-hand book dealers.

It was evident that by the close of the first century the machinery for the making and the distribution of books was sufficiently well organized to secure for authors the opportunity of a world-wide influence. It seems probable, however, that the works which at this date obtained for themselves the widest circulation and influence were not those of living writers, but were still the classics which Greece had originated, but which were so largely given to the world through Rome.

In the fourth century a certain Firmicus Maternus published an astrological work entitled *Mathesis*. The work was dedicated to the proconsul Mavertius Lollianus, who had suggested its preparation, and to him also the author appears to have assigned the control of the publication, with the curious instruction that the two final books (out of the eight of which the work was composed) must by no means be permitted to come into the hands of the general public (*vulgum profanum*), but that the reading of these should be restricted to those who had led holy and priestly lives.^[278]

Birt, who is my authority for the incident, does not make clear what means were available for the proconsul by which to enforce this special and difficult discrimination among readers. Birt cites the case, however, as an evidence of the control that could be exercised, and that from time to time was exercised, by the government over the circulation of literature. It is

certain, he says, that even the very considerable increase in the facilities for the reproduction of books did not prevent the authorities from undertaking to stop the sale of, and to confiscate, works which, for one reason or another, might work detriment to the State, or which conflicted with the personal interest of the ruler. The earliest example on record of a confiscation dates back to the time when the Athenian Republic was at its height. In the year 411 B.C., as mentioned in the chapter on Greece, the writings of the philosopher Protagoras were burned on the Agora, while the philosopher himself was held to trial for heresy.^[279]

The emperors of Rome possessed, of course, a much more unquestioned authority and a more effective machinery for the suppression of doctrines and for the confiscation of books than belonged to the shifting authorities of Athens, and there are examples of a number of imperial decrees for literary confiscation, some of which were based on the real or apparent interests of the State, while not a few can be credited to personal motives.

The first instance of the kind was the order of Augustus for the burning of 2000 copies of certain pseudo-Sibylline books. Those charged with the task were directed not only to take all the stock that could be found in the book-shops, but to make thorough search also for all copies existing in private collections.^[280] Caligula attempted a more difficult task, when, according to Suetonius, he undertook to suppress the writings of Homer—*cogitavit de Homeri carminibus abolendis*.^[281] He also gave orders, says the historian, which were fortunately only partly carried out, to have destroyed all the writings and all the busts of Virgil and of Livy contained in the libraries. Tiberius ordered that the writings of a certain historian of the time of Augustus should be abolished, *abolita scripta*, by which we may properly understand simply that the copies were to be taken out of all public libraries.^[282]

The rigorous measures adopted by Domitian to discourage the sale of the history of Hermogenes of Tarsus, by crucifying the publisher and all the booksellers who had copies in stock, have already been referred to.^[283] This history was found objection to on the score of certain designs contained in it, *propter quasdam figuras*. Two other works which failed to secure the approval of this Emperor were the *Laudations* by Junius Rusticus and Herennius Senecio of Paetus Thrasea and Helvidius Priscus. The two books,

that is, all the copies of them that could be secured, were burned in the Forum after having been solemnly condemned under a *senatus consultum*. Senecio was nevertheless able to preserve his own copy. ^[284]

Not a few of the edicts of confiscation were, however, evidently carried out by a house to house visitation, extending at least to all domiciles known to contain collections of books. Diocletian caused to be collected and destroyed all the ancient manuscripts in Egypt, “which had to do with the chemistry of quicksilver and gold,” *περὶ χημείας ἀργυροῦ καὶ χρυσοῦ*, *i. e.*, with the subject of alchemy. ^[285] The teachers in Africa of the doctrines of the Manichæans were also ordered to burn their books. The edict of Diocletian, issued 303 A.D., directing the persecution of the Christians, also provided for the destruction of the Christian Scriptures. According to Burckhardt, many Christians came forward with the acknowledgment that they possessed copies of the Scriptures, and, refusing to deliver the same, suffered the martyrdom for which they sought. ^[286]

Constantine permitted Arius to live unmolested, but his writings were, whenever found, committed to the flames, and any one concealing copies was liable to death. In 448, the Emperor Theodosius issued an edict for the destruction of all works the influence of which was opposed to the Christian faith, an instruction which, if it had been faithfully executed, would have annihilated a large portion of the world’s literature. Among other writers the loss of whose works, excepting only a few fragments, was probably due to the edict, was Porphyry of Tyre, who died about 300 A.D., and who was the ablest of the later scholarly opponents of the Christian doctrines.

St. Jerome relates that a certain Pammachius attempted to recall and to cancel almost immediately after publication the edition of Jerome’s controversial letters against the monk Jovinian, but that his efforts were unsuccessful, for copies of the book had already been distributed in every province.

The legislation of imperial Rome, which, as we have seen, made no specific provision for the protection of the rights of authors, also omitted to institute any measures for the public supervision of books. It was under the general provisions of the criminal law that the publication of writings on certain special subjects was prevented or was punished, and that the authors, publishers, and sometimes even the possessors of the works

regarded as injurious to individuals or as likely to cause detriment to the State, became subject to penalties the severity of which varied with the times.^[287] Several of the imperial edicts characterized libellous publications as acts of *lese-majesté* or treason.^[288]

It would not be in order to bring to a close this sketch of the history of literary property under the rule of the Romans, without reference to the contribution made by Roman jurists to the analysis of its origin and nature, although such contribution was but slight. The theories and conclusions of these jurists are of interest not on the ground of their having had any effect on the status of literary production throughout the Empire, but on account of the far-reaching influence of Roman jurisprudence upon the conceptions and the legislation of the mediæval and of the modern world.

As Klostermann points out, the Roman jurists interested themselves in the subject of property in an intellectual or immaterial creation rather as a matter of theoretical speculation than as one calling for legislation; and, as we have already seen, there is no record of any such legislation, imperial or municipal, having been instituted during the existence of the Roman State. Some of the earlier discussions as to the nature of property in formulated ideas appear to have turned upon the question as to whether such property should take precedence over that in the material which happened to be made use of for the expression of the ideas.

The disciples of Proculus (a lawyer living at about 50 A.D.) maintained that the occupation of alien material, so as to make of it a new thing, gave a property right to him who had reworked or reshaped it; while the school of Sabinus (who was himself a contemporary of Proculus) insisted that the ownership of the material must carry with it the title to whatever was produced upon the material. Justinian, or rather, I understand, Tribonianus, writing in the name of the Emperor (about 520 A.D.), took a middle ground, following the opinion of Gaius. Tribonianus concluded, namely, that the decision must be influenced by the possibility of restoring the material to its original form, and more particularly by the question as to whether the material or that which had been produced upon it were the more essential. The original opinion of Gaius appears to have had reference to the ownership of a certain table upon which a picture had been painted, and the decision was in favor of the artist. This decision (dating from about 160 A.D.) contains an unmistakable recognition of immaterial property, not, to be

sure, in the sense of a right to exclusive reproduction, but in the particular application, that, while material property depends upon the substance, immaterial property, that is to say property in the presentation of ideas, depends upon the form.^[289]

The opinion, as given in the *Institutes* of Justinian, is as follows:

Si quis in aliena tabula pinxerit, quidam putant tabulam picturæ cedere, aliis videtur picturam, qualiscunque sit, tabulæ cedere; sed nobis videtur melius esse, tabulam picturæ cedere. Ridiculum est enim picturam Apellis vel Parrhasii in accessionem vilissimæ tabulæ cedere.^[290]

It is certainly curious that a question of this kind, first presented for consideration in the middle of the first century, should have been still under discussion nearly five centuries later.

An application of this same principle is presented in legal usage to-day, under which authors and artists are empowered to take possession of reproductions of their works even against innocent third parties or against the owners of the material on which such reproductions have been made.

The fact that papyrus rather than parchment was the material adopted by authors during the fruitful period of Latin literature, had of course an important bearing in the continued existence of their works, for papyrus was an extremely perishable substance. Damp, worms, moths, mice, were all deadly enemies of papyrus rolls, but even if, through persistent watchfulness, these were guarded against, the mere handling of the rolls, even by the most careful readers, brought them rapidly to destruction. We find, therefore, that a constant renewal of the rolls was required in all public libraries, just as to-day our librarians find it necessary to replace their supply of copies of books of popular authors which have become worn out by handling. The ancient librarian had, however, a more arduous and a more expensive task with his renewals. A reference of Pliny gives us an impression of the average age that could be looked for for a papyrus book.

“Ita sint longinqua monumenta; Tiberi Gaique Gracchorum manus. Apud Pomponium Secundum vatem civemque clarissimum vidi annos fere post ducentos; jam vero Ciceronis ac divi Augusti Vergilique sæpe numero videmus.”^[291]

We understand, therefore, that (with certain precautions) a book could last for one hundred years, but that a volume two centuries old was for Pliny something so exceptional as to be almost incredible.

The papyrus rolls were of course exposed to the most serious friction at the opening portions which were in immediate contact with one of the rollers where two rollers were employed, and which in any case were exposed to the most frequent handling. As a consequence, it was the initial page of books which first came to destruction, and of not a few works which were otherwise in readable condition these initial pages were lacking. A quotation from Eusebius, cited by Birt, shows that it was even a matter of surprise when a copy of the works of such a writer as Clement was found complete, with title and preface. [\[292\]](#)

In many of the libraries, it was also not uncommon to find that the different rolls of a particular work had been wrongly numbered in one of the transcriptions, and had consequently been mixed up as to their arrangement. It was not infrequent even to find the rolls of the works of different authors jumbled together, in such a manner that no little scholarly skill was requisite for their proper understanding and correct rearrangement. [\[293\]](#)

The papyrus manuscripts from the Athenian, Alexandrian, and Roman workshops, as far as they have escaped destruction through imperial edicts, civil wars, and invasions, were permitted to fall into decay, and were not replaced. By the close of the fourth century, the great collections of papyrus rolls, in which were contained the classics of Greek and Roman literature, had practically disappeared. For later book-making, parchment replaced papyrus, a change which, if it had occurred two centuries, or even one century earlier, would, in spite of edicts of destruction, have preserved for future generations not a few of the lost "classics." A small proportion of the Greek and Roman writings, in copies dating from the later literary period, had been placed on parchment, and some few of these have been handed down to us through the intervention of Christian monks, who had taken possession of the parchment for church documents or codices, but who in their own inscribing had not destroyed, or had only partially destroyed, the original writing. I have already made reference to this practice of making one piece of parchment do a double service, and to the name of *palimpsest*, by which such a doubly inscribed parchment was known.

In the early part of the fourth century several factors came into operation which checked the development and finally undermined the existence of the publishing and bookselling trade of Rome. First among these factors I should name the growing power and influence of the Christian Church.

In the centuries which elapsed between the downfall of the Roman Empire and the invention of printing, the centres of intellectual activities and of scholarly interests were undoubtedly the churches and the monasteries, and it is probable that if it had not been for the educational work done by the priests and monks, and for the interest taken by them (however inadequately and ignorantly) in the literature of the past, the fragments of this literature which have been preserved for to-day would have been much less considerable and more fragmentary than they are. As I understand the history, the literary interests of the world owe very much to the fostering care given to them by the Church, or by certain portions of the Church, during the troublous centuries of the early Middle Ages. During these centuries the Church not only supplied a standard of morality, but kept in existence whatever intellectual life there was.

At the time, however, when the Christian Church was rapidly extending its influence throughout the Roman Empire, and during the century after it had succeeded in winning over to the faith the emperors themselves, and had become the official Church of the Empire, the evidence goes to show that its influence was decidedly detrimental to the literary productiveness of the age and also inimical to the preservation of the literary masterpieces of previous ages.

As the range of membership of the Church increased, so that it came to include a larger proportion of men of cultivation and scholarship, there came into existence a considerable body of theological and controversial writings, the production of which has gone on steadily increasing until very recent times. But the reading of the works of "pagan" writers was discouraged, and the manuscripts themselves were first neglected, and later suffered to fall into decay. Such writing as was done by the Christian scribes was in the main limited to the transcribing of the books then accepted as scriptures and to the copying of prayers and hymns. The mental activities of both writers and readers were turned in other directions. Scholars gave their scholarship and trained copyists their clerical skill to the service of the Church. It was not merely that the Church took possession for

its own work of so large a proportion of the best minds of the time. It directly discouraged then, as it did for many centuries thereafter, the study of any literature other than ecclesiastical. The writers of Greece and Rome were, for Christian believers, if not heretical, at least frivolous and time-wasting. Life was short and Christian duties left no free hours for Homer or Virgil, Plato or Epictetus. By the time of the accession of Constantine (306 A.D.) the book-shops on the Argiletum had lessened in number and in importance, the connections of the Roman publishers with the great towns of the provinces were for the most part broken off, and, most important of the signs of the times, there are no new books and no writers at work. Literary productiveness has for the time ceased.

The second cause which contributed to the destruction of the book-trade of Rome was the decision of Constantine to remove the capital of the Empire to Byzantium. The transfer was completed in the year 328, and for a number of years after that date there was no imperial Court in Rome. The “world of fashion” had migrated to the Bosphorus, and with the Court officials, the judges, the advocates, and the military leaders, had gone a large proportion of the active-minded men of the old capital, the men of intellectual interests. There remained the Bishop of Rome (soon to become Primate of the Latin Church) and his increasing staff of ecclesiastics, but to them, as pointed out, the literature of the classical period was either a matter of indifference or an abomination. The direction of the education of the young Romans must soon have come into the hands of the priests, and this would have increased their power to crush out the interest in, and the remembrance of, the literary productions of paganism.

A third factor which hastened the decline of Latin literature and the extinction of the book-trade of Rome, was the revival of the use of Greek, which, after the establishment of the capital at Constantinople, speedily became the official language of the Empire and the speech of the Court and of polite society generally.

I do not forget that there shortly came into existence an Empire of the West, under which Rome resumed (although with sadly reduced splendor) its position as an imperial capital. But the western emperors appear on the whole to have been a feeble lot, and they certainly did not succeed in gathering about them any number of men of “light and learning,” nor is there evidence of any substantial revival of the social or intellectual

activities of Rome. The times continued troublous. The State had to fight almost continuously for its existence, and the fighting was not infrequently near at home, the city itself being from time to time menaced. The “peace of the Empire” existed no longer. It was not a time for the development of literature, and literature, excepting a small body of doctrinal and controversial publications of the Church, practically disappeared.

After the expansion, in 379, of the prerogatives of the Roman See, the literary activities of the ecclesiastics increased, but it does not appear that any bookselling machinery was required or employed for the sale or distribution of the works of devotion, of doctrine, or of controversy. This distribution was doubtless managed directly by the priests themselves. The capture of Rome by the Goths under Alaric, in 410, brought destruction upon the accumulated wealth and trade of the city, but it is not probable that the tradespeople whose shops were despoiled included any considerable number of booksellers, as, according to my understanding, the trade in books had in great part disappeared some years before. The Goths doubtless had, however, not a little to do with the destruction of as many of the classic manuscripts as still existed in the public libraries or in private collections. It is certain that they would have had no appreciation for and no use for any manuscripts that fell into their hands. The more recent and still inconsiderable collections of Church manuscripts shared, of course, in the general destruction, but these (apart from a few relics) could easily be replaced.

The Goths disappeared like the rolling back of a flood after its work of devastation has been completed; and the insignificant series of Emperors of the West resumed their sway over the ruins of the imperial city.

The city was restored to a semblance of its old self; but we find no further traces of the production or of the sale of books. It is probable that when, in 476, Odoacer, chief of the Herulians, gave the final blow to the Empire of the West, and took possession of its capital, he found there, outside of the few treatises and books of worship of the Church, practically nothing in the shape of literature.

The rule of the Herulian was short; in less than twenty years he was overthrown by the Goth, and Theodoric came into possession of Rome and

undertook the task of organizing a kingdom out of the much harried territory of Italy.

In the later portion of his reign, after the city had been favored with a few years of peace and of freedom from the dread of invasion, there was some revival of intellectual and literary interests. Cassiodorus, prætor, prefect, quæstor, and later “master of the offices,” won fame as court orator and official letter-writer. He wrote a Gothic history in twelve books (which has disappeared), and a collection of letters and state-papers entitled *Variæ*, also in twelve books. Of greater permanent importance was the work of the philosopher Boëthius. Hodgkin says of him:

“Boëthius was the skilful mechanic who constructed the water-clock and sun-dial for the King of the Burgundians ... a man of great and varied accomplishments—philosopher, theologian, musician, and mathematician. He had translated thirty books of Aristotle into Latin for the benefit of his countrymen; his treatise on music was for many centuries the authoritative exposition of the science of harmony.”^[294]

His greatest work was *The Consolation of Philosophy*, which was composed while the philosopher was in prison awaiting sentence of death. This was rendered into English by King Alfred and by Geoffrey Chaucer; translations were made into every European tongue, and copies were to be found in every mediæval convent library. The *Consolation* is written partly in prose and partly in verse. Hodgkin is of opinion that its writer was at the time a Christian.

The production of this work is the only literary event which marks the rule of Rome by the Goths, and in fact, unless we include the “master of the offices,” Cassiodorus, with his court orations and courtly letters, there appeared during the time no other writer of whose work record has remained. We can infer that some means existed in connection either with the Court or with the convents for the production of copies of the *Consolation* and of the translation of Aristotle. The latter work, having been prepared, as its translator says, “for the benefit of his countrymen,” was evidently planned for some general circulation.

As there is no evidence of the existence at the time of any bookselling machinery, it is probable that for the multiplication and distribution of his

volumes, Boëthius depended upon the scribes of the Church and upon the connections with each other of the convents throughout Europe. It is undoubtedly through the libraries of the convents (the only places in Europe which were to any extent protected against ravages of war) that the *Consolation* was preserved.

After the death of Theodoric, Italy became the camping ground and the fighting place for successive hordes of Lombards, Saracens, and Franks. Social organization must have almost disappeared. Of scholarly or literary production there is again for some centuries hardly a trace. *Inter arma silent styli*. What intellectual life, outside of the monasteries, was still active in Europe must be looked for at the Court of the Greek Emperors of Constantinople.



CHAPTER VI.

Constantinople.

WHEN Constantine, in the year 328, removed to Byzantium the capital of the Empire, he doubtless took with him from Rome, or was followed by, a large proportion of the leaders of the social and intellectual life of the city. It is said also that Greek scholars from Magna Græcia, and from other parts of the Empire, foreseeing the probable revival of interest in Greek learning, speedily gathered themselves at Constantinople, and through their presence hastened the replacing of the Latin tongue by their own vernacular.

For a century or more, however, after the establishment of Constantinople, literary production appears to have been slight and unimportant. There is some evidence of collections being made of copies of the great classics, collections which later, unfortunately, in large part perished at the hands first of Crusaders and afterwards of Turks, and it is probable that a certain number of scribes were kept employed in the production of such copies. Of new works or of new editions of importance there is no record, while there is also no evidence as to the existence of any bookselling machinery for keeping the public supplied with the old classics.

The first revival of literary productiveness appears to have come from the Court. About 440 A.D. the Empress Eudocia published a poetical paraphrase of the first eight books of the Old Testament and of the prophecies of Daniel and Zechariah. This was followed by a cento of the verses of Homer, applied to the life of Christ; by a version of the legend of St. Cyprian; and by a panegyric on the Persian victories of her husband Theodosius.

An imperial author needed, of course, no bookselling machinery to bring her writings to the attention of the public. The members of the Court circles doubtless made for their presentation copies a full return in the shape of loyal appreciation, while politic priests could be depended upon to interest themselves in the reproduction and distribution of books devoted to such sacred subjects, and emanating from so high an authority.

After this literary outburst from the Court, there is a long period during which there is no record of any original work of importance being produced in Constantinople. I must not omit, however, to make reference to the great undertaking carried out by Ulfilas (sixty years or more before the time of Eudocia's labors) in the translation of the Bible into Gothic.

Ulfilas was a Goth by birth, but had been educated (as a hostage) in Constantinople. He was made Bishop of Gothia, and the work of his translation was probably completed in Dacia. For the preparation, however, of the transcripts of his text he was apparently obliged to resort to the scribes of the capital, and the "publication" of the work may, therefore, be credited to Constantinople. A magnificent manuscript of this Gothic version of the Gospels, a manuscript known, on account of its beautiful silver text, as the *codex argenteus*, and which dates from the sixth century, is now preserved in the library of the University of Upsala in Sweden, one of the earliest homes of the Gothic peoples. The wide circulation of these Gothic Scriptures had a great influence in bringing the Gothic tribes into the Christian fold, and exercised, therefore, an important effect on the history of Europe.

The greatest of the earlier authors of the Eastern Empire was the historian Procopius. His *History of My Own Times*, which was published about 560 A.D., during the reign of Justinian, is devoted more particularly to an account of the wars carried on by the Empire. Procopius had held various offices, and, during 562, was Prefect of Constantinople. After this post had been taken from him, he wrote a volume called *Anecdota*, or "secret history," in which Justinian and his empress, Theodora, are very severely handled. A third and earlier production is a description of the edifices erected by Justinian throughout the Empire.

By the beginning of the seventh century, says Oman, the use of the Latin language in Constantinople had practically ceased. Oman speaks of the seventh and eighth centuries as being the "dark age in Byzantine literary history," but, as far as we can judge from the records, the "luminous" or productive periods must have been very fitful and fragmentary.

After the extinction of the schools of Alexandria and Athens, "the studies of the Greeks" (says Gibbon) "retired to the monasteries, and above all to the royal college of Constantinople, which was burned in the reign of Leo

the Isaurian, about 750 A.D.” The head of the foundation was named “the sun of science,” and the twelve professors, the twelve signs of the zodiac. The library comprised over 36,000 volumes. It included the famous Homeric manuscript, before referred to, written on a parchment roll 120 feet long.

Between 886 and 963 A.D. Constantinople was ruled by the group of so-called “literary emperors,” during whose reigns literature became the fashion of the Court. The chief achievements of Leo the Wise and of his son and successor Constantine Porphyrogenitus were their books. The writings of Leo consist of a manuscript on the *Art of War*, some theological treatises, and a book of prophecies. The former, says Oman, contains some exceedingly valuable information, while the prophecies have been the puzzle of commentators.^[295] The works of Constantine comprise a treatise on the administration of the Themes or provincial districts, a biography of his grandfather, and a comprehensive manual of the etiquette and ceremonies of the Court. Towards the close of the eighth century or at the beginning of the ninth appeared the commonplace books of Stobæus, one series entitled *An Anthology of Extracts, Sentences, and Precepts*, one grouped together under the name of *Physical, Dialectic, and Moral Selections*, and a third entitled simply *Discourses*. The extracts are drawn from more than five hundred authors, whose works have in great measure perished. They include, says Heeren (who, in 1792, published an edition of Stobæus), passages from many of the ancient comic writers. The exact date of the life or of the work of Stobæus is not known. Photius says that his commonplace books were prepared as an educational guide for his son Septimius.

By the ninth century there are indications of the existence of a literary class, and there is evidence of the work of a few first-class writers such as the patriarch Photius, 857-69, whose library catalogue is the envy of modern scholars.^[296] This catalogue, composed while its author was an exile in Bagdad, comprises a review or analysis of the works of two hundred and eight writers. Gibbon points out, in connection with this catalogue of Photius, that the students and writers of that period enjoyed the use of many works of Greek literature which have since perished in whole or in part. He cites, among other authors, Theopompus, Menander, Alcæus, Hyperides, and Sappho.

In 867, under the direction of Basil II., were written the *Basilics*, or code of laws. The Emperor himself was the author of a comprehensive history of Greece and Rome, of which but fragments have been preserved.

Early in the tenth century, the exact date is uncertain, Suidas compiled his famous lexicon. According to Gibbon, Suidas was also the author of some fifty plays, some of which were based upon Aristophanes. In the latter part of the eleventh century Eudocia (wife of Romanus and the second literary empress of the name), having been imprisoned in a convent by her son, wrote, while in confinement, a treatise on the genealogies of the gods and heroes.

During the first years of the twelfth century Anna Comnena, daughter of Alexius Comnenus I., wrote, in fifteen books, under the title of *Alexias*, a life of her father. Gibbon speaks of the style of the history as being turgid and inflated, but says that it contains some interesting accounts of the first Crusaders.

In the twelfth century, a name of distinction is that of Eustathius I., Archbishop of Thessalonica, who published, about 1150, commentaries on Homer and on Dionysius the Geographer. Gibbon says that in the former he refers to no less than four hundred authors. At about the same time appeared the *Chiliads* of Tsetzes.

Oman is of opinion that the most interesting development of Byzantine literature were the Epics or Romances of Chivalry, written at the close of the tenth and the beginning of the eleventh centuries. He names as one of the best representatives of these romances, the epic of *Diogenes Akritas*, a mighty hunter, a slayer of dragons, and a persistent and successful lover.

I have referred to the work of but a few of the more representative of the Byzantine writers. It would be foreign to the purposes of this sketch to undertake to present any comprehensive bibliography of Byzantine literature, even if I had available the material for such a bibliography. Of many of the authors whose names have been preserved, very little except their names is known, while of the entire literature of the Byzantine period it may, I judge, fairly be said that it possesses but slight interest or value for later generations. The fact that literary undertakings of importance at the time and of interest for the readers of the day continued from generation to generation to be presented to the public, undertakings which in not a few

cases must have involved the labor of many years, gives us the right to conclude that some means or machinery must have existed for reaching this public. As far, however, as my present information goes, there are absolutely no data concerning the existence in Constantinople of any publishing or bookselling trade, and we have no means of knowing by what means the books of Byzantium were manifolded and distributed.

It is to be noted that a very large number of the writers named belonged to the Court, or held high official station. The fact that so many books were the work of the emperors themselves and of the members of the imperial families, is exceptional both in the history of literature and in the history of royalty. It is probable that for the transcribing of these books and for the books of officials generally, the services of official scribes were utilized. Authors outside of official circles may have gone to the convent, or may also have employed private scribes. It is fair to assume, notwithstanding the absence of any specific mention of such establishments, that some organization of scribes, or of work-rooms for the manifolding of books, existed in the city.

In closing this chapter, I venture to recall to my readers the well-known summary by Gibbon of the literature of the Byzantine Empire.

“The Empire of the Cæsars undoubtedly checked the activity and the progress of the human mind. Its magnitude might indeed allow some scope for domestic competition; but when it was gradually reduced, at first to the East, and at last to Greece and Constantinople, the Byzantine subjects were degraded to an abject and languid temper, the natural effect of their solitary and insulated state. Alone in the universe, the self-satisfied pride of the Greeks was not disturbed by the comparison of foreign merit.... Their prose is soaring to the vicious affectation of poetry; their poetry is sinking below the flatness and insipidity of prose. The tragic, epic, and lyric muses were silent and inglorious. The bards of Constantinople seldom rose above a riddle or an epigram, a panegyric or a tale. They forgot even the rules of prosody, and with the melody of Homer still ringing in their ears, they confound all measures of feet and syllables in the impotent strains which have received the name of ‘political’ or city verses.”

The change first comes when there is a break in the insulation. Gibbon continues: “The nations of Europe and Asia were mingled by the expeditions to the Holy Land, and it is under the Comnenian dynasty that a faint emulation of knowledge and of military virtue was rekindled in the Byzantine Empire.”

The opinion of Lecky is still more emphatic. He says: “The universal verdict of history is that the Byzantine State constituted the most base and despicable form that civilization ever assumed, and there has been no other enduring civilization so absolutely destitute of all the forms of true greatness, none to which the epithet *mean* may so emphatically be applied.”^[297] Is it surprising that in a State thus demoralized there is no record of the existence of a publisher?

It is only proper to add that the historian Oman, a much sounder authority on the subject than Mr. Lecky, and writing with information before him that was not available for Gibbon, contends that the talk about the exceptional demoralization of the Byzantines is largely rubbish, and points out that if the State were really as corrupt as it is painted by Gibbon and by Lecky, it would have fallen to pieces of its own rottenness within two or three generations, instead of enduring as the bulwark of Europe for over a thousand years.

The fall of Constantinople in 1453, and the introduction into Europe of the Turks, was unquestionably a great injury to Europe and to civilization, and the destruction of the collections of manuscripts existing in the capital itself and in monasteries and libraries in other cities of the Empire, was an irreparable loss for literature. For the educational interests and the literary development of Europe there were, however, considerations to offset this serious disaster. Great as was the destruction of manuscripts, a number were preserved by individual scholars and in the hidden recesses of certain convents and monasteries. Many of these were at once taken to Italy, Germany, and France by the scholars flying from the barbarous conquerors of their land, and the works were thus brought to the knowledge and made available for the use of European students. Other manuscripts were secured from their hiding-places years after the capture of the city, by Greek scholars sent back for the purpose on behalf of the publishers of Italy and France, or of the universities of Bologna, Padua, and Paris, while some few valuable parchments were hidden so safely that they have been forgotten for

centuries and are only to-day being brought to light from the vaults and attics of old monasteries, so as again to be included in literature accessible for the world.

In addition to the service done to the literary development of Europe by the distribution westward of the texts of the almost forgotten classics of the great Greek writers, there was the further important gain for the scholarship of the continent in securing, for university chairs, for tutorial positions, and for editorial work, the services of hundreds of Greek scholars whose homes had been destroyed, or who were unwilling to live under the rule of the hated Turk. Men of the highest rank in scholarly accomplishments and possessing a thorough knowledge of the literature of their race, either on the ground of impecuniosity or in some instances apparently from an unselfish devotion to the cause of scholarship, found their way to chairs in Bologna, Padua, Paris, Oxford, and other educational centres, and to the Court circles of the more intellectual of the princes and nobles of Italy, and spread in hundreds of channels a knowledge of the Greek language and an enthusiasm for the Greek literature. Mohammed II., the conqueror of Constantinople, had therefore played a part by no means unimportant in furthering one phase at least of the Renaissance of the intellectual life of Europe.

It was fortunate for the continued vitality and progress of the movement that the Greek literature thus reintroduced into Europe found already perfected the new art of printing, by means of which the manuscripts that the refugees from the Bosphorus had brought with them could be made generally available for students. It was fortunate also that, within a few years after the teaching of Greek had been entered upon in the principal educational centres, public-spirited and scholarly publishers were found prepared to take upon themselves the very serious business risk involved in the casting of Greek fonts of type and in the printing of editions of the Greek texts.

The first and most important of these publishers, the man who, on the ground of high ideals and of great things accomplished, is properly to be honored as *facile princeps* in the long list of the great publishers of Europe, was Aldus Manutius of Venice, a worthy successor to Atticus, the friend of Cicero, who, 1550 years earlier, had done his part in introducing to Italy and to the Roman world the classics of Greece.

It is in Venice, with the record of the service rendered by Aldus and his successors in connection with the second introduction into Italy and the world beyond Italy of the treasures of Greek literature; in Bologna and Paris, with some account of the connection of the great universities with the earlier publishing undertakings of Europe; and in Mayence, Frankfort, and Nuremberg, with the story of Gutenberg and his printing-press, that the history of the relations of authors with their public must be continued.

It is my hope to be able in a later volume to trace the development of property in literature from the time of the invention of printing down to the present day. It was, of course, only after the general application of printing to the production of books that authors were placed in a position to enforce any property control over their productions, while for a long period this control was conceded for but brief terms and was restricted to but limited territories. More than four centuries of further development in national morality have been required before the civilization of the world has brought itself to the recognition of the rights of literary producers according to the standard of to-day, a standard which is expressed by the term International Copyright.





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FOOTNOTES:

- [1] *Story of Chaldea*, 260.
- [2] *Revue Archæol.*, 1857.
- [3] Rawnsley, *Notes for the Nile*. London and New York, 1892.
- [4] *Ancient Egypt*, American edition, i., 106, 107.
- [5] Karpeles, *Gesch. der Litt. des Orient.*, i., 10.
- [6] Karpeles, i., 11.
- [7] *Middle Kingdom*, i., p. 603.
- [8] *Encyclopædia Britannica*, article "China."
- [9] Karpeles, i., 12.
- [10] Karpeles, i., 12.
- [11] *Middle Kingdom*, i., 600.
- [12] *Middle Kingdom*, i., 574.
- [13] *Middle Kingdom*, i., 526.
- [14] Karpeles, i., 23.
- [15] Prof. J. P. Peters, *Journal of the Exegetical Society*, 1887, 116, 117.
- [16] Renouard, *Traité des Droits d'Auteurs*, i., 15.
- [17] Sanhedrim, c. xiv., 5.
- [18] *Étude sur la Propriété Littéraire chez les Grecs et chez les Romains*, par Paul Clement, Grenoble, 1867.
- [19] *Du Droit de Perpétuité de la Propriété Intellectuelle*, par Adolphe Breulier.
- [20] *Schriftsteller und Buchhändler in Athen, und im übrigen Griechenland*, von Wilhelm Schmitz, Heidelberg, 1876.
- [21] *Essai sur les Livres dans l'Antiquité*, par H. Géraud, Paris, 1840.
- [22] Jevons, *Hist. Greek Lit.*, 42 et seq.
- [23] Evans found in Crete, in 1893, examples of script, believed to be the work of scribes of Greek stock, of a much earlier date.
- [24] Herod., vi., 27.

[25] Jevons, *Greek Lit.*, p. 45.

[26] *Greek Literature*, 51. The word is by some authorities derived from ῥάβδος a staff,—just as we have a stave in music. Rhapsodists would thus mean men of the stave; ῥάβδος also (according to Liddell and Scott, edited by Drisler) means grammatically a line or a verse and ῥαψωδία would mean a division of a poem for recitation.

[27] Plato, *Phædo*.

[28] *Ritschl. Philolog. Schriften*, Bd. 1.

[29] *Social Greece*, 10.

[30] *Social Greece*, 14.

[31] *Le Droit des Auteurs*, 16.

[32] Rozoir, *Dictionnaire de la Conversation*, Art. “Plagiaire.”

[33] *The Frogs*, v. 939 et seq.

[34] *Scholia ad Equites*, v. 528 et 1291.

[35] Bayle, *Dicty.*, Art. “Theopompus.”

[36] *Attic Nights*, Book iii., Chap. 17.

[37] *Dict. de la Convers.*, art. “Plagiaire.”

[38] *De Archit.*, liv. vii. Preface.

[39] *Oeuvres*, ii., Part 2, p. 518.

[40] From the Latin version of Breulier, Clement, II.

[41] *Travels of Anacharsis the Younger*, vi., 91.

[42] Pseudo-Plutarch, *Vitæ dec. Orat.-Isocrates*, c. viii.

[43] *Phædrus*, 274.

[44] Diogenes Laërtius, iii., 6, and *Bergk. Griech. Literatur Gesch.*, 218.

[45] *Ad Att.*, xiii., 21.

[46] *Poet.*, xv., and *Poli.*, viii., 541.

[47] Stahr, *Aristotle*, 67.

[48] Gellius, N. A., xx. 5. Plutarch, *Alexander*, c. vii.

[49] Zeller, *Philos. d. Griechen*, ii., 112, 119.

[50] Bruns, *Die Testamente der Griech. Philos.*, cited by Birt, 437.

[51] Lucian, *Herodotus*, c. i. and ii.

[52] Plutarch, *Herodotus*, c. 26.

[53] D. Chrysost., op. xxxvii., t. ii., 103.

[54] Plutarch, i., c. 31.

[55] *History of Federal Government*, i., 37.

[56] *Einleitung zu Herodot.*, 13 ff.

- [57] Thucydides, i, c. 22.
- [58] Marcellinus, 43.
- [59] Diog. Laërtius, ii., 57.
- [60] Birt, 475.
- [61] Athenæus, i., 4.
- [62] Gellius, vii., c. 17.
- [63] Plut., *Vit., Antonius*, c. 58.
- [64] Stahr, *Aristotle*, 45.
- [65] Athenæus, i., 4.
- [66] Stahr, *Aristotle*, 70.
- [67] Memnon, reported by Photius, 322.
- [68] Aristophanes, *Frogs*, v., 944, 1408.
- [69] Boeckh, *Gespräche des Sokratikers Simon*, 226.
- [70] Diog. Laërt., iii., 9.
- [71] Gellius, iii., c. 17.
- [72] Müller, *Lustspiele des Aristophanes*, 1041 ff.
- [73] Athenæus, iv., 57.
- [74] Aristotle, *Poet.*, v., 5.
- [75] Athenæus, xii., II.
- [76] Boeckh, *Staatsh.*, p. 68.
- [77] Buchsenschutz, *Besitz und Erwerb im Griech. Alterthum*, 572.
- [78] Schmitz, *Schriftsteller in Athen*, 68.
- [79] Hermann, *Staats Alterthum*, 466.
- [80] Plutarch, *Nicias*.
- [81] *Ibid.*
- [82] Plato, *De Republica*, viii., 568.
- [83] Aristotle, *Poet.*, xiii.
- [84] Athenæus, xii., 53. Cited by Schmitz, 39.
- [85] Lucian, *Adv. Indoct.*, c. 19.
- [86] *Anabasis*, vii., c. 5.
- [87] Meineke, *Fragm. Comic.*, ii., 2732; Pollux, vii., 211.
- [88] Meineke, ii., 2821; Zonaras, *Lex.*, 388.
- [89] Meineke, ii., 2852.
- [90] Meineke, iii., 114; Pollux, vii., 21; and Meineke, iii., 88; Pollux, vii., 201.
- [91] Meineke, iii., 378; Pollux, vii., 211.

- [92] Diog. Laërt., ii., 105.
- [93] Schol. to Demosth., *Olynth.*, ii., 19. Cited by Schmitz, 44.
- [94] Xenophon, *The Banquet of Philosophers*, iii., 5.
- [95] Schaefer, *Demosthenes und seine Zeit.*, i., 322.
- [96] Isocrates, *Letters to Philip*, ii.
- [97] Plutarch, *Philip*, 17.
- [98] Birt, 435.
- [99] Plutarch, *Alexander*, c. 8.
- [100] Diog. Laërt., vii., 31.
- [101] Dionysius Hal., *De Isocrate*, 18.
- [102] Diog. Laërt., viii., 36.
- [103] Diog. Laërt., vii., 2.
- [104] Diog. Laërt., v., 73.
- [105] Plutarch, *Lucullus*, c. 42.
- [106] See on page 90 another version of the same story.
- [107] Ritter, *Hist. Ancient Philos.*, iii., 24.
- [108] Drumann, v., 66, quoting Cicero, *Epist. ad Atticum*.
- [109] Plin., *Hist. Nat.*, vii., 85.
- [110] Diog Laërt., ix., 52.
- [111] Strabo, xiii., c. 54.
- [112] Lucian, c. iv., as quoted by Schmitz, 55.
- [113] Lucian, *Adv. Ind.*, 4, quoted by Schmitz, 56.
- [114] Schmitz, 57.
- [115] *Greek Life and Thought*, 195.
- [116] Birt, 486.
- [117] *Hist. Lit. Gr.*, iii., 186.
- [118] Moore's *Lectures*, 55.
- [119] Géraud, 106.
- [120] Mahaffy, *Social Life*, 209.
- [121] Mahaffy, 209.
- [122] Birt, 439.
- [123] *Athenæus*, 72.
- [124] Birt, 443.
- [125] Birt, 501.
- [126] This division was, however, probably not made by the author.

- [127] Isaiah, xix., 7.
- [128] Ragozin, *Chaldea*, 112 *et seq.*
- [129] Plin., xiii., 68.
- [130] Birt, 55.
- [131] Diog. Laërt., x., 26.
- [132] Birt, *Das Antike Buchwesen*, 439.
- [133] Herod., ii., 38.
- [134] Johnson's *Cyclo.*, 300.
- [135] Ritschl, *Die Alexandrin. Bibliothek*.
- [136] Plato, *Com.*, ii., 684. Meineke.
- [137] Plutarch, *Cæsar*, 60; Galen, i., 79.
- [138] 2 John, 12.
- [139] Simcox, *History Latin Lit.*, i., 31.
- [140] *Tusc.*, i., 5.
- [141] Simcox, 32 *et seq.*
- [142] Simcox, 34.
- [143] Simcox, 46.
- [144] But six have been preserved. Ritschl, *Op.* 3, 257.
- [145] *Epistles*, ii., 2, 5.
- [146] Seneca, *Epist.*, 27.
- [147] *Cod. Just.*, vi., 43.
- [148] Strabo, L. xiii., 419.
- [149] Plutarch, *Crassus*, 2.
- [150] Haenny, pp. 31, 32.
- [151] Sauppe, *Epist. Crit.*, p. 49.
- [152] Harpocraton, pp. 19, 24, 32, 15.
- [153] Daremberg, *Commentaire*, Paris, 1848, p. 12.
- [154] Haenny, 33.
- [155] *Anecd.*, i., 24.
- [156] *Ad Atticum*, xii., xv., xvi.
- [157] *Ad Atticum*, xiii., 12, 2.
- [158] *Ad Atticum*, ii., 4.
- [159] Simcox, i., 174.
- [160] *Ad Att.*, xvi., 11, 1.
- [161] *Ad Atticum*, xii., 5, 3; xiii., 21, 3; xvi., 2, 6.

- [162] *Ad Atticum*, xii., 6, 3.
- [163] *Ad Atticum*, xiii., 13.
- [164] *Ad Atticum* xiii., 25, 3, quoted by Birt, p. 353.
- [165] *Ad Atticum*, xiii., 13.
- [166] Birt, 354.
- [167] *Martial*, xi., 3, 6.
- [168] *Ad Atticum*, xii., 41; i., 45.
- [169] Birt, 284.
- [170] *Ibid.*, 357.
- [171] *Recherches*, p. 27.
- [172] *Orationes*, vi., 3, 3.
- [173] *N. A.*, i., 7. 1.
- [174] *Benef.*, vii., 6.
- [175] Birt, 358, n. 2.
- [176] Géraud, 171.
- [177] *Ad Quintum*, III, 5, 6.
- [178] Catullus, ed. Vossius, 14.
- [179] *Epist.*, 2, 2, 49.
- [180] Simcox, i., 287.
- [181] *Art. Poet.*, 345.
- [182] *Epist.*, i., 19, 19.
- [183] Lines placed on the doorway to the Palace of Augustus, quoted in *P. Virgilii Maronis Vita*, (author unknown) Paris, 1780.
- [184] *Epist.*, i., 19.

- [185] *Plagius* is from πλάγιος.
- [186] *Lat. Lit.*, i., 349.
- [187] *Simcox*, i., 249.
- [188] *Trist.*, iv., 1, 3.
- [189] *Ep.*, i., 1.
- [190] *Ep.*, i., 2.
- [191] *L. i.*, ep. 118.
- [192] *L. i.*, ep. 30.
- [193] *L. iv.*, ep. 72.
- [194] xii., 1.
- [195] vii., 80.
- [196] iv., 82.
- [197] vi., 85.
- [198] v., 16, 10.
- [199] xi., 25.
- [200] *Gesch. der Denk- und Glaubensfreiheit im ersten Jahrhundert der Kaiserherrschaft*, p. 138.
- [201] *Ep.*, xiii., 3.
- [202] iv., 88, 1.
- [203] v., 16, 10.
- [204] xi., 3.
- [205] i., 113.
- [206] *Ep.*, i., 2.
- [207] Schmidt, p. 143; Martial, vii., 17.
- [208] ii., 1, 5.
- [209] vii., 11 and 17.
- [210] Haenny, p. 39.
- [211] *Simcox*, p. 249.
- [212] *De Bibliopolis Romanorum*, 10-12.
- [213] Gallus (Deutsche Ausgabe), ii., 450.
- [214] P. 354.
- [215] x. 74.
- [216] *De Gramm.*, Reiff., p. 106, 12.
- [217] P. 355.
- [218] xii., 46.

- [219] v., 56.
- [220] i., 76.
- [221] v., 16.
- [222] xiii., 11.
- [223] Simcox, p. 250.
- [224] Juvenal, *Sat.*, vii., 39-47.
- [225] Juvenal, v., 82-94.
- [226] Cap. ix.
- [227] Birt, 347.
- [228] Catullus, 95, quoted by Birt, 345.
- [229] Birt, 345.
- [230] *Epist.*, i., 8, 3.
- [231] Fronto, *Epist. ad Verum*, ii., 9.
- [232] Birt, 357; see also Cicero, *Philipp.*, ii., 4.
- [233] *Ep.*, i., 4, 118.
- [234] Martial, *Ep.*, i., 117.
- [235] Lucian, 58, 4.
- [236] Gell., 9, 4, 1.
- [237] Plin., *Ep.*, 9, 11.
- [238] Martial, 7, 88.
- [239] Horace, *Ep.*, 20, 13.
- [240] Birt, 363.
- [241] Birt, 359.
- [242] Birt, 348.
- [243] Quint., *Epist. ad Tryphon*.
- [244] Mart., xiii., 3.
- [245] Seneca, *De Beneficiis*, vii., 6, 1. Quoted by Birt, p. 358.
- [246] Renouard, i., 15.
- [247] Sueton., *Domitian*, c. 10.
- [248] Aulus Gellius, 19, 5, 4, 9; 14, 3.
- [249] *Epist.*, i., 8, 2.
- [250] Bursian, *Geog. Griechenlands*, p. 290.
- [251] Strabo, p. 646.
- [252] *Ad Quintum*, iii., 4.
- [253] Juvenal, iii., 206.

[254] Sueton., *Domitian*, 20.

[255] Birt, p. 361.

[256] *De Fin.*, ii., 7.

[257] *Epist.*, iii., 7.

[258] 48, 4.

[259] Birt, 361.

[260] Suidas, *Lexicon*.

[261] Capitolinus, *Gordianus*, 18, 2.

[262] Martial, 14, 190.

[263] Simcox, ii., 49.

[264] Simcox, ii., p. 77.

[265] Tac., *Ann.*, iii., 49.

[266] Simcox, ii., p. 77.

[267] Martial, vi., 12.

[268] Martial, iv., 72. Simcox, p. 107.

[269] Simcox, ii., p. 142.

[270] Simcox, ii., p. 236.

[271] Birt.

[272] Pliny, *Epist.*, iv., 7.

[273] Birt, 352.

[274] Pliny, xxxv., II (trans. from Birt's version).

[275] Ritschl, Ramsay, and other scholars take the view that Pliny was referring to actual portraits which Varro had prepared by an admirable invention of his own.

[276] Simcox, i., p. 206.

[277] Simcox, ii., 243.

[278] Birt, 367.

[279] Diog. Laërt., ix., 52.

[280] Sueton., *Octavius*, 31.

[281] Sueton., *Caligula*, 34.

[282] Sueton., *Tiberius*, 61.

[283] Sueton., *Domitian*, 10.

[284] Tacitus, *Agric.*, 2. Plin., *Ep.*, vii., 19.

[285] Burckhardt, *Constant.*, p. 151.

[286] Burckhardt, 341.

- [287] *Codex*, ix., 36, “De Famosis Libellis.”
- [288] Renouard, 17.
- [289] Klostermann, p. 37.
- [290] Just. 34, *Inst. l. c.* Cited by Klostermann, 37.
- [291] Plinius, xiii., 83.
- [292] Euseb., *Hist. Eccles.*, vi., 13.
- [293] Birt, 375.
- [294] *Theodoric the Goth*, pp. 263-276.
- [295] Oman, *The Byzantine Empire*, p. 280.
- [296] Gibbon’s *Rome*, Am. ed., v., 525.
- [297] *Hist. Europ. Morals*, Amer. ed., p. 13.

Corrections

The first line indicates the original, the second the correction:

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Louis Haenny, H. Géraud, and A. Meineke.

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